

UTTARAKHAND MOTOR VEHICLES RULES, 2011

CHAPTER I

PRELIMINARY

Short title and commencement

1 (1) These Rules may be called “The Uttarakhand Motor Vehicles Rules, 2011.

(2) They shall come into force from the date which the State Government may appoint.

Definitions

2 (1) In these Rules, unless there is anything repugnant in the subject or context :

- (a) “Act” means, the Motor Vehicles Act, 1988 (Act No. 59 of 1988);
- (b) “Additional Transport Commissioner” means, an officer appointed as such by the State Government.
- (c) “Approved Agent” means a person authorized by the Principal to do an act or acts on his behalf and appointed as such by means of a writing executed by the Principal in the presence of either a Magistrate or Notary Public appointed under the Notaries Act, 1952, and includes a legal practitioner authorized by him in this behalf;
- (d) “Motor Vehicles Inspector” means a person appointed as such by the Transport Commissioner and posted as Assistant Regional Inspector at the head-quarters of each region or sub-region.
- (e) “Assistant Regional Transport Officer” means an officer appointed as such by the State Government and posted at the headquarters of each region or sub-region.
- (f) “Assistant Transport Commissioner” means an officer appointed as such by the State Government and posted at Dehradun.
- (g) “Central Rules” means the Central Motor Vehicles Rules, 1989.
- (h) “Deputy Transport Commissioner” means an officer appointed as such by the State Government and posted at Dehradun.
- (i) “Form SR” means a Form appended to these rules;
- (j) “Hill Road’ means all roads within Pithoragarh, Champawat, Almorah, Bageshwar, Rudraprayag, Chamoli, Uttarkashi and Tehri-Garhwal districts, tahsil Chakrata of Dehradun district and those portions of Nainital and Garhwal district which lie on the north of the base of foothills directly from Tanakpur in the east via Kathgodam, Ramnagar in the west and all roads beyond municipal limits of Dehradun city towards Mussoorie;
- (k) “Non resilient” in relation to a tyre of motor vehicle, means a tyre which is neither “Pneumatic” nor “resilient”
- (l) “Passenger” means a person traveling in a public service vehicle, but shall not include the operator, the driver or the

conductor or an employee of the operator of the public service vehicle traveling in the bona fide discharge of his duties in connection with the public service vehicle;

- (m) "Transport Tax Officer-1" means an officer appointed as such by the Transport Commissioner and posted at every region or sub region or check post.
- (n) "Transport Tax Officer-2" means an officer appointed as such by the Transport Commissioner or an official of the Transport Department not below the rank of Transport Tax Officer-2 who is authorized by the Transport Commissioner for this purpose.
- (o) "Pneumatic Tyre" means a Tyre containing air inserted by mechanical pressure;
- (p) "Region" means the territorial jurisdiction of a Regional Transport Authority as specified by the State Government as specified under sub-section (1) of Section 68.
- (q) "Senior Motor Vehicles Inspector" means an officer appointed as such by the Transport Commissioner and posted at the headquarters of each region or sub region.
- (r) "Regional Transport Officer" means an officer appointed as such by the Government and posted at the headquarters of each region under the Transport Department;
- (s) "Resilient" in respect of tyre of a motor vehicle or trailer, means a tyre not being a pneumatic type made of India-rubber;
- (t) "Schedule" means a schedule appended to these rules;
- (u) "Section" means a section of the Act;
- (v) State means state of Uttarakhand.
- (w) "State Government" means the State Government of Uttarakhand.
- (x) "Sub-region" means the territorial limits of a revenue district; or any other territorial limit specified by the State Government.
- (y) "Transport Commissioner" means an officer appointed as such by the State Government;
- (z) "Identical Officer" means an officer of the Transport Commissioner organization who is substantially appointed on such post whose pay scales are equal.

(2) Word and expressions used in the Act and the Central Rules and not defined in these Rules shall have the meanings assigned to them in the Act and the Central Rules.

CHAPTER II

LICENSING OF DRIVERS OF MOTOR VEHICLES

Licensing Authority

3 The licensing authority shall be the Regional Transport Officer or the Assistant Regional Transport Officer or, such Senior Motor Vehicle Inspector or Motor Vehicle Inspector of the Transport Department as is authorized by the Regional Transport Officer or the Assistant Regional Transport Officer to perform the duties of a licensing authority under this chapter or in case of

emergency, the reasons of which shall be recorded in writing, any other officer of the Transport Department who possesses the qualifications prescribed for motor vehicles inspector and is authorized by the Transport Commissioner for this purpose.

Fee Payable for the issue of a medical certificate

4 The fee payable for the issue of a medical certificate under sub-section (3) of Section 8 shall be rupees twenty. In case any Doctor duly empowered to issue such certificate requires any specialist opinion for the purpose and takes it from any other Doctor empowered to issue such certificate, the fee for such specialist opinion shall in addition be rupees twenty for each specialist.

Appellate Authority

5. The authority empowered under sub-section (8) of section 9, sub-section (2) of section 17 and sub-section (3) of section 19 to hear appeals against the order of the licensing authority shall be Deputy Transport Commissioner legal and tribunal or any other officer not below the rank of Deputy Transport commissioner nominated by the Transport Commissioner for this purpose.

Appeals-conduct and hearing of

6 (1) An appeal under Chapter II of the Act shall be preferred in duplicate in the form of memorandum, one copy of which shall bear non-refundable fee of rupees twenty in non-judicial stamps, setting forth concisely the grounds of objection to the order of the licensing authority appealed against and shall be accompanied by a certified copy of that order.

(2) When an appeal is preferred a notice shall be issued to the authority against whose order the appeal is preferred in such form as the appellate authority may direct.

(3) The appellate authority after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may deem necessary, may confirm, vary or set aside the order against which the appeal is preferred and shall make an order accordingly.

Maintenance of State Register of Driving Licences

7 (1) Licensing Authority shall send quarterly return in hard copy and in soft copy on Form No. 10 of the Central Rules, to an officer of the Transport Department of the State nominated in this behalf by the Secretary to Government in Transport Department from time to time on or before 7th April, 7th July, 7th October and 7th January of every year covering the details for the preceding period of three calendar months.

(2) The officer nominated under sub-rule (1) shall maintain the State Register of Driving Licences and send to the Director (Transport/Research), Ministry of Surface Transport, New Delhi, a printed copy or copy in such other form as the Central Government may require of that register.

**Licences lost or
destroyed
procedure**

8 (1) If at any time a Driver's licence is lost by the holder or is destroyed, the holder shall forthwith intimate the facts in writing in Form SR-1 to the licensing authority by whom the licence was issued or last renewed.

(2) Upon the receipt of intimation as aforesaid the licensing authority after making such enquiries as he thinks fit, shall, if satisfied that a duplicate may properly be issued, issue a duplicate licence and send intimation to the authority by whom the licence was issued or last renewed.

(3) The licensing authority may, in case of doubt, ask the applicant to file an affidavit or a declaration that the driving licence in respect of which the application has been made is actually lost and has not been impounded by any competent authority prescribed under the Act, and, if the applicant is unable to do so, the licensing authority may refuse to issue a duplicate licence.

(4) Where a photograph is required to be affixed to a duplicate licence issued under the provisions of these rules, the holder of the licence shall furnish to the licensing authority with two clear copies of a recent photograph of himself one of which shall be affixed to the duplicate licence and the other copy shall be retained for record by the authority issuing the duplicate licence.

(5) The fee for a duplicate licence to be issued under this rule shall be the same as prescribed under Rule-32 of the Central Rules for issue of driving licence.

(6) When a duplicate licence has been issued upon representation that a licence has been lost and original licence is afterwards found by the holder, it shall be delivered to the licensing authority, who issued the duplicate licence.

(7) Any other person finding licence shall deliver it to the holder of the licence or deposit it at the nearest police station.

**Licence defaced
or torn**

9 (1) If at any time it appears to a licensing authority that the driving licence held by a person is so torn or defaced in any way as to cease to be reasonably legible, the licensing authority may impound the licence and issue a duplicate.

(2) If a licence impounded as aforesaid is required to have a photograph of holder fixed thereto, then -

(i) If the photograph on the impounded licence is in the opinion of the licensing authority satisfactory and conveniently transferable to the duplicate licence, the licensing authority may so transfer, affix, and seal the photograph to the duplicate licence; or

(ii) If the photograph affixed to a licence impounded under the provisions of sub-rule (1) is not, in the opinion of the licensing authority, such as can be transferred to the duplicate licence, the holder of the licence shall, on demand by the licensing authority, furnish three clear copies of a recent photograph of himself one of which shall be affixed to the duplicate

licence and sealed, one shall be forwarded to the authority by whom the licence was issued and the remaining copy shall be retained for record.

(3) The fee for a duplicate licence issued under this rule shall be the same as prescribed for issue of driving licence under rule-32 of the Central Rules.

**Licence :
Replacement of
Photograph**

10 (1) If at any time it appears to a licensing authority that the photograph affixed to the licence has ceased to be a clear likeness of the holder, the licensing authority may require the holder to surrender the licence forthwith and to furnish three clear copies of a recent photograph of himself and the holder shall, within such time as the licensing authority may specify, appear in person before the licensing authority and present the photographs accordingly.

(2) If the holder fails to comply with a requisition by the licensing authority under sub-rule (1) the licence shall cease to be valid from the expiry of the said period.

(3) Upon the receipt of the copies of the photograph as provided in sub-rule (1) the licensing authority shall remove the old photograph from the licence and affixed and seal thereto one copy of the new photograph and return the licence to the applicant and shall, if he is not licensing authority by whom the licence was issued or last renewed forward the second copy of the photograph to that authority and retain the remaining copy for record :

Provided that if the holder of the licence so desires the licensing authority shall issue a duplicate licence with the new photograph affixed thereto and shall destroy the original licence. In such a case if the licensing authority is not the authority by whom the licence was issued or last renewed he shall inform the licensing authority which issued the licence or last renewed it.

(4) When a new photograph is affixed to a licence, a note shall be made upon the photograph of the date of affixture.

(5) The fee for a duplicate licence issued under the proviso to sub-rule (3) shall be the same as prescribed for issue of driving licence under rule-32 of the Central Rules.

**Licence – Issue
of duplicate**

11 (1) When a duplicate licence is issued under Rules 8,9 or 10 it shall be clearly marked “Duplicate” in red ink and shall be marked with the date of issue of the duplicate with the seal of the licensing authority.

(2) If the licensing authority who issued a duplicate licence is not the authority by whom the licence was issued or last renewed he shall intimate the fact to the authority which issued the licence or last renewed it.

**Communication
of particulars of
Driving Licences**

12 (1) In case a driving licence issued by any other State is submitted for renewal, and there are good reasons to suspect that it is not genuine or some tampering has been done, the licensing

**granted by one
licensing
authority to
another licensing
authority**

authority shall verify the facts of its issue from the issuing authority by sending one copy of the renewing form to it and requesting that authority to verify the same within thirty days by post.

(2) In case of renewal of driving licence for a vehicle other than Transport Vehicle;

- (i) If particulars are verified by the issuing authority, the licensing authority shall renew it and shall endorse new licence number on it or
- (ii) If no reply is received from the issuing authority within stipulated period, the applicant may be put to driving test as defined under sub-rule (3) of rule 15 of the Central Motor Vehicles Rules, 1989.

(3) In case of renewal of Driving Licence for Transport Vehicle, the applicant shall be put to a driving test at the Motor Driving Training School established by the State Government and shall satisfy his competence to drive irrespective of intimation/not intimation of the particulars from issuing authority.

Explanation : Notwithstanding anything contained in sub-rule (1), every Transport Vehicles Driving Licence holder, having a licence issued from outside the State, shall have to appear for the driving test at the Motor Driving Training School established by the State Government and shall satisfy his competence to drive before the renewal thereof.

(4) If the application qualifies the aforesaid driving test his driving licence shall be renewed. If it is not received within the specified time then after taking from him an affidavit on a non-judicial stamp-paper of an appropriate value regarding the genuineness of the licence and its endorsements the licensing authority shall renew the licence thereafter, the fact shall also be communicated to the original licensing authority by post.

(5) In case the reply from original licensing authority indicates that the particulars of driving licence have been tempered with or the licence is not genuine then the licensing authority shall seize the driving licence and may initiate appropriate legal action.

(6) Before renewal of driving license for transport vehicle applicant shall have to undergo through two days refresher training course in a driving training institute established by State Government or authorized by Transport Commissioner and on presenting a certificate of the aforesaid refresher course alongwith other formalities, the licensing authority shall renew the license.

Order authorizing the driving training institute for applicants of different districts, fees charged by them for imparting training and refresher course shall be decided, issued and notified by the Transport Commissioner from time to time.

**Fees for grant of
specifications of
driving license to**

12A Fees for grant of specification of driving license demanded by the holder or any other person, for motor vehicle accident, insurance or for any other purpose, shall be rupees fifty.

the holder or
other person.

**Transport Vehicle
Driver's Badge**

13 (1) The driver of a transport vehicle shall display on the left side of his chest a metal or plastic badge issued by the authority by which authorization to drive a transport vehicle has been granted. Such badge shall be in Form SR-2. On such badge shall be inscribed the word 'Driver' together with an identification number and the name of the issuing authority.

(2) A driver of a transport vehicle shall not hold more than one such badge issued by an authority in the State.

(3) The fee for the issue of a badge as aforesaid shall be rupees one hundred. If the badge is lost or destroyed, a duplicate badge on payment of rupees one hundred shall be issued by the authority by which it was issued earlier.

(4) If at any time the authorization on a driver's licence entitling him to drive a transport vehicle is suspended or revoked by any authority or by any Court or ceases to be valid by the efflux of time, the driver shall within seven days of such suspension, revocation or cessation, as the case may be, surrender the badge to the authority by which it was issued.

**Badge not to be
transferred**

14 (1) No driver shall lend or transfer his badge to any other person.

(2) Any person finding a driver's badge shall, unless he returns the same to the person, whom he knows to be the holder, forthwith hand it over to the authority by which it was issued or to the licensing authority of the area where it was found or deposit the same at the nearest police station.

**Transport Vehicle
Driver's Uniform**

15 A Driver of the Transport Vehicle other than a motor cab shall wear the following Uniform. –

(i) Khaki bush-shirt or coat with four pockets flap;

(ii) Khaki full pant; and

(iii) Khaki cap or turban.

**Exemption of
certain persons
from driving
licence or test of
competence fee**

16 No fee shall be charged for the issue or renewal of a driving licence or learner's licence or for a test of competence to drive from a person in the employment of Government as a Driver or in the employment of Government and selected for training to become a Driver.

**Exemption of
Drivers of road-
rollers from
driving licence**

17 Nothing contained in Chapter II of the act shall apply to the driver of a road-roller.

**Drivers of
Transport**

18 (1) The driver of transport vehicle shall -
(i) as far as may be reasonably possible having regard

**Vehicles: Duties,
functions and
conduct of**

- to his duties, be responsible for the due observance of the provisions of the Act and the rules made thereunder;
- (ii) not, smoke while on duty or drive the vehicle in a drunken state or under the influence of a drug to such a extent as to be incapable of exercising proper control over the vehicle;
 - (iii) behave in a civil and orderly manner with passengers and intending passengers;
 - (iv) wear clean uniform while on duty;
 - (v) maintain the vehicle, including its furniture and fittings, in a clean and sanitary conditions and in reasonable state of repairs;
 - (vi) not, solicit custom save in civil and quiet manner;
 - (vii) not, interfere with any person mounting or preparing to mount upon any other vehicle;
 - (viii) not, allow with any person to be carried in the transport vehicle in excess of the seating capacity specified in the certificate of registration of the vehicle and any additional number permitted under the terms of the permit to be carried standing in the vehicle;
 - (ix) not, allow any goods to be carried in the transport vehicle in excess of the permitted load capacity specified in the certificate of registration of the vehicle;
 - (x) not, save for good and sufficient reason, refuse to carry any person tendering the legal fare or to let his vehicle for hire on demand;
 - (xi) where goods are carried in addition to passengers, take all reasonable precautions to ensure that passengers are not endangered or unduly inconvenienced by the presence of the goods;
 - (xii) not, save for good and sufficient reason, require any person who has paid the legal fare to alight from the vehicle before the conclusion of the journey;
 - (xiii) not, loiter or unduly delay upon any journey but shall proceed to his destination as near as may be in accordance with the time-table, pertaining to the vehicle, or where there is no such timetable with all reasonable dispatch;
 - (xiv) in the event of a stage carriage being unable to proceed to its destination on account of mechanical breakdown or other cause beyond the control of the driver, arrange to convey the passengers to the destination in some other similar vehicle, or, if unable so to arrange within a period of half an hour after the failure of the vehicle, shall on demand refund to each passenger a proper portion of the fare relating to the completion of the journey for which the passenger

- has paid the fare;
- (xv) not, in the case of a stage carriage cause or allow anything to be placed in the vehicle in such a manner as to obstruct the entry or exit of passengers;
 - (xvi) not, demand or accept from any passenger or hirer any fare or hire for the carriage of goods more than the fare or hire fixed by the State Government from time to time;
 - (xvii) assist the passenger if necessary, in mounting upon or alighting from the vehicle and in loading and unloading their luggage;
 - (xviii) in the case of a stage carriage, be responsible for the carriage of a complaint book in the stage carriage;
 - (xix) not, cause or allow any person, animal, or thing to be placed or to be in the space reserved for the driver's seat, so as to impede him in having a clear vision of the road or proper control of the vehicle;
 - (xx) not, shout in order to attract passengers;
 - (xxi) subject to any rules or regulations made under the Act and in force prohibiting the taking up or setting down of passengers at, or except at certain specified places, bring vehicle to rest for a sufficient period of time in a safe and convenient position upon the demand or signal of the conductor or of any passenger desiring to alight from the vehicle and unless there is no room in the vehicle, upon the demand or signal of any person desiring to become a passenger;
 - (xxii) not, cause or allow any such vehicle to stand or loiter in any public place for the purpose of collecting passengers or goods save in such place and in such manner as may be approved by competent authority.
 - (xxiii) not, wrongfully, obstruct or attempt to obstruct the driver, conductor or other person in-charge of any other transport vehicle in the transaction of his business;
 - (xxiv) not, when bringing his vehicle to rest for the purpose of picking or setting down any passenger at or near the place where another public service vehicle is at rest for the same purpose, drive the vehicle so as to endanger, inconvenience or interfere with the driver or the conductor of the other vehicle or any person mounting or preparing to mount thereon or alighting therefore, and shall bring his vehicle to rest in front of or behind the other vehicle and on the left hand side of the road or place.
 - (xxv) at all times exercise all reasonable care and diligence to maintain his vehicle in a fit and proper condition and shall not knowingly drive the vehicle when it or

any brake, tyre or lamp thereof is in a defective condition likely to endanger any passenger or other person or when there is not sufficient fuel in the tank of the vehicle to enable him to reach the next petrol filling station on the route, and

(xxvi) the driver of a goods vehicle shall keep and maintain in English or in Hindi a record in Form SR-3, and shall on demand made by any officer of the Transport Department mentioned in sub-rule (1) or Rule 229 produce for inspection.

(2) A driver of motor-cab in addition to the duties mentioned in sub-rule (1) shall also (i) in absence of reasonable cause proceed to the destination for which the vehicle is hired by the shortest and quickest route and (ii) neither allow his cab when disengaged to remain at a place other than the stand appointed for the purpose nor loiter in or upon any public street, road or place for the purpose of his vehicle being hired.

(3) A copy in Hindi version of the list of duties of the driver enumerated in Clause (i) to (xxvi) of sub-rule (1) shall be pasted in a prominent place in every transport vehicle.

Change of residence

19 The holder of a driver's licence shall, except in the case of a temporary absence not involving a change of residence for a period exceeding three months, report any change of his temporary or permanent address as given in the licence to the licensing authority by whom the licence was issued or last renewed.

CHAPTER III

LICENSING OF CONDUCTOR OF STAGE CARRIAGES

Licensing Authority

20 The Licensing Authority under Chapter III of the Act shall be the Regional Transport Officer or the assistant Regional Transport Officer or such Regional Inspector or the Assistant Regional Inspector of the Transport Department as is authorized by the Regional Transport Officer or the Assistant Regional Transport Officer to perform the duties of a Licensing Authority.

Minimum educational qualification for grant of conductor's licence

21 The minimum educational qualification for the grant of conductor's licence shall be High School or any equivalent examination recognized by the State Government :
Provided that this rule shall not apply to a person who has obtained a conductor's licence before the date of coming into force of these rules.

Conditions for exemption from holding a conductor's licence

22 (1) Where in an emergency it becomes difficult for the permit holder to provide a licenced conductor for his stage carriage or where a licenced conductor on duty, for reasons beyond his control, cannot perform his duties, the driver of a stage carriage may, for a period not exceeding one month, act as a conductor of a

stage carriage without holding a conductor's licence.

(2) Any person other than driver of a stage carriage may act as a conductor without holding a conductor's licence for a period not exceeding one month; if -

- (i) He intimates his intention to do so in Form SR-4 to the licensing authority within whose jurisdiction he intends to act as a conductor;
- (ii) He is not disqualified for holding a conductor's licence; and
- (iii) He has not on previous occasions acted as a conductor without a licence for a total period exceeding one month.

Conductor Licensing of

23 (1) No person shall work as a conductor of a stage carriage, and no employer shall so employ any person, unless such person holds a conductor's licence in Form SR-5 granted by the Licensing Authority.

(2) A conductor's licence issued shall be valid for three years from the date of issue or renewal and shall be effective through out the state.

(3) A conductor's licence issued by any other State with which reciprocity on the point has been arrived at, shall be deemed to be a valid licence under these rules.

(4) Application for a conductor's licence shall be made in writing in Form SR-6 to the Licensing Authority of the district wherein the applicant resides.

(5) The fee for a conductor's licence shall be as specified in sub-section (5) of Section 30.

(6) The medical certificate required by sub-section (3) of Section 30 shall be in Form SR – 7.

Change of residence

24 The holder of a conductor's licence shall, except in the case of a temporary absence not involving a change of residence for a period exceeding three months, report any change in his temporary or permanent address as notified on the licence, to the licensing authority by whom the licence was granted or was last renewed.

Renewal of conductor's licence

25 (1) An application for the renewal of a conductor's licence shall be made in Form SR-8 and shall be accompanied by the conductor's licence three clear copies of his recent passport size photograph, the medical certificate required by sub-section (3) of Section 30 and the fees as required under sub-section (5) of Section 30 and shall be addressed to the licensing authority having jurisdiction in the area in which he ordinarily resides or carries on business.

(2) A licensing authority renewing a conductor's licence, if the licence was not issued by that authority, shall intimate the fact of renewal in Form SR-9 to the Licensing Authority by whom the licence was issued or last renewed.

Appellate Authority	26 The authority empowered under sub Section (2) of Section 33 and under sub-section (4) of Section 34 to hear appeals against the order of the licensing authority shall be the Deputy Transport Commissioner legal and tribunal or any other officer not below the rank of Deputy Transport Commissioner nominated by the Transport Commissioner for this purpose.
Appeals. – Conduct and hearing of	27 (1) An appeal under Chapter III of the Act, shall be preferred in duplicate in the form of a memorandum, one copy of which shall bear a non-refundable fee of rupees twenty five in non-judicial stamps, setting forth concisely the grounds of objection to the order of the licensing authority appealed from, and shall be accompanied by a certified copy of that order. (2) When an appeal is preferred a notice shall be issued to the authority against whose order the appeal is preferred in such form as the appellate authority may direct. (3) The appellate authority after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may deem necessary, may confirm, vary or set aside the order from which the appeal is preferred, and shall make an order accordingly. (4) The Regional Transport Officer or Assistant Regional Transport Officer may in his discretion, give any person interested in an appeal preferred under Chapter III of the Act, copies of any document connected with the appeal on payment of a fee of rupees two per page of each document and a stamp duty payable under the Stamp Act. (5) The Deputy Transport commissioner legal and tribunal or the Regional Transport Officer or Assistant Regional Transport Officer may allow any person interested in an appeal to inspect the files connected with such appeals on payment of a fee of rupees ten for every hour or part thereof and a court fee of rupees two on the application payable under the Stamp Act.
Licence lost or destroyed – Procedure	28 (1) If at any time a licence issued under the provision of chapter III of the Act, is lost by the holder or is destroyed, the holder shall forthwith intimate the facts in writing in Form SR-10 to the Licensing Authority by whom the licence was issued or last renewed. (2) Upon the receipt of intimation as aforesaid, the licensing authority after making such enquiries as he thinks fit, shall, if satisfied that a duplicate may properly be issued, issue a duplicate licence and send intimation to the authority by whom the licence was issued or last renewed. (3) The licensing authority may, in case of doubt, ask the applicant to file an affidavit of a declaration that the licence in respect of which the application has been made is actually lost and has not been impounded by any competent authority prescribed under the Act, and if the applicant is unable to do so, the licensing authority may refuse to issue a duplicate licence.

(4) Where a photograph is required to be affixed to a duplicate licence issued under the provisions of these rules, the holder of the licence shall furnish the licensing authority with two clear copies of a recent photograph of himself, one of which shall be affixed to the duplicate licence and the other copy shall be retained for record by the authority issuing the duplicate licence.

(5) The fee for a duplicate licence issued under this rule shall be the same as prescribed for issue of new licence.

(6) When a duplicate licence has been issued upon representation that a licence has been lost and original licence is afterwards found by the holder it shall be delivered to the licensing authority which issued the duplicate licence.

(7) Any other person finding a licence shall deliver it to the holder of the licence or deposit it at the nearest police station.

Licence – Defaced or torn

29 (1) If at any time it appears to a licensing authority that the licence held by any person is so torn or defaced in any way as to cease to be reasonably legible, the licensing authority may impound the licence and issue a duplicate.

(2) If a licence impounded as aforesaid is required to have a photograph of holder affixed thereto then -

(i) If the photograph on the impounded licence is in the opinion of the licensing authority satisfactory and conveniently transferable to the duplicate licence, the licensing authority may so transfer, affix and seal the photograph of the duplicate licence; or

(ii) If the photograph affixed to a licence impounded under the provision of sub-rule (1) is not in the opinion of the licensing authority such as can be transferred to the duplicate licence, the holder of the licence shall on demand by the licensing authority, furnish three clear copies of a recent passport size photograph of himself one of which shall be affixed to the duplicate licence and sealed, one shall be forwarded to the authority by whom the licence was issued and the remaining copy shall be retained for record by the authority issuing the duplicate licence.

(3) The fee for a duplicate licence issued under this rule shall be the same as prescribed for issue of new licence.

Licence. – Replacement of photograph

30 (1) If at any time it appears to a licensing authority that the photograph, affixed to the licence has ceased to be a clear likeness of the holder the licensing authority may require the holder to surrender the licence forthwith and to furnish three clear copies of a recent passport size photograph of himself and the holder, shall, within such time as the licensing authority may specify, appear in person before the licensing authority and present the photograph accordingly.

(2) If the holder fails to comply with a requisition by the

licensing authority under sub-rule (1) the licence shall cease to be valid from the expiry of the said period.

(3) Upon the receipt of the copies of the photograph as provided in sub-rule (1), the licensing authority shall remove the old photograph from the licence and affix, and seal thereto one copy of the new photograph and return the licence to the applicant and shall, if he is not licensing authority by whom the licence was issued or last renewed forward the second copy of the photograph to that authority and retain the remaining copy thereof for his record :

Provided that if the holder of the licence so desires, the licensing authority shall issue a duplicate licence with the new photograph affixed thereto and shall destroy the original licence. In such a case if the licensing authority is not the authority by whom the licence was issued, he shall inform the original licensing authority.

(4) The fee for a duplicate licence issued under the proviso to sub-rule (3) shall be the same as prescribed for issue of new licence.

**Licence. – Issue
of duplicate**

31 (1) When a duplicate licence is issued under Rules 27,28, or 29, it shall be clearly marked 'Duplicate' in red and shall be marked with the date of issue of the duplicate with the seal of the licensing authority.

(2) If the licensing authority who issues a duplicate licence is not the authority by whom the licence was issued, he shall intimate the fact to that authority.

**Conductor's
Badge**

32 (1) The conductor of a stage carriage shall display on the left side of his chest, a metal or plastic badge issued by the authority by which conductor's licence has been granted. Such badge shall be in Form SR-11. On such badge shall be inscribed the word 'Conductor' together with an identification number and the name of the licensing authority. The Conductor to stage carriage displaying a badge issued by the other State with whom reciprocity on the point has been arrived at, shall be deemed to be displaying a badge issued under this rule.

(2) A Conductor shall not hold more than one such badge issued by an authority in the State.

(3) The fee for the issue of a badge as aforesaid shall be rupees one hundred. If the badge is lost or destroyed, a duplicate badge on payment of rupees one hundred shall be issued by the authority which issued it earlier. Upon the return to the issuing authority of a badge or a duplicate badge the conductor shall be entitled to a refund of rupees one hundred.

(4) If at any time a conductor's licence is suspended or cancelled by competent authority or by any court, or ceases to be valid by the efflux of time, the conductor shall, within seven days of such suspension, cancellation or cessation surrender the badge to

the authority by which it was issued.

Badge not be transferred

- 33** (1) No conductor shall lend or transfer his badge to any other person.
- (2) Any person finding a conductor's badge shall, unless he returns the same to the person whom he knows to be the holder, forthwith sent it to the authority by which it was issued or to the licensing authority of the area, where it was found or deposit the same at the nearest police station.

Conductor's Uniform

- 34** A Conductor of a stage carriage shall wear the following uniform. –
- (1) Selatee Bush shirt or Coat with four pocket flap;
 - (2) Selatee full pant; and
 - (3) Selatee cap or turban.

Conductor of stage Carriage. – Duties, functions and conduct of

- 35** (1) The Conductor of a stage carriage; shall –
- (i) as far as may be reasonably possible having regard to his duties be responsible for the due observance of the provisions of the Act and the rules made there under;
 - (ii) not, smoke while on duty or conduct the vehicle in a drunken stage or under the influence of a drug to such an extent as to be incapable of exercising proper control over himself;
 - (iii) behave in a civil and orderly manner with passengers and intending passengers;
 - (iv) Wear clear uniform on duty;
 - (v) Maintain the vehicle in a clean and sanitary condition;
 - (vi) not, solicit custom save in a civil and quite manner;
 - (vii) not, interfere with person mounting or preparing to mount upon any other vehicle;
 - (viii) not, allow any person to be carried in any stage carriage in excess of the seating capacity specified in the certificate of registration of the vehicle and any additional number permitted under the terms of the permit to be carried standing as specified in the certificate or registration of the vehicle;
 - (ix) not, allow any goods to be carried in any stage carriage in excess of the permitted load capacity specified in the certificate of registration of the vehicle;
 - (x) not, save for good and sufficient reasons refuse to carry any person tendering the legal fare or to let his vehicle for hire on demand;
 - (xi) where goods are carried on the vehicle in addition to passengers, take all reasonable precautions to ensure that passengers are not endangered or

- unduly inconvenienced by the presence of the goods;
- (xii) not, save for good and sufficient reason, require any person who has paid the legal fare to alight from the vehicle before the conclusion of his journey;
 - (xiii) not, loiter or unduly delay upon any journey but shall proceed to his destination as near as may be in accordance with the time-table, pertaining to the vehicle, or where there is no such time-table, with all reasonable dispatch;
 - (xiv) being unable to proceed to its destination on account of mechanical break-down or other cause beyond the control of the driver or the conductor, arrange to convey the passengers to the destination in some other similar vehicle, or if unable so to arrange within a period of half an hour after the failure of the vehicle, shall on demand refund to each passenger a proper portion of the fare respecting the unfinished journey for which the passenger has paid the fare;
 - (xv) not, cause or allow anything to be placed in the vehicle in such a manner as to obstruct the entry or exit of passengers;
 - (xvi) not, demand or accept from any passenger or hirer any fare or hire for the carriage of goods more than the fare or hire prescribed by the competent authority;
 - (xvii) assist the passenger if necessary, in entering and leaving the vehicle and in loading and unloading their luggage, while loading, the conductor would go up and the passenger or his agent would lift his luggage which would be kept properly by the conductor on the top of the vehicle. While unloading, the conductor would lower down the luggage for the passenger or his agent, who would take it from him standing on the ground;
 - (xviii) after the driver has stopped the vehicle at an unmanned railway crossing, get down there and after ensuring that no railway train or other railway vehicle is coming on the railway track, shall give a signal to the driver to cross it;
 - (xix) be responsible for the carriage of a complaint book in the stage carriage;
 - (xx) not, cause or allow any person, animal, or thing to be placed or to be in the space reserved for the driver's seat, so as to impede him in having a clear vision of the road or proper control of the vehicle;
 - (xxi) subject to any rules or regulations in force prohibiting the taking up or setting down of passengers at, or except at certain specified places, signal the driver to

bring the vehicle to rest for a sufficient period of time in the event of any passenger desiring to alight from the vehicle and unless there is no room in the vehicle, upon the demand or signal of any person desiring to become a passenger.

- (xxii) not, cause or allow any such vehicle to stand or loiter in any public place for the purpose of collecting passengers save in such place and in such manner as may be approved by competent authority;
- (xxiii) not, wrongfully, obstruct or attempt to obstruct the driver, conductor or other person in-charge of any other public service vehicle in the transaction of his business;
- (xxiv) issue ticket immediately on payment of legal fare by a passenger unless the maximum passenger capacity of the vehicle has already been reached;
- (xxv) at the conclusion of any journey, make reasonable search in the vehicle for any articles left by any passenger and shall take into his custody any articles so found and upon the first reasonable opportunity, within 24 hours at the latest, make over the same to a responsible person at any office or station of the holder of the permit for the vehicle, or to an officer at a police station and shall likewise take into his custody and dispose of any articles so found by any other person;
- (xxvi) assist the driver and be on the lookout for other motor vehicles approaching from behind and effectively signal their approach to the driver;
- (xxvii) not, while he is on duty, permit the vehicle to be used for illegal or immoral purposes;
- (xxviii) not permit any fuel to be poured into fuel tank while the engine is in motion;
- (xxix) in the event of an accident to the vehicle make reasonable efforts to help the injured persons and to inform the nearest police station immediately;
- (xxx) help the infants, disabled, pregnant ladies, old aged passengers and the ladies with child in arm, to board or alight the vehicle;
- (xxxi) when the driver is taking the vehicle in reverse, get down from the vehicle and be on the look out for other motor vehicle or any other obstacle in the track of the vehicle and effectively give signal to the driver;
- (xxxii) not, allow any explosives of dangerous inflammable substances to be carried in the vehicle;
- (xxxiii) take all reasonable precautions to prevent the luggage being miscarried or lost on the way;
- (xxxiv) not, cause or allow to enter into or carried in the vehicle any person whom he knows or has reason to

believe to be suffering from an infectious or contagious disease;

(xxxv) not, shout in order to attract a passenger.

(2) A copy in Hindi version of the list of duties of the conductor enumerated in clause (i) to (xxxv) of sub-rule(1) above shall be carried in a prominent place in every stage carriage.

CHAPTER IV

REGISTRATION OF MOTOR VEHICLES

Appellate Authority

36 (1) The Authority to hear appeals under Section 57 shall be the Deputy Transport Commissioner legal and tribunal or any other officer not below the rank of Deputy Transport Commissioner nominated by the Transport Commissioner for this purpose.

(2) The Transport commissioner may, on the application of a party, transfer any appeal to any other officer not below the rank of Deputy Transport Commissioner.

Appeals– Conduct and hearing of

37 (1) An appeal under Section 57 shall be preferred in duplicate in the form of a memorandum, one copy of which shall bear a fee of rupees twenty five in non-judicial stamps, setting forth concisely the grounds of objection to the order of the registering authority appealed from and shall be accompanied by a certified copy of that order.

(2) When an appeal is preferred, a notice shall be issued to the registering authority in such form as the appellate authority may direct.

(3) The appellate authority, after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it, may deem necessary, may confirm, vary, or set aside the order of the registering authority and shall make an order accordingly.

(4) Any person preferring an appeal under the provisions of the Act shall be entitled to obtain a copy of any document filed with the registering authority in connection with any order, against which he has preferred an appeal, on payment of a fee of rupees two per page in respect of, such document.

(5) Subject to the provision of sub-rule (4) the appellate authority or the registering authority may at its discretion, give to any person interested in an appeal preferred under Chapter IV of the Act, copies of any document connected with appeal, on payment of a fee of rupees two per page of such document.

(6) The appellate authority or the registering authority may allow any person interested in an appeal to inspect the file connected with such appeal on payment of a fee of rupees ten per hour or part thereof.

Registering Authority

38 (1) The Registering Authority shall be the Regional Transport Officer or Assistant Regional Transport Officer or such Senior Motor Vehicles Inspector or Motor Vehicles Inspector of the Transport Department as may be authorized by the Regional Transport Officer or Assistant Regional Transport Officer to

perform the duties of the registering authority under the provisions of the Act and the rules made thereunder.

(2) **Special Registering Authority.** – The State Government may by an order notified in the official Gazette appoint any individual from amongst the persons engaged in the manufacture or sale of new motor vehicles as the special registering authority to act as the prescribed authority under sub-section (1) of Section 43 for issuing temporary certificate of registration and a temporary mark in respect of new motor vehicle which are sold and released by the firms engaged in the manufacture or sale of motor vehicles and are proceeding immediately on registration to a place outside the premises of the firm.

**Transport
Vehicles
Particulars to be
painted on**

39 (1) The following particulars in respect of a transport vehicle other than a motor-cab, shall be exhibited on the left hand side of such vehicles.—

- (i) Name and address of registered owner;.....-
- (ii) The unladen weight of the vehicle, denoted by U.L.W.....Kgs.;
- (iii) The gross vehicle weight, denoted by G.V.W.....Kgs.
- (iv) The number of passengers for whom accommodation is provided, denoted by pass--.....;
- (v) The registered front axle weight, denoted by F.A.W. Kgs.;
- (vi) The registered axle weight of each intermediate axle, if any, denoted by M.A.W.Kgs.;
- (vii) The number, nature and size of tyres;
 - (1) front axle, denoted by..... Nos. x.....;
 - (2) rear axle, denoted by..... Nos. x.....;
 - (3) intermediate axle, denoted by.....Nos.X;
- (viii) The maximum speed at which the vehicle may be driven without a trailer attached.....

Provided that the name and address of the registered owner shall also be exhibited on the right side of such vehicle.

(2) The particulars specified in sub-rule (1) shall be set-forth in Hindi in Devnagari script or in English with International numerals, each, not less than six millimeters high, legibly painted on a plain surface or a plate affixed to the vehicle.

(3) In addition, the particulars of the route along which a stage carriage is authorized to ply, permit number and its validity shall be legibly displayed in Hindi in Devnagari script characters not less than front ten centimeters high in black on a white ground on a board or plate affixed to the of the vehicle at the level of the roof.

(4) Vehicles registered under Section 60 need not exhibit the particulars specified in Clauses (i), (iv) and (viii) of sub-rule (1).

**Certificate of
fitness. Grant and
issue**

40 (1) For the purpose of Section 56, the prescribed authority shall be the registering authority. An application for the issue of a certificate of fitness, shall be made in Form SR-12, along with the document that the tax and additional tax of the vehicle have been deposited and that no challan is pending against it, to the registering authority or the authorized testing station in whose functional area the vehicle is kept or whose functional area includes the major portion of the route or area to which the permit relating to the vehicle extends.

(2) The registering authority or the authorized testing station, by whom certificate of fitness was issued, may endorse thereon the date, appointed for the next inspection of the vehicle and the owner shall cause the vehicle to be produced for inspection accordingly.

(3) If the certificate has not been endorsed as provided in sub-rule (2) the owner shall, not less than one month before the date of expiry of the certificate, make an application in Form SR-13 and cause the vehicle to be produced for inspection on such date and at such time and place as the registering authority may thereafter, upon reasonable notice, appoint.

(4) If the owner fails to produce the vehicle on the date appointed under sub-rule (2) or on the date, time and place appointed under sub-rule (3) he shall be liable to pay an amount equivalent to and in addition to the amount of fee specified at Serial 11 of the table or Rule 81 of the Central Rules.

(5) There shall not be more than one certificate of fitness in respect of any vehicle.

(6) If, owing to mechanical break down or other cause, a vehicle is, after the expiry of the certificate of fitness, outside the functional area of the registering authority by whom the certificate of fitness is to be issued, the registering authority may without prejudice to any penalty, to which the owner or the driver may have become liable, if the vehicle is, in his opinion, fit for use, by endorsement in Form SR – 14 and subject to such conditions as he may specify, authorize its use for such time as may reasonable be necessary for the vehicle to return to the area of the registering authority by whom the certificate of fitness is to be issued, and the vehicle may be driven to such area in accordance with such endorsement, but shall not be used after return to that area until the certificate of fitness has been issued :

Provided that no authorized testing station situated outside the area of jurisdiction in which the owner should have obtained the certificate of fitness, shall issue such authorization to any vehicle under this sub-rule.

(7) If a vehicle is damaged at any time so as to be unfit for ordinary use and may in the opinion of any registering authority safely be driven at a reduced speed to a place of repairs, and if the registering authority is satisfied that it is necessary that the vehicle

should be so driven, any registering authority may by endorsement in Form SR-15 specify the time within which and the conditions including speed limit subject to which the vehicles may be driven to a specified destination for the purpose of repairs.

(8) Where a prescribed authority cancels a certificate of fitness under sub-section (4) of Section 56, it shall. -

(a) supply to the owner or the person in-charge of the vehicle reasons in writing for such cancellation;

(b) Issue to the said owner or the person temporary authorization for the removal of the motor vehicle in Form SR-16 specifying the time and the conditions subject to which the vehicle may be driven to a specified destination for the purpose of repairs.

Inspection of other times

41 The registering authority may in order to satisfy himself that the provisions of Chapter VII and VIII of the Act are being observed, at any time require the owner or person in-charge of any motor vehicle to produce the said vehicle before him or before an authority appointed by him for this purpose at such time and place as he may by general or special order direct and the owner or person in charge of any such motor vehicle shall comply with such direction and allow the registering authority or any officer appointed by him full facilities for inspecting the said vehicle.

Temporary Registration

42 (1) Subject to the provisions of Section 43 of the Act and of this rule, a registering authority or a special registering authority may issue temporary certificate of registration.

(2) An application for temporary registration clearly marked temporary shall be made to the authority concerned in form SR-17.

(3) A temporary certificate of registration shall be issued in Form SR-18.

(4) The authority granting a temporary certificate of registration shall in all cases forward a copy of form SR-18 to the registering authority in whose area the vehicles is ordinarily to be kept.

Provided that where a temporary certificate of registration is granted by a special registering authority, a copy of Form SR-17 shall also be forwarded by the authority to the registering authority in whose area it has its place of manufacture or sale of motor vehicles.

Provided further that the records of the special registering authority, maintained for the purpose of issue of temporary certificate of registration, shall be open for inspection at all reasonable times by an officer of the Transport Department of the State not below the rank of Assistant Regional Transport Officer.

(5) The authority granting a temporary certificate of registration shall assign a temporary registration mark to the vehicle.

(6) The temporary registration mark to be assigned under sub-rule (5) shall consist of the letters allotted to the registering authority in the First Schedule followed by an allotted number and the letter "T".

Certificate of fitness torn or defaced

43 If at any time it appears to the registering authority that certificate of fitness issued by him or by the authorized testing station is so torn or defaced as to cease to be reasonably legible, he may impound such certificate and direct the owner of the vehicle covered by the certificate, to apply for the issue of a certificate of fitness.

Certificate of fitness: Loss or destruction of

44 (1) if at any time the certificate of fitness is lost or destroyed the owner shall forthwith intimate the fact in writing to the registering authority by whom or the authorized testing station by which the certificate of fitness was issued for the issue of a duplicate certificate of fitness. On receipt of such application the registering authority or the authorized testing station, as the case may be, may after making such enquiries as it thinks fit, issue duplicate certificate of fitness.

(2) An application for duplicate certificate of fitness shall accompany with a fee of rupees one hundred.

Compounding fees for late intimation

45 The compounding fees, in lieu of any action that may be taken against the owner of a motor vehicle under Section 177 for delay in submission of application for registration or for renewal of registration under sub-section (13) of Section 41 or for assignment of a new registration mark under sub-section (7) of Section 47 or for recording his new address under sub-section (4) of Section 49 or for recording of transfer of ownership of the vehicle under sub-section (5) of Section 50 for delay of each week or part thereof, shall be.—

- (1) in respect of an invalid carriage; rupee one,
- (2) in respect of motor cycle, rupees five,
- (3) in respect of motor vehicle other than a transport vehicle, excluding an invalid carriage or a motor vehicle; rupees fifty;
- (4) in respect of a transport vehicle; rupees fifty;

Provided that the amount of compounding fee shall in no case, exceed rupees one hundred.

Certificate of Registration : Authority empowered to suspend

46 The registering authority or any officer of the Transport Department not below the rank of Passenger Tax Officer excluding the deputy transport officer legal and tribunal may suspend the certificate of registration of a motor-vehicle under Section 53.

**Intimation in
respect of
vehicles not
registered within
Uttarakhand**

47 (1) In addition to the requirements of sub-section (4) of Section 47 when any motor vehicle which is not registered in Uttarakhand has been kept within the State for a period exceeding thirty days, the owner or other person incharge of the vehicle shall send intimation along with the certificate of registration of the vehicle to the registering authority of the area in which the motor vehicle is at time of making the report and shall intimate.-

- (i) his name and permanent address, and his address for the time being;
- (ii) the registration mark of the vehicle;
- (iii) the make and description of the vehicle, and
- (iv) in the case of transport vehicle the name of the authority within Uttarakhand by whom the permit has been issued or countersigned.

Provided that in the case of a transport vehicle covered by a permit having validity in Uttarakhand, it shall only be necessary to make a report under this sub-rule upon the first occasion when a report is due.

(2) Upon receipt of intimation under sub-rule (1) the registering authority shall after making such verification as it thinks fit communicate the particulars of registration of the vehicle to the registering authority by whom the vehicle was previously registered.

(3) Nothing in this rule shall apply to a motor vehicle registered under Section 60 or to a motor vehicle exempted from registration under provisions of rule 48.

**Exemption of
vehicle in
possession of
manufacturers or
dealers**

48 Section 39 shall not apply to a motor vehicle in the possession of a dealer in motor vehicles in the course of the business of the dealer so long as it is used under the authorization of a trade certificate granted by the registering authority within whose area the dealer has place of business and is used for any of the purposes specified in Rule 41 of the Central Rules.

**Maintenance of
State Registers of
Motor Vehicles**

49 (1) The registering authority shall maintain a State Register of motor vehicles in such form as may be prescribed by the Central Government.

(2) This register may be either in bound book form or on computer disc or tape.

(3) As soon as the vehicle is registered, the necessary entries shall be taken up and entered in the State Register of Motor Vehicles.

(4) The State Register for motor vehicles shall be maintained according to the class of the vehicle, i.e. whether, transport or non-transport and also if the registration of all types of vehicles is in large number it shall be maintained according to the detailed classification of the vehicle i.e two wheeler, car, goods carriage, tractors etc.; as may be decided by the registering authority.

**Exemption of
road rollers etc**

50 All road-rollers shall be exempted from the provisions of Chapter IV of the Act and the rules made under there.

**Exemption from
payment of
registration fee**

51 No fee shall be charged for the registration of motor vehicles of the following descriptions. –

- (i) Tractors and Locomotives used solely for agricultural purposes;
- (ii) Motor ambulances owned by charitable institutions and used solely for the conveyance of sick or injured.
- (iii) Such motor vehicles as are owned by Government or are for the time being in the service of the Government.

**Assignment of
Registration mark**

52 (1) The registration numbers to the motor vehicles shall be assigned as per the notification issued by the Central Government under sub-section (6) of section 41.

(2) On receipt of an application in form 20 of the Central Rules, the registering authority shall assign the registration number which falls in serial order after the last registration mark assigned, subject to the following provisions:-

- (i) Transport Commissioner may reserve any registration numbers as are considered necessary to be assigned to the vehicles of Government.
- (ii) The Transport Commissioner may from time to time notify in local newspapers the registration number given in the second Schedule as are considered attractive to be reserved for any person, who makes an application therefore and make the payment of the fees as prescribed in clause (iii).
- (iii) The fees for the registration number notified under clause(ii) shall be:-

(a) for registration number of Sl.No.- 1 of second schedule.	Rs. 100000
(b) for registration number of Sl.No.- 2 of second schedule.	Rs. 60,000
(c) for registration number of Sl.No.- 3 of second schedule.	Rs. 50,000
(d) for registration number of Sl.No.- 4 of second schedule.	Rs. 20,000
(e) for registration number of Sl.No.- 5 of second schedule.	Rs. 5,000

Provided that no fees shall be charged for motor vehicles owned by Government under this rule.

- (iv) The registering authority may on an application in writing made to it by any person, for any of the registration number of his choice notified under clause (ii) on payment of the fees prescribed under clause (iii), as the case may be, in advance, shall, on

the principle of first come first serve, reserve such registration number and the number once reserved shall not be transferable. The fees paid under this rule shall be in addition to the fee prescribed under sub section (2) of section 41.

Provided that the registration number of the choice under Sl. No-5 of the second Schedule shall be within thousand from the last number assigned in serial order except the notified number from the date of application.

- (v) The reservation fees shall be paid in advance and the fee once paid shall under no circumstances be refunded.
- (vi) The number reserved shall be allotted on production of vehicle along with the application in form 20 of the Central Rules. The reservation of the registration number shall be cancelled if the vehicle is not produced within 30 days from the date of reserving the registration number and the number so cancelled can be allotted to any other person, by the registering authority who makes an application along with the fees prescribed under this rule.
- (vii) In case no application is received for reservation of the registration number notified under this rule they shall not be allotted to any vehicle.
- (3) A number once assigned to a motor vehicle shall not be assigned to any other motor vehicle nor the cancelled registered number of a motor vehicle shall be assigned to any other motor vehicle.
- (4) No person shall exhibit or use a registered number on any vehicle other than the motor vehicle to which it has been assigned under these rules.

**Particulars of
registration.
Supply of copies**

53 (1) A registering authority may at his discretion supply a copy of the particulars of any motor vehicle registered in the record maintained by him to any person who applies for the same and furnishes non-judicial stamp of rupees ten.

(2) The application under sub-rule (1) shall be addressed to the registering authority in whose jurisdiction, the motor vehicle has been registered and shall bear a court fee payable under the Court Fee Act

**Intimation
regarding stolen
or recovered
motor vehicles**

54 (1) The Director General of Police of the State shall furnish to the State Transport Authority, Uttarakhand on or before the 15th day of each month, a monthly return containing in the information regarding motor vehicles which have been stolen and the stolen motor vehicles which have been recovered throughout the State, of which the police are aware, covering the period of the proceeding calendar month.

(2) The monthly return required by sub-rule (1) shall be in Form SR-19 and shall be in triplicate.

(3) On receipt of the return under sub-rule (1) the State Transport Authority shall send to all the registering authorities the copies of Form SR-19.

(4) The Secretary of the State Transport Authority as also each registering authority shall maintain a register of stolen and recovered motor vehicles on the basis of information received under the sub-rule (2) or, as the case may be, under sub-rule (3).

**Production of
Certificate of
Registration**

55 When required to do so by a registering authority or an officer of the Transport Department not below the rank of Tax Officer or a Police Officer not below the rank of Sub-Inspector, the owner or in the absence of the owner, the driver of a motor vehicle in respect of which a certificate of registration has been issued whether within the State or outside the State shall produce the certificate.

CHAPTER V

CONTROL OF TRANSPORT VEHICLES

**State Transport
Authority**

56 (1) The quorum to constitute a meeting of the State Transport Authority shall be –

- (i) one, in case the Authority consists of only one member, or
- (ii) two, in case the Authority consists of two or three members; or
- (iii) three, in case the Authority consists of four or five members.

(2) No quorum shall be necessary for a reconvened meeting adjourned for want of quorum.

(3) The Chairman if unable to attend a meeting shall nominate a member to act as Chairman at the meeting.

(4) The Chairman, or the acting Chairman nominated under sub-rule (3) shall have a second or casting vote.

(5) The State Transport Authority shall meet at such times and at such places as the Chairman may appoint:

Provided that the Authority shall meet not less than once in each of the periods of three months of January to March, April to June, July to September and October to December.

(6) Not Less than ten days notice to the member shall be given of any meeting of the State Transport Authority:

Provided that where in the opinion of the chairman an emergency meeting of the state Transport Authority is necessary, a notice of not less than twenty four hours shall be given to the members

(7) An officer of the Transport Department not below the rank of Deputy Transport Commissioner shall be appointed by the State Government as Secretary of the State Transport Authority.

**Regional
Transport
Authority**

- (8) The State Government may at any time. –
- (i) Determine, without assigning any reason, by notification in the Official Gazette, the term of any nominated official or non-official member of the State Transport Authority.
 - (ii) Subject to the provision of Section 68, vary the composition of the Authority, and consequently reduce or increase the number of official or non-official members.

(9) Subject to the provisions of sub-rule (8) a nominated member (other than an ex-officio member) of the State Transport Authority shall hold office for a period of two years and thereafter until his successor is nominated:

Provided that when any such member, dies or is removed or his term is determined, or he vacates office, his successor shall be nominated for the remainder of the period of office of the member whose place he takes and thereafter until his successor is nominated ;

Provided further that every member whose term of office has expired shall be eligible for renomination.

57 (1) The quorum to constitute a meeting of the Regional Transport Authority shall be –

- (i) one, in case the Authority consists of only one member; or
- (ii) two, in the case the Authority consists of two or three members.

(2) NO quorum shall be necessary for a reconvened meeting adjourned for the want of quorum.

(3) The Chairman, if unable to attend a meeting shall nominate a member to act as Chairman at the meeting.

(4) The Chairman, the acting Chairman nominated under sub-rule (3) shall have a second or casting vote.

(5) The Regional Transport Authority shall meet at such time and at such places as the Chairman may appoint; Provided that the Authority shall meet not less than once in two months unless the State Transport Authority otherwise directs.

(6) Not less than ten days notice shall be given to the members of any meeting of the Regional Transport Authority:

Provided that where in the opinion of the Chairman, an emergency meeting of the Regional Transport Authority is necessary, a notice of not less than twenty-four hours shall be given to the members.

(7) The Regional Transport Officer of the Region concerned shall be ex officio Secretary of the Regional Transport Authority.

- (8) The State Government may at any time –
- (i) determine without assigning any reason by notification in the Official Gazette, the term of any

nominated member of the Regional Transport Authority;

- (ii) Subject to the provisions of Section 68, vary the composition of the Authority, and consequently reduce or increase the number of official or non official members.

(9) Subject to the provisions of sub-rule (8), a nominated member (other than ex-officio member) of the Regional Transport Authority shall hold office for a period of two years and thereafter until his successor is nominated.

**Transport
Authority
Delegation of
Powers by**

58 A State or a Regional Transport Authority may, by general or special resolution recorded in its proceedings and subject to such conditions as may be specified in the resolution, delegate—

- (i) to its Secretary and in the case of State Transport Authority to Assistant Transport Commissioner (Administration), and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the Region concerned, power to grant, refuse, renew or transfer the permits of stage carriage, contract carriage, private service vehicles or goods carriages ;
- (ii) to its Secretary and in the case of State Transport Authority to Assistant Transport Commissioner (Administration), and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the Region concerned, all or any of its powers under Section 87 and sub-section (8) of Section 88, regarding the grant of temporary and special permits.
- (iii) to a District Magistrate or an Additional District Magistrate within its region all or any of its powers under clause (C) of sub-section (1) of Section 87 regarding the grant of temporary permits;
- (iv) to its Secretary and in the case of State Transport Authority to the Assistant Transport Commissioner (Administration), and in case of Regional Transport Authority to the Assistant Regional Transport Officer powers under Section 88 to countersign or to refuse to countersign permits in respect of transport vehicles plying on inter-state routes;
- (v) to its Secretary and in the case of State Transport Authority to Assistant Transport Commissioner (Administration), and in the case of Regional Transport Authority to the Assistant Regional Transport Officer any or all its powers under Rule 85 and 86 regarding grant or refusal to grant the replacement of vehicles;
- (vi) to its Secretary and in the case of State Transport

- Authority to Assistant Transport Commissioner (Administration), and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned power to issue a duplicate permit under Rule 89;
- (vii) to the Chairman the power to take action under sub-section (5) of Section 86.
 - (viii) to the Secretary within its Region, the power to suspend the permits and take action as provided under sub-section (4) of Section 86.
 - (ix) to its Secretary and in the case of State Transport Authority to Assistant Transport Commissioner (Administration), and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned for the purpose of Section 103, power to issue permit on application of State Transport Undertaking in respect of notified route or notified area;
 - (x) to its Secretary and in the case of State Transport Authority to Assistant Transport Commissioner (Administration), and in the case of a Regional Transport Authority to any Assistant Regional Transport Officer of the region concerned power under sub-section (12) of Section 88 to grant, renew or refuse a National Permit for goods carriages.
 - (xi) to the Secretary Regional Transport Authority power under sub-section (9) of section 88 to grant renew or refuse a tourist vehicle permit.

Provided that the Secretary shall place before the State Transport Authority or the Regional Transport Authority as the case may be, a periodical report in writing in respect of actions taken by the person to whom powers have been delegated under this rule.

**Transport
Authority
Conduct of
business of**

59 (1) The business of the Transport Authority shall be conducted under the direction of its Chairman in accordance with the rules.

(2) Subject to the provisions of the Act and these rules and the approval of the State Government., a State or a Regional Transport Authority shall have power to make bye-laws to regulate its conduct of business.

(3) The Secretary shall with the approval of the Chairman finalize the items of agenda to be considered at any meeting, prepare a detailed note of each item of the agenda and shall issue to each member of the Authority a copy of the agenda at least five days before such meeting;

Provided that in the case of an emergency meeting, the agenda may be given to the members present just before the start of the meeting.

(4) All matters shall normally be decided at a regular

meeting on the basis of majority of votes of members, including the Chairman, present and voting. In case of equality of votes, the Chairman shall have and exercise a second or casting vote. If the Chairman is of the view that any matter needs urgent decision by the Authority and the meeting of the Authority cannot be conveniently called and such matter may appropriately be decided by obtaining opinion of the members of the Authority through circulation, he may invite such opinion by circulation of the matter.

(5) In the event of procedure adopted under sub-rule (4), the Secretary shall send to each member of the Authority such particulars of the matter as may be reasonably necessary in order to enable the matter to arrive at a decision and shall specify the date by which the votes of members are to be received in the office of the Authority. Upon receipt of the votes of members as aforesaid, the Secretary shall lay the papers before the Chairman, who shall record the decision by endorsement on the form of application or other documents, as the case may be, according to the vote received, and the vote or votes cast by the Chairman. The record of the votes cast shall be kept by the Secretary and shall not be available for inspection to any person saves to a member of the Authority. No decision shall be taken through circulation before the date by which the votes of member are required to reach the office of the Authority, not less than 1/3 of the members of the Authority, may by notice in writing to the Secretary demand that the matter be referred to a meeting of the Authority.

(6) The number of votes excluding the Chairman's second or casting vote necessary for a decision to be taken upon procedure by circulation shall not be less than the number necessary to constitute a quorum.

(7) The State or the Regional Transport Authority, as the case may be, may summon any applicant for a permit to appear before it and may decline to grant the permit until the applicant has so appeared either in person or by an agent authorized by him in writing and until the applicant has furnished such information as may reasonably be required by the Authority in connection with the application.

(8) Nothing contained in this rule shall prevent a State or Regional Transport Authority from deciding through circulation any matter which has been considered at a meeting or has been the subject of a hearing and upon which a decision has been reserved.

(9) When a matter is decided by the votes of members present at a meeting of the State or Regional Transport Authority, no person other than a member of the Authority shall be entitled to be present and not record of the voting shall be kept save of the number of vote cast on either side provided that when any matter is decided by the exercise of the second or casting vote of the Chairman the fact shall be recorded.

(10) Secretary of State or Regional Transport Authority, as the case may be, shall maintain a minute's book properly bound

in which minutes of the meeting shall be pasted under the signature of the Chairman. The minute book shall be made available to the Chairman as and when required by him.

(11) When a permit for a transport vehicle is issued by the State or a Regional Transport Authority, the following particulars shall be communicated to the concerned Regional Transport Officer, Assistant Regional Transport Officer (Administration) and Assistant Regional Transport Officer (Enforcement) in whose jurisdiction the vehicle is authorized to ply :

- (i) Full name and address of the person to whom the permit is issued.
- (ii) Number of the permit.
- (iii) Period for which permit has been issued.
- (iv) The routes on which or the area in which the vehicle is to be used.
- (v) Designation of Issuing Authority.
- (vi) Registered number of vehicle or vehicles covered by the permit.
- (vii) Maximum number of passengers or the maximum load.

12. When a permit is transferred from one person to another under the provision of Section 82 or when the holder of a permit has been allowed to replace the vehicle by another vehicle of the same nature and capacity under Section 83 or when the permit is cancelled or suspended under the provisions of sub-section (1) of Section 86, the fact shall be intimated to the authorities mentioned in sub-rule (11).

**Reports to be
furnished by
transport
authorities**

60 (1) The Secretary of each Regional Transport Authority shall furnish quarterly information to the State Transport Authority on or before 7th April, 7th July, 7th October and 7th January of every year covering details for the preceding period of three calendar months. in respect of the number of application for permits received, sanctioned, rejected postponed and the permit issued.

(2) On receipt of information under sub-rule (1) the Secretary State Transport Authority shall furnish the consolidated information along with the information of the State Transport Authority to the State Government on or before the 15th day of the succeeding month of each calendar quarter mentioned in sub-rule (1).

**Publication of the
decision of the
Transport
Authority**

61 Every decision of each Regional Transport Authority and the State Transport Authority shall be displayed on the notice board by the Secretary of concerned Regional Transport Authority or the State Transport Authority, as the case may be, for information of the persons concerned.

**Application for
Contract**

62 The State Transport Authority or a Regional Transport Authority shall so arrange its business that applications for contract

**Carriages and
Private Service
Vehicles Permits
– Disposal of**

carriages and private service vehicles permits are normally disposed of within one month of their receipt in the office of the Authority.

**Applications for
permits**

63 Applications for permit shall be entered in the register maintained in the office of Secretary State Transport Authority or the Regional Transport Authority as the case may be in the order in which they are received. This register shall be regularly inspected by the Chairman, State Transport Authority/ Regional Transport Authority or a senior officer deputed for the purpose by him. The routes available for permits shall be notified publicly on the office Notice Board and or through local Newspapers. An application for a permit shall specifically mention about ownership of the bus and general reputation or character of applicant. All such applications shall be considered and disposed of by the Authority in accordance with the law.

**Hearing of
Application**

64 (1) When application for any permit is considered at a meeting of the State or a Regional Transport Authority and the applicant desires to be heard in support of his application or has been summoned to appear under the provision of sub-rule (7) of rule 59, he may either appear and conduct his case in person or may be represented by an approved agent :

Provided that no application for permanent stage carriage permit shall be considered if it is for notified routes or notified area or any portion thereof except as provided in the approved scheme of such route or areas.

(2) The State Transport Authority or the Regional Transport Authority, as the case may be, may ask the applicant to file a declaration or affidavit to the effect that no other permit in respect of the vehicle exists.

(3) The State or a Regional Transport Authority while considering an application for a permit shall take into account the liberalization policy for private sector operations in the road transport field.

**Application for
permits Form of**

65 Every application for a permit in respect of a transport vehicle shall be in one of the following forms –

- (i) in respect of a stage carriage in Form SR-20;
- (ii) in respect of a contract carriage in Form SR-21;
- (iii) in respect of a goods carriage in Form SR-22;
- (iv) in respect of a private service vehicle in Form SR-23;
- (v) in respect of temporary permit in Form SR-24;
- (vi) in respect of a special permit in Form SR-25;

**Permits Fee and
Forms of**

66 (1) Every permit shall be in one of the following forms –
(i) in respect of a stage carriage in Form SR-26;
(ii) in respect of a contract carriage in Form SR-27;

- (iii) in respect of a goods carriage in Form SR-28;
- (iv) in respect of a private service vehicle in Form SR-29;
- (v) in respect of temporary permit in Form SR-30;
- (vi) in respect of a special permit in Form SR-31;

(2) Where the permit relates to more than one vehicle one copy thereof shall be issued in respect of every vehicle authorized by the permit and each such copy shall carry in addition to the number of permit, a separate serial number contained in brackets after the number of permit. Each such copy shall be sealed and signed by the authority by which the permit is issued and by the authority by which the permit is countersigned.

(3) The holder of a permit shall cause the relevant copy thereof or the temporary permit, as the case may be, to be carried in a glazed frame or other suitable container carried in or affixed to the interior of the vehicle in such a way as to maintain it in a clean and legible condition readily available for inspection at any time by any authorized person.

(4) The fee for grant of permit shall be specified under Rule 125

Permit for a motor vehicle adopted to carry more than nine persons

67 Subject to the provisions of sub-section (3) of Section 66 the provisions of sub-section (1) of the said section shall apply to any motor vehicle adopted to carry more than nine persons excluding driver.

Permit Conditions of

68 The Transport Authority shall issue every permit subject to the following conditions :-

- (i) that the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and the token relating to it are or may be have been surrendered or suspended or cancelled in accordance with the provision of the Uttaranchal Motor Vehicles Taxation Reforms Act, 2003 (Act no 12 of 2003) and the rules made thereunder.
- (ii) that the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the state Government and payable in respect thereof have been duly paid; and if such tax is not duly paid within the period specified in the Uttaranchal Motor Vehicles Taxation Reforms Act, 2003 (Act no 12 of 2003) it shall be presumed that the holder of permit has intentionally evaded the payment of such tax.
- (iii) that save as provided in sub-section (2) of Section 82, the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;

- (iv) that the vehicle shall be used in the area or on the route or routes specified in the permit;
- (v) that the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the Permit shall not exceed the number and weight given in the certificate of registration;
- (vi) that only such advertising matters as are directly related to the permit-holders business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, wind screen and dash-board of the vehicle;

Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material available for inspection or fixed in or over the vehicle.

- (vii) that the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorized person.

**Permit for stage
carriages :
Special
conditions of**

69 The Transport Authority may also attach to a stage carriage permit one or more of the following conditions –

- (i) that no person other than the permit-holder or any other person duly authorized by him or a driver or a conductor or a paid Clerk in the employ of the permit-holder shall operate the vehicle; and
- (ii) that the vehicle shall cover in each journey; the entire route for which the permit has been granted.
- (iii) that the copies of the duty lists of Driver and Conductor shall be exhibited on the vehicle and at specified stands and halts on the route;
- (iv) that mails shall be carried on the vehicle subject to such conditions as may be specified and on such rates as are fixed by the Transport Authority in consultation with the postal authorities;
- (v)
 - (a) That luggage of passengers up to 25 kilograms per passenger shall be carried free of charge in a stage carriage.
 - (b) That the following shall be treated as passenger's luggage and will be carried free of charge on the roof of the stage carriage- Hand harmonium in box, hand sewing machine, portable gramophone, portable typewriter, radio (properly packed unless it can be carried under the seat) dry 6-volt battery;
 - (c) That the following will be charged separately:-

- 18 kilograms children's tricycles, folding camp cot. folding table or folding chair not weighing more than 18 kilograms;
- (d) The following will be charged separately:-
37 kilogram bicycles, non-folding chairs, tea tables, small almirahs or racks, beds etc. which can be conveniently carried on the bus and which do not weight more than 37 kilograms;
- (e) That no charge will be made for the following articles provided they can be carried under the seat occupied by the passenger to whom the articles belong; ghee in a closed tin, thermos flask, small tiffin carrier or small tiffin case, sticks and umbrellas, china tea-set, a set of six tumblers and glass jug, small attache case, book, fruits or eatables, table fan (packed) and typewriter (standard, packed); provided that one passenger may carry only one such bundle under his seat.
- (vi) that when in the interest of public order, public safety or in an emergency, the transport authority by whom the permit is granted issue direction to the permit-holder to use, a stage carriage on a route or in an area other than one specified in the permit, the permit-holder shall use the stage carriage on such route or in such area and during such period and at such timings as may be specified in direction.

**Permits for
Contract
carriages and
goods carriages
special
conditions of
Additional
conditions of
contract carriage
permit**

70 The Transport Authority may attach to a contract carriage permit or goods carriage permit the condition that no person other than the permit-holder or any other person duly authorized by him or a driver or a conductor or a paid clerk in the employ of the permit holder shall operate the vehicle.

71 The following shall be the additional conditions of every contract carriage other than a motor cab—

- (i) the permit-holder shall cause to be prepared in triplicate a list of passengers traveling in the vehicle in the following form in respect of each trip :

LIST OF PASSENGERS

Motor Vehicle No.....
Date.....
From

Time of Departure.....
to

S. No.	Name of the Passenger	Father's/ Husband's Name	Age	Address
1	2	3	4	5

-
-
- (ii) One copy of the list shall be sent by Registered Post Acknowledgement Due to the Authority which issued the permit for record, the second copy shall be carried in the vehicle and shall be produced on demand by the officers authorized to demand production of documents by or under the Act, the third copy shall be preserved by the permit holder;
 - (iii) the permit-holder or his authorized agent shall issue a receipt to the hirer in respect of payment received for hire and the counterfoil of the same shall be kept available with him and produce on demand to the officer authorized to demand documents by or under the Act;
 - (iv) the permit-holder shall maintain an yearly day to day logbook indicating the name and address of the permit-holder and the registration mark of the vehicle, name and address of the driver with the particulars of his driving licence and the starting and destination points of the journey with the time of departure and arrival and the name and address of the hirer;
 - (v) the permit-holder shall quarterly furnish an extract of the log book specified in condition (iv) above to the Transport Authority which issued the permit. The said logbook shall be preserved for a period of three years and shall whenever required be made available to the said authority for inspection during the said period:

Provided that nothing in this rule shall apply to any contract carriage hired to carry a marriage party.

**Operation of
Transport Vehicle
through Attorney**

72 (1) Operation of a Transport Vehicle through an Attorney shall not be permissible except in the case of permit-holder who is –

- (i) an unmarried woman or if married, divorced or separated from her husband or a widow,
- (ii) a minor whose father has died,
- (iii) a lunatic or an idiot,
- (iv) a person incapable of managing of operation of the transport vehicle by reason of blindness or other physical infirmity.
- (v) Prosecuting studies in a recognized institution and his age does not exceed 25 years,
- (vi) In the military, naval or air service of the Indian Union, or

(vii) Under detection or imprisonment.

(2) A Transport Vehicle shall not be operated under a power of attorney unless it is registered and a copy thereof has been filed in the office of the Regional Transport Authority, failure to comply with this condition shall constitute a valid ground for cancellation of permit.

**Permit- Entry of
registration mark
on**

73 Save in the case of temporary permit, where the registration mark of the vehicle is to be entered on a permit and the applicant on the date of application is not in possession of the vehicle duly registered, he shall within one month of the sanction of the application by the Transport Authority or such longer period as the authority may specify, produce the certificate of registration of vehicle before that Authority so that the particulars or the registration mark may be entered in the permit.

**Permit-
Revocation of
sanction**

74 No permit shall be issued until the registration mark of the vehicle to which it relates has been entered therein. In the event of any applicant failing to produce the certificate of registration without any reasonable cause within time allowed under Rule 73 the Transport Authority, may revoke its sanction for grant of permit.

Temporary permit

75 (1) A Temporary permit may, if the State or Regional Transport Authority so desires be issued to any person whether he is the registered owner of the vehicle to be used thereunder or not, subject to such conditions regarding payment of any tax payable under the Uttaranchal Motor Vehicles Taxation Act, 2003 (Act no 12 of 2003) or the rules made thereunder, as it thinks fit.

(2) When at the time of making an application for temporary permit, the applicant is not in possession of the vehicle or has not entered into a contract to hire the vehicle or otherwise satisfies the State or Regional Transport Authority that he is for good and sufficient reason unable to specify the registration mark of the vehicle to be used under the permit, the State or Regional Transport Authority, as the case may be, may if it is satisfied that undue inconvenience would otherwise be caused, issue a temporary permit without setting out the registration mark of the vehicle in it and may, if it thinks fit, require as a condition of the permit that the applicant shall within twenty four hours of the commencement of the first journey under the authorization of the temporary permit or such longer period as the authority may specify furnish to the authority the particulars of the registration mark.

(3) Nothing contained in a temporary permit shall be deemed to authorize the use of any vehicle, which is not duly registered or in respect of which there is no valid certificate of fitness or which otherwise contravenes any of the provisions of the Act or the rules made thereunder.

(4) The fee for grant of temporary permit shall be as may

be specified under Rule 126.

**Permit extension
of area of
validation of**

76 (1) Subject to the provisions of Section 88, a Regional Transport Authority which issued a permit (hereinafter referred to as the original Transport Authority) in respect of a stage carriage or a contract carriage may extend the effect of the permit to any other region within the State and may attach conditions to permit in respect of that region and may vary the conditions of the permit in different regions, provided always that the vehicle to which the permit refers is normally kept within the region of the original Transport Authority and subject to the provisions of the following sub-rules.

(2) The original Transport Authority may issue a permit having validity in any other region in accordance with any general or special resolution adopted by any other Regional Authority and any permit so issued shall be effective in the region of the other Authority as if it were issued by that Authority.

(3) Subject to the provisions of sub-rule (2) an original Transport Authority may issue permit to a contract carriage other than a motor cab which shall have effect in another region or regions if it attaches a condition to the permit that the vehicle shall only be used beyond the region of the original Transport Authority, under contract for a journey commencing and ending within the region of the original Transport Authority.

(4) Nothing in this rule shall affect the right of the holder of any permit to apply to any regional authority for countersignature of a permit.

(5) The fee for countersignature shall be as may be specified under Rule 126.

**Validity of permit
on hill routes**

77 Subject to the provisions of Section 69, the Regional Transport Authority of one Hill Region may grant a permit including a temporary permit for Hill routes to be valid in other Hill Region within the State without countersignature of the Regional Transport Authority of the other Hill Region or each of the other regions concerned and shall as soon as possible send copies of the proceedings relating to the issue of such permit.

**Exemption from
necessity for
permits**

78 A permit under sub-section (1) of Section 66 shall not be required for any transport vehicle exclusively used in connection with:

- (i) the work related to the absolution of untouchability and Welfare of scheduled cast by an organization recognized by the State Government in this behalf.
- (ii) the development programmes relating to Khadi and Village Industries organized by the Khadi and Village Industries Commission;
- (iii) the development of electronics exhibition van for demonstrating the highly sophisticated components

manufactured by the Electronics Corporation of India Ltd;

- (iv) Woman and Child welfare work by an organisation recognized by the State Government in this behalf;

**Stage and
contract
carriages-
Conditions for
carriage of goods
in**

79 Goods may be carried on stage and contract carriages, subject to the conditions :

- (i) That no goods shall be carried on the top deck of a double-decked stage carriage;
- (ii) That no goods likely to foul the interior of the Vehicle or to render it insanitary shall be carried at any time in any stage carriage or contract carriage;
- (iii) That the goods prohibited by the Transport Authority shall not be carried in a stage carriage or a contract carriage;
- (iv) That no goods shall be carried in violation of the conditions imposed by the Transport Authority for carriage of such goods.
- (v) That no stage carriage shall be used for carriage of goods so as to cause detriment to public convenience or failing thereby to meet the demand for passenger transport;
- (vi) That no goods shall be carried in a contract carriage save for special reasons on particular occasions and subject to conditions and restrictions specified in the permit;
- (vii) That no goods shall be carried in a stage carriage or contract carriage unless the goods are of such a nature and so packed that if carried on vehicle no danger, inconvenience or discomfort would be caused to any passenger and such number of seats as are specified in the permit are kept free and unimpeded for the use of passengers and access to the entrance and exits from the vehicle required under these rules is unobstructed.
- (viii) No goods shall be carried in a stage or contract carriage, the weight of which together with the weight of personal luggage of the passenger carried on the vehicle exceeds the difference between the gross vehicle weight minus unladen weight of the vehicle and the weight of passenger calculated in kilograms multiplying the number of passengers plus two (driver and conductor) which the vehicle is permitted to carry by 59.

**Carriage of
animals in goods
vehicle**

- 80** (1) No cattle shall be carried in a goods vehicle in a public place unless—
- (i) in the case of goat, sheep, deer or pig a minimum floor space of 60 centimeters x 60 centimeters per head of such cattle's is provided in the vehicle;
 - (ii) in the case of any other cattle;
 - (a) minimum floor space of 210 centimeters x 90 centimeters per head of cattle and half of such floor space for a young one of cattle which is weaned, is provided in the vehicle;
 - (b) the load body of the vehicle is constructed of strong wooden planks or iron sheets with minimum height of 152 centimeters, measured from the floor of the vehicle on all sides and the back; and
 - (c) the cattle are properly secured by ropes tied to the sides of the vehicle.

Explanation.- Cattle for the purpose of this sub-rule includes goat, sheep, buffalo, fox, deer, horse, pony mule, ass, pig, the females thereof or their young ones.

(2) No animal belonging to or intended for a circus, menagerie or zoo shall be carried in a goods vehicle in a public place unless—

- (i) in the case of wild or ferocious animal, a suitable cage, either separate from or integral with the load body of the vehicle used, of sufficient strength to contain the animal securely at all times is provided; and
- (ii) reasonable floor space for each animal is provided in the vehicle.

(3) No goods vehicle when carrying any cattle under sub-rule (1) or any animal under sub-rule (2) shall be driven at a speed in excess of 25 Kms. per hour.

**Permit
Cancellation of
redundant**

81 When a permit has been granted on first application by one Regional Transport Authority in respect of a particular vehicle, or in respect of a service of vehicles and it appears that a permit has also been granted by another Regional Transport Authority—

- (a) in respect of the same vehicle; or
- (b) in respect of a service of vehicle requiring the use of a greater number of vehicles than the holder of the permit possessed at the time of application;

The Regional Transport Authority by which one of the permits was issued may in consultation with the other authority forthwith cancel or modify the permit in such a manner as it may deem fit.

**Permit-Renewal
of**

82 (1) The State Regional Transport Authority renewing a permit shall call upon the holder to produce the permit and on production shall endorse the renewal thereupon return it to the

holder.

(2) The fee for renewal of permit shall be as specified under Rule 126.

(3) While renewing the permit, the Transport Authority shall take into account the existing Mechanical Condition of the vehicle and the record of accidents and challans of such vehicle in the proceeding five years.

(4) The mechanical inspection of the vehicle shall be done by a committee of persons possessing technical knowledge of motor vehicle in which at least one member shall be Gazetted Government Servant nominated by the Transport Authority.

**Permits- Renewal
of
countersignature**

83 (1) Subject to the provision of Rule 84, application for the renewal of countersignature on a permit shall be made in writing to the Regional Transport Authority concerned not less than fifteen days before the expiry of such countersignature.

(2) If at any time of application for renewal of countersignature of a permit, the permit is not available being under renewal by the authority by which it was issued, the applicant shall state the fact and shall state the number and date of the permit, the name of the authority by which it was granted, the date of its expiry and the number and date of the countersignature to be renewed.

(3) the State or Regional Transport Authority granting the renewal of a countersignature shall call upon the holder to produce the permit, if it has not been produced, and shall so endorse the validity of countersignature as to synchronize with the validity of the permit and return it to the holder.

(4) The fee for countersignature or renewal of countersignature shall be as specified under Rule 126.

**Permits
Validation of the
renewal in
respect of
countersignature
of**

84 (1) The authority by which a permit is renewed may, unless any authority by which the permit has been countersigned (with effect not terminating before the date of expiry of the permit) has by general or special order otherwise directed, likewise endorse renewal of countersignature of the permit (in the manner set forth in the appropriate form) and shall in such case intimate the renewal to such authority.

(2) Unless a permit has been endorsed as provided in sub-rule (1) or unless the period of validity of the countersignature has been endorsed by the authority making the countersignature, the countersignature shall become ineffective beyond the date of expiry stated therein

**Permits-
Replacement of
vehicle
authorized by**

85 (1) if the holder of a permit desires at any time to replace any vehicle covered by the permit with another, he shall apply in Form SR-32 along with the fee as specified under Rule 126 to the Transport Authority by which the permit was issued stating the reasons why the replacement is desired and shall—

- (i) if the new vehicle is in his possession, forward the certificate of registration thereof; or
 - (ii) if the new vehicle is not in his possession, state any material particular in respect of which the new vehicle will differ from the old.
- (2) Upon receipt of an application under sub-rule (1), the Regional Transport Authority may at its discretion reject the application-
- (i) if it has prior to the application given reasonable notice of its intention in accordance with the requirements of sub-section (3) of Section 71 or sub-section (3) of Section 74; or
 - (ii) if the proposed new vehicle differs in material respects from the old; or
 - (iii) if the holder of the permit has contravened the provisions thereof or has been deprived of possession of the old vehicle under the provision of any agreement of hire purchase except in cases, where a forfeited vehicle is replaced by one purchased outright.
- (3) If the Transport Authority grants an application for the replacement of vehicle under this rule, it shall call upon the holder of permit to produce the permit and the certificate of registration the new vehicle if not previously delivered to it, and shall correct the permit accordingly under its seal and signature and return it to the holder.

**Permit: Validation
of replacement
order in respect
of
countersignature
on**

- 86** (1) The Authority granting permission for the replacement of a vehicle under Rule 85 shall, unless the authority by which the permit was countersigned has by general or special resolution otherwise directed, endorse the correction made in the permit with the words valid also for inserting the name of the authority concerned and shall intimate the fact and the particulars of the replacement to such authority.
- (2) Unless the permit has been endorsed as provided in sub-rule (1) or unless the alteration has been approved by endorsement by the countersigning authority, the countersignature on a permit shall not be valid in respect of any new vehicle.

**Permit :
Procedure on
cancellation,
suspension or
expiry of**

- 87** (1) The holder of a permit may at any time surrender the permit to the Transport Authority by which it was granted and that Transport Authority shall forthwith cancel the permit so surrendered.
- (2) When a Transport Authority suspends or cancels any permit--
- (i) the holder shall surrender the permit within seven days of receipt of a demand in writing by the Transport Authority; and
 - (ii) the Authority suspending or canceling the permit shall

send intimations to the authorities by whom the permit has been countersigned and in whose area the validity had been extended under Rule 76.

(3) Within fourteen days of the expiry of any permit by the efflux of time, the holder shall deliver the permit to the Transport Authority by which it was issued and the Transport Authority receiving any such permit shall intimate the fact to the Authority, or authorities, by which it was countersigned and to any authority in whose area the validity had been extended under Rule 76.

(4) The holder of a permit shall, if so required, intimate to the Transport Authority within 24 hours of the receipt of suspension order, the place where the vehicle in respect of which the order is passed will be kept during the period of suspension. Subject to the provisions of sub-section (2) of Section 192, and sub-section (2) of Section 192-A, such holder shall not remove the vehicle from the place so intimated without the prior permission of the Transport Authority.

**Permit : Transfer
of**

88 (1) When the holder of a permit desires to transfer the permit to some other person under Section 82 he shall together with the person to whom he desires to make the transfer, make joint application in Form SR-33 to the Transport Authority by which the permit was issued setting forth the reasons for the proposed transfer.

(2) On receipt of an application under sub-rule (1), the Transport Authority may require the holder of the permit and the other party to state in writing whether any premium, payment or other consideration arising out of the transfer, is to pass or has passed between them and the nature and amount of any such premium, payment or other consideration.

(3) Without prejudice to any other penalty to which the parties may be liable any transfer of a permit ordered upon an application under this rule may be cancelled by the Transport Authority, if it has reason to believe that the facts given in the application or furnished under sub-rule (2) are fake but no such order shall be passed unless the parties have been given an opportunity to be heard.

(4) The Transport Authority may summon both the parties to the application to appear before it and may, if it deems fit, deal with the application as if it was an application for a permit.

(5)(i) If the Transport Authority is satisfied that the transfer of a permit may properly be made, it shall call upon the holder of the permit in writing to surrender the permit within seven days of the receipt of the order and shall likewise call upon the person to whom the permit is to be transferred to deposit the fee as specified under Rule 126.

(ii) Upon receipt of the permit and of the required fee, the

Transport Authority shall cancel the particulars of the holder thereon and endorse particulars of the transferee and return the permit to the transferee.

- (iii) The Transport Authority making a transfer of a permit as aforesaid may, unless any other authority by which the permit has been countersigned has by general or special order otherwise required, endorse the permit with the words transfer of permit valid for inserting the name of the authority by which the permit had been countersigned.
- (iv) Unless the permit has been endorsed as provided in the foregoing clause (iii) or unless the transfer of the permit has been approved by endorsement by the authority which countersigned the permit, the countersignature shall become ineffective after the date of transfer.

Permit – Issue of duplicate in place of those lost or destroyed

89 (1) When any permit has been lost or destroyed, the holder shall forthwith intimate the fact to the Transport Authority by which the permit was issued and shall deposit the fee as specified under Rule 126 for the issue of a duplicate.

Provided that no fee shall be chargeable in the case of a duplicate permit issued under sub-rule (4), if the original permit was issued more than five years back.

(2) The Transport Authority, upon receipt of an application under sub-rule (1) may ask the applicant to file an affidavit or declaration that the permit in respect of which the application is made, has actually been lost or has been destroyed and has not been impounded by any competent authority prescribed under the Act and after satisfying itself that it has been so lost or destroyed, issue a duplicate and to the extent it is able to verify the facts, may endorse thereon certified copy of any countersignature by other authority intimating the fact to that authority.

(3) A duplicate permit issued under this rule shall be clearly marked "Duplicate" in red ink and the certified copy of any countersignature by any other Transport Authority on a permit made under this rule shall be valid as if it were the countersignature.

(4) When a permit has become dirty, torn or otherwise defaced so as, in the opinion of the Transport Authority, to be illegible, the holder thereof shall surrender the permit to the Authority and apply for the issuance of a duplicate permit in accordance with this rule.

(5) any permit which is found by any person shall be delivered by the person at the nearest police station or to the holder or to the Transport Authority by which it was issued and if the holder finds or receives any permit in respect of which a duplicate has been issued, he shall return the original to the

Transport Authority by which it was issued.

Production of Permit

90 The permit shall always be carried in the vehicle and shall be produced on demand made at any reasonable time by any of the officer of the Transport Department specified in sub-rule (1) of Rule 229 and such officer may enter into any transport vehicle for the purpose of inspecting the vehicle.

Safe custody and disposal of property left in a stage or contract carriage

91 (1) Where a permit holder or his employee receive any article left in the vehicle, he shall keep that article for a period of seven days and shall, if the article is not claimed during that period, hand over the same to the officer-in-charge of the nearest police station :

Provided that, if the article is of perishable nature, it may be handed over to the officer-in-charge of the nearest police station even before the expiry of seven days.

(2) Where during the period mentioned in the preceding sub-rule-

- (i) the article is claimed by not more than one person, the permit holder may, after making such enquiries as he deems fit and if necessary after taking an indemnity agreement from the claimant, hand over the article to the claimant; and
- (ii) the article is claimed by two or more persons than the permit holder may hand over the same to the officer-in-charge of the nearest police station.

Appeal against the order of State or Regional Transport Authority

92 (1) The Authority to decide an appeal against the order of the State Transport Authority or a Regional Transport Authority in respect of matters dealt with in clauses (a), (b), (c), (d), (e), (f) and (g) of sub-section 89, shall be the State Transport Appellate Tribunal, constituted under sub-section (2) of Section 89.

(2) Any person aggrieved by an order referred to in sub-rule (1) may prefer an appeal within thirty days of the receipt of the order to the Chairman of the said Tribunal in the form of memorandum along with the requisite number of envelopes and necessary postage stamps for making service of notices through registered post on the respondents other than the State and Regional Transport Authorities. The memorandum shall set forth concisely and under distinct heads the grounds of objection to the order appealed against. The memorandum shall be accompanied by as many copies thereof as there are respondents and shall also be accompanied by a certified copy of the order appealed against.

- (3) (i) The appeal may be filed and argued by the appellant himself or by an Agent or an Advocate, duly authorised in this behalf. On behalf of the respondent, other than the Transport Authority, the appeal may be argued by the respondent himself or by an Agent or an Advocate duly authorised in this

behalf.

- (ii) On behalf of the Transport Authority, the Deputy Transport Commissioner (legal and tribunal) or an officer of the Transport Department, an Agent or and Advocate duly authorised in this behalf by the Transport Commissioner may argue the appeal may generally appear, act and plead before the Appellate Tribunal.

(4) Upon receipt of an appeal in accordance with sub-rules (1), (2) and (3), the Tribunal may fix a date within the office hours, for hearing of the appeal giving the Transport Authority concerned, other respondents, if any and the appellant, not less than thirty days notice and shall in that case, order the appellant to deposit the fee as specified under Rule 126.

(5) The notice of the date of the hearing shall be given by registered post to the appellant and the respondent, other than the Transport Authority on the address given in the memorandum of appeal or at any address that may be filed by them for the purpose. The notice to the Transport Authority shall be given through the Deputy Transport Commissioner (legal and tribunal) or through such other person who may be appointed to argue the appeal before the Appellate Tribunal.

(6) The Appellate Tribunal may, for sufficient reason, restore an appeal dismissed in default or for want of prosecution on an application moved by an appellant within fifteen days from the date of the knowledge of the order of dismissal of the appeal.

(7) The Appellant shall within fourteen days of the receipt of the intimation of the date of hearing, submit to the Tribunal copies of the documents upon which the appellant proposes to rely. The respondent shall have a right to file papers, on which he relies within a week of the filing of the documents by the appellant.

(8) The Secretary State Transport Authority, or Regional Transport Authority, may give copies of any document connected with such appeal on payment of fee as specified under Rule 126.

(9) The Secretary, State Transport Authority, or Regional Transport Authority, may allow any person interested in an appeal to inspect the file connected with such appeal on payment of fee as specified under Rule 126.

**Procedure in
case of death of a
party in appeal or
revision**

93 (1) Where any of the appellant or revisionists dies, and the case cannot be proceeded with by the remaining appellants or revisionists or where sole appellant or revisionists dies, the Tribunal shall adjourn the further hearing of the case to enable the legal representative to appear and apply for being made a party. If the legal representative fails so within 90 days from the date of death of the appellant or the revisionists the appeal or revision shall abate as a whole or so far as the deceased appellant or the revisionists is concerned, as the case may be,

(2) Where any of the respondents dies while the appeal

or revision is pending and the case cannot be proceeded with unless his legal representative is brought on record, the Tribunal shall, on an application made in that behalf within 90 days from the date of the death of the respondent, cause the legal representative of the deceased respondent to be made a party and shall proceed with the case. If no application in this behalf is made within this time the appeal or the revisions, shall abate as against the deceased respondent.

(3) Notwithstanding anything contained in sub-rule (1) or (2), there shall be no abatement of appeal or the revision by reason of death of any party between conclusion of the hearing and the passing of the order and order may in such a case be passed notwithstanding the death. Such order shall have the same force and effect as if it had been passed before the death took place.

(4) If a question arises in an appeal or revision whether a person is legal representative of the deceased appellant or revisionist or respondent, such question may be determined by the tribunal in a summary manner after taking evidence or other wise as may be considered necessary.

(5) The appellant or the revisionists or the person claiming to be the legal representative of a deceased appellant or revisionist may apply for an order to set aside the abatement and if it is proved that he was prevented by any sufficient cause from continuing the appeal or revision the tribunal shall set aside the abatement and proceed with the appeal or revision.

Supply of copies

94 (1) The Tribunal may give to any person interested in the appeal copies of any document connected with the appeal, on payment of fee specified under Rule 126 in the shape of court fee labels printed with the words for copies only and the stamp duty payable under Article 24 of Schedule 1-B of the Indian Stamp Act, 1889 (Act no II of 1889) as amended in its application to Uttarakhand from time to time, or the court-fee payable under Article 6 to 9 of Schedule I of the Court Fee Act, 1870 (Act no. VII of 1870), as amended in its application to Uttarakhand from time to time.

(2) Copies of the order shall be supplied to The Transport Authorities impleaded as respondents, free of charge.

Appeals Procedure of

95 In the event of the State Government appointing a Tribunal to hear an appeal under sub-rule (1) of Rule 92 or in the event of the appellate authority appointing time for hearing under sub-rule (4) or Rule 92 the appellant shall, within fourteen days of the receipt of the intimation that hearing will take place forward to the tribunal or to the appellate authority, as the case may be, a list of document, upon which he proposes to rely, together with copies of such documents in duplicate and may, upon the appointed date and subsequent hearing, appear either in person or through an approved agent.

Inspection of files

96 Inspection of a file shall be allowed on payment of a fee as specified under Rule 126 for an hour or part thereof in addition to the court-fee payable.

Hours of Work-Fixing in advance

97 The authority specified in this rule may require any employer of a driver of transport vehicle, to make to the satisfaction of the said authority such time table, schedule or regulation, as may be necessary to fix in advance the hours of work of the driver employed by him and upon approval by such authority of any time table, schedule or regulation as aforesaid, it shall be the record of the hours of work fixed for the driver concerned for the purposes of sub-section (3) and sub-section (4) of Section.

Authority.- Employers of drivers of transport vehicles used for the purpose of or in connection with –

A Regional Transport Authority.-

- (i) A Service of not less than five stage carriages.
- (ii) The business of goods carriage operated by one permit-holder under one or more permits solely within the region.

The State Transport Authority.- Any Stage Carriage, or permit authorizing use by the same permit-holder of not less than five stage or goods carriage as the case may be.

Conduct of passengers in Stage Carriages

98 (1) No person shall enter, or leave, or attempt to enter, or leave any stage carriage whilst in motion.

(2) No person shall enter into or alight from a stage carriage, except by the entrance or exits, provided for the purpose.

(3) No person shall enter into a stage carriage without first permitting all passengers leaving the stage carriage to alight.

(4) No person shall knowingly or intentionally enter a stage carriage carrying the maximum number of passengers according to the limit of the passenger capacity prescribed under these rules.

(5) No passenger or any other person shall mount the drivers platform or talk or interfere with or otherwise distract the attention of the driver of a stage carriage while driving the vehicle.

(6) No passenger shall obstruct any employees of the permit holder in the execution of his duty on the stage carriage.

(7) No passenger shall place his foot upon any seat of a stage carriage.

(8) No person (non being a person duly authorised by the permit-holder in this behalf) except a bona fide passenger or intending passenger, shall board a stage carriage and no passenger shall hang on to any exterior part of a stage carriage.

(9) No passenger shall board a stage carriage unless he either holds a pass or obtains a ticket on payment of the fare for the journey he intends to make.

(10) A ticket shall be valid only for the journey and the

stage carriage for which it has been issued.

(11) No passenger shall travel in a stage carriage beyond the destination for which he has paid the fare entitles him to travel without informing and paying to the conductor the legal fare for the additional journey. Every passenger, shall, when so required, get off the omnibus in which he is traveling at the terminus of the route for which it is booked.

(12) If at any time a passenger in a stage carriage—

- (i) behaves in a disorderly manner; or
- (ii) behaves in a manner likely to cause annoyance to female passenger, or
- (iii) uses abusive language, or
- (iv) molests any other passenger, or
- (v) smokes whom other fellow passengers object to it or when the vehicle is being refueled, or
- (vi) spits, or
- (vii) obstructs the conductor or the driver in the execution of his duties, or
- (viii) refuses or is unable to pay the fare; or
- (ix) refuses to show ticket on demand by any authorised person, or
- (x) refuses to pay fresh fare when he has altered or defaced his ticket so as to render the number of any portion, thereof, illegible, or
- (xi) uses, or attempts to use a ticket other than the ticket valid for a particular journey or a ticket which has already been used by another passenger or on another journey, or
- (xii) occupies more than one seat, or reserves or attempts to reserve another seat either for himself or for another passenger, or
- (xiii) has dressed or is possessed of clothing which is likely to soil or damage the dress or clothing of another passenger or for any other reason which is offensive to other passenger; or
- (xiv) has bulky luggage of a form or description likely to obstruct, annoy or causes inconvenience to another passenger, or
- (xv) carries any substance or article which is likely to annoy or cause inconvenience to another passenger; or
- (xvi) without lawful excuse occupies any seat exclusively reserved for females, or
- (xvii) willfully damages or spoils or removes any fittings in or on the stage carriage or interferes with any light or any part of the stage carriage or its equipment, or
- (xviii) rings without lawful excuse or interferes with any signal of the stage carriage or its equipment, or
- (xix) is reasonably suspected to be suffering from any

- contagious or infectious disease, or
- (xx) Commits or abets commission of any offence under the Act.

The driver, conductor or any officer of the transport department specified in sub-rule (1) of Rule 229 may require such passenger to alight from the vehicle forthwith and may stop the vehicle and keep it standing until the passenger has alighted. Such passenger shall not be entitled to the refund of any fare which he may have paid and any passenger failing to comply forthwith with such requirement may be forcibly removed by conductor or the driver and shall be guilty of the offence punishable under Section 177.

(13) A passenger who is reasonably suspected of contravening any of the provisions of this rule shall on demand being made by any officer of the transport department specified in sub-rule (1) of Rule 229 or the driver or conductor gives his correct name and address to such officer, driver or conductor.

(14) A copy of the list of duties of the passengers enumerated in sub-rule (9) and (10) and clauses (i), (ii), (v), (vii), (viii) and (xx) or sub-rule (12) in Hindi version shall be fixed in a prominent place in every stage carriage.

**Maintenance of
Complaint books
at the bus stands
and in stage
carriages**

99 (1) A complaint book in the Form no SR-34 with serially numbered pages in triplicate shall be maintained at every bus stand and also in every stage carriage to enable passengers to record any legitimate complaint in connection with the stage carriage service. Any passenger recording a complaint shall be entitled to take one copy of the complaint soon after recording the complaint.

The driver and the conductor of a stage carriage shall ensure prior to starting on a journey that the stage carriage is provided with the complaint book.

(2) Such complain shall be written clearly and in an intelligible manner and the complainant shall also clearly and legible record in the complaint book his full name, address, time and date on which the complaint is written.

(3) The operator of the stage carriage service or the stage carriage permit holder as the case may be, shall look into every complaint recorded in the complaint book, remove as far as possible the cause of the complaint and report together with a copy of the complaint to the Transport Authority which granted the permit stating the action taken by him in connection with the complaint. A copy of the report shall be forwarded by the operator of the stage carriage service or the stage carriage permit holder as the case may be, to the complainant.

(4) The complaint book shall be so securely kept in the stage carriage and at the bus-stand as to provide ample safe-guard against the risk of being removed and shall at all times be made available to any passenger desiring to record a complaint or to an

officer of the Transport Department mentioned in sub-rule (1) of Rule 229.

**Children and
infants- Carriage
in a public
service vehicle of**

100 in relation to the number of persons that may be carried in a public service vehicle—

- (i) a child of not more than twelve years of age shall be treated as one half, and
- (ii) a child of not more than five years of age shall be ignored.

**Carriage of
corpses**

101 No driver, conductor or person in charge of any transport vehicle shall permit any person to place or carry on such vehicle any corpse when such vehicle is plying for hire for the conveyance of any passenger other than person or persons by whom the vehicle has been expressly hired for the purpose of conveying such corpse.

**Carriage of
persons in goods
carriage**

102 (1) Save in the case of a vehicle which is being used on behalf of the State Government or the Central Government or for the carriage of troops or police or a stage carriage in which goods are being carried in addition to passengers, no person shall be carried in a goods carriage other than the owner or the hirer or a bona fide employee of the owner or the hirer of the vehicle, except in accordance with this rule :

Provided that the State Government may by special or general order permit a co-operative society or class of co-operative societies owning, or hiring a goods carriage to carry any of its members under its authority in such goods vehicle when it is used for carrying the society's goods in the course of its business.

Provided further that the State Government may by special or general order, lay down that a bona fide employee of the owner or the hirer, of the vehicle shall not travel in such goods carriage except under the written authority from its owner or the hirer, as the case may be,

(2) No person shall be carried in the cab of a goods carriage beyond the number for which there is seating accommodation at the rate of thirty-seven centimeters measured along the seat excluding the space reserved for the driver, for each person, and not more than six person, in all in addition to the driver shall be carried in any goods carriage.

(3) No person shall be carried upon the goods or otherwise in such a manner that such person is in danger of falling from the vehicle and in no case shall any person be carried in a goods carriage in such a manner that any part of his person, when he is in sitting position, is at a height exceeding 3.5 meters from the surface upon which the vehicle rests.

(4) Notwithstanding the provisions of sub-rule (2), the Transport Authority may as a condition of the permit issued for any goods carriage, specify the condition subject to which larger

number of persons may be carried in the vehicle provided that such number shall not exceed area in square meters of the floor of the vehicle divided by 7.

(5) Nothing contained in this rule shall be deemed to authorize the carriage of any person for hire or reward on any vehicle, unless there is in force in respect of the vehicle a permit authorizing the use of the vehicle for such purpose, and save in accordance with the provisions of such permit.

(6) The provisions of this rule shall not apply to a vehicle registered under Section 60.

**Goods Carriage-
Duty to carry
goods**

103 A goods carriage shall not save for reasonable and lawful excuse refuse to carry any goods of any person tendering the maximum freight therefore fixed under Section 67.

**Records to be
maintained**

104 (1) The Transport Authority may by general or special order require the owner of any transport vehicle to maintain records at the place of business or the vehicles or both the places and submit returns in respect of the vehicle in such form as the authority may specify and such records and returns may include particulars of the daily use of the vehicle in respect of –

- (i) the name and licence number of the driver, conductor and other attendants, if any;
- (ii) the routes upon which or the area within which the vehicle was used;
- (iii) the number of kilometers traveled
- (iv) the times of commencement and termination of a journey and of any halt on a journey when the driver took rest;
- (v) the weight of goods carried between specified places and the nature of the goods;
- (vi) in the case of goods carried in a stage carriage the number of trips and the mileage when goods were solely or when the goods were carried in addition to passengers, and in that case, the number of seats available for passengers.

(2) No owner or other person shall cause or allow any person to drive a transport vehicle unless the owner or other person has in his possession a record in writing of the name and address of the driver as set forth in his driving licence, the number of the licence and the name of the authority by which it was issued.

(3) The records required to be maintained under this rule shall be produced for inspection on demand by any Registering Authority or by any police officer not below the rank of sub-Inspector

**Permit holder-
Change of
address of**

105 (1) If the holder of a permit ceases to reside or to have his place of business, as the case may be, at the address set forth in the permit, he shall within fourteen days send the permit to the Transport Authority by which the permit was issued intimating the

new address.

(2) Upon receipt of intimation under sub-rule (1) the concerned Transport Authority, shall after making such enquiries as it deems fit, enter in the permit the new address and shall intimate the particulars to the authority of any region in which the permit is valid by virtue of countersignature or otherwise.

**Public Service
Vehicle –
Intimation of
damage to or
failure of**

106 (1) The holder of any stage or contract carriage permit in respect of a particular vehicle by reference to the registration mark shall, within seven days of the occurrence, report in writing to the Transport Authority by which the permit was issued any failure of, or damage to such vehicle or to any part thereof, of such a nature as to render the vehicle unfit for the use in accordance with the condition of the permit for a period exceeding one week.

(2) The holder of any permit in respect of a service of stage carriage shall, within seven days of the occurrence report in writing to the Transport Authority by which the permit was issued, any failure of, or damage to any vehicle used by him under the authority of the permit of such a nature as to prevent the holder from complying with any of the provisions or conditions of the permit for a period exceeding one week.

(3) Upon receipt of a report under the preceding sub-rules, the Transport Authority by which the permit was issued may, subject to the provisions of Rule 85 :

(i) direct the holder of the permit within such period, not exceeding two months from the date of the occurrence, as the authority may specify either to get the vehicle set right or to provide a substitute vehicle, or

(ii) if the damage to, or failure of, the vehicle is such that in the opinion of the said authority it cannot be set right within a period of two months from the date of occurrence, direct the holder of the permit to provide a substitute vehicle, and when the holder of the permit fails to comply with such a direction, may suspend, cancel or vary the permit accordingly.

(4) The Transport Authority giving a direction or suspending, canceling or varying a permit under sub-rule (3) shall send intimation, of the fact to the Transport Authority of any other region in which the permit is valid by virtue of countersignature or otherwise.

**Alteration to
motor vehicle**

107 (1) The owner of a transport vehicle or if the owner is not the holder of the permit, the holder of the permit at the time of making report under Section 52 to the registering authority shall also forward a copy thereof along with a fee as specified under Rule 126 to transport authority by which the permit relating to the vehicle was issued, or in the case of a permit relating to a service of stage carriages, to the Transport Authority by which the permit

was issued under which the vehicle is being used.

(2) Upon receipt of a report under sub-rule (1), the Transport Authority by which the permit was issued may if the alteration is such as to contravene any of the provisions or conditions of the permit-

- (i) vary the permit accordingly; or
- (ii) require the permit holder to provide a substitute vehicle within such period as the authority may specify, and if the holder fails to comply with such requirement, cancel or suspend the permit.

(3) A Transport Authority, varying, suspending or canceling a permit or causing another vehicle to be substituted for vehicle covered by a permit shall intimate particulars to the Transport Authority of any other region in which the permit is valid by virtue of countersignature or otherwise.

**Inspection of
transport vehicle
and their
contents**

108 Any registering authority or officer of transport department specified in sub-rule (1) of Rule 229 or a police officer not below the rank of sub-Inspector may at any time when the vehicle is in public place call upon the driver of the vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable such authority or officer to make reasonable examination of the contents of the vehicle or the number of passengers of the vehicle, as the case may be, so as to satisfy himself that the provisions of the Act and these rules and provisions and conditions of the permit in respect of the vehicle are being complied with

**Inspection at
other times**

109 The registering authority may, in order to satisfy himself that the provisions of Chapter VII of the Act and the rules made thereunder are being observed, at any time require the owner or person in-charge of any public service vehicle to produce the said vehicle before him or before an authority appointed by him for this purpose at such time and place as he may by general or special order direct, and the owner or person in-charge of any such public service vehicle shall provide the registering authority or any officer appointed by him full facilities for inspecting the said vehicle and shall permit access to his premises for this purpose.

**Temporary
authorization in
lieu of permit**

110 (1) where the holder of a permit submits the permit to the Transport Authority for renewal or countersignature of the permit or for any other purpose to a police officer or any court or other competent authority and such officer, court or authority takes temporary possession of the permit or the registration certificate or certificate of fitness or the Driving Licence or the Conductor's Licence (hereinafter called in this rule the documents) from the holder thereof for any purpose, such Transport Authority or the police officer or the Court or other competent authority as the case may be shall immediately furnish to the holder of the permit a receipt for the documents and a temporary authorization in Form

SR-35 to ply the vehicle during such period as may be specified in the said temporary authorization, and, during the said period, the production of the temporary authorization on demand shall be deemed to be the production of the documents :

Provided that the authority by which the temporary authorization was granted shall extend the period for which the temporary, authorization is to remain valid until the documents are returned, but such extension shall not be beyond the period of validity of the documents.

(2) Until the documents referred to in sub-rule (1) are returned to the holder thereof, the vehicle concerned shall not be plied beyond the period as specified in the temporary authorization referred to in sub-rule (1) or, as the case may be, as extended under proviso to that sub-rule.

(3) No fee shall be payable in respect of such temporary authorization.

Prohibition of painting or marking in certain manner

111 (1) a Transport Vehicle when regularly used by or under a contract with the Indian Posts Department shall be painted in postal red colour.

(2) Vehicles belonging to Uttarakhand Police shall be painted in combination of blue and red colours or in deep Khaki colour.

(3) The vehicles of Uttarakhand Transport Corporation shall be painted in white with green strips.

(4) No other transport vehicle plying in the States shall be painted in any of the said colours or colour combination prescribed by the Central Government in respect of Tourist Vehicles and a vehicle covered by National Permit or those prescribed in sub-rule (1), (2) and (3) above.

Licensing of agents engaged in business of collecting forwarding and distributing goods carried by goods carriages.

Definitions

112 In Rules 113 to 120 unless the context otherwise requires—

- (a) 'Agent' means any person, who is engaged as such directly or indirectly in the business of collecting, forwarding or distributing goods carried by goods carriages;
- (b) 'agent's licence' means a licence issued to an agent under Rule 114 for the principal establishment and includes a supplementary licence issued to such agent for any additional establishment.
- (c) 'licensing authority' means the Regional Transport Authority of the region in which the applicant has his principal place of business or intends to carry on the business, as the case may be.

**Prohibition to act
as an agent
except under
licence**

113 No person shall act as an agent unless he holds a valid licence authorizing the carrying on the business of an agent at the place or places specified in the licence.

**Grant of Agents
licence**

114 (1) Any person desiring to obtain an agents licence shall make an application in Form SR-36 to the licensing authority.

(2) The application shall be accompanied by the fee as specified under Rule 126.

(3) In considering an application made under this rule, the licensing authority shall have due regard, among other things to

-

(a) the number of goods carriages either owned or controlled by the applicant;

(b) the suitability of the accommodation possessed by the applicant for the storage of goods;

(c) the facilities provided by the applicant for parking the goods carriages while loading and unloading of goods without hindrance to the general traffic in the area; and

(d) the financial resources of the applicant and his ability to run the business efficiently.

(4) The licensing authority, if there is no valid ground for rejection of the application, shall grant a licence or a supplementary licence for a branch office in Form SR-37 or SR-38, as the case may be, specifying the place or places, where the business may be carried on:

Provided that the licensing authority shall not refuse to grant a licence or supplementary licence for a branch office applied for unless the applicant is given an opportunity of being heard and the reasons of refusal are recorded and communicated to him in writing.

(5) The details of establishment of branch office such as municipal house number the nearest road, bye-lane, the postal delivery district and other landmark in the vicinity to enable identification of the place of licence duly attested by the licensing authority, shall be attached to the licence.

(6) The licence shall be valid for a period of five years from the date of issue. The date of expiry of the supplementary licence shall be coterminous with the date of expiry of the principal licence irrespective of the date on which the supplementary licence is granted.

(7) The licence shall be nontransferable.

**Security for
complying with
the conditions**

115 (1) For ensuring proper compliance with the conditions of licence referred to in Rule 118, the applicant shall at the time of granting a licence, deposit, a security of rupees ten thousand only, either in cash or in the form of any Government security approved by the licensing authority.

(2) Subject to the provisions of Rule 121, the security shall be refundable to the licensee on the expiry of the licence or closing down of the business by him whichever is earlier.

**Renewal of
Agent's licence**

116 (1) A licence may be renewed on an application in Form SR-39 made to the licensing authority not less than 30 days before the date of expiry. Such application shall be accompanied by the principal and the supplementary licence if any and the fee as specified under Rule 126.

(2) The licensing authority may subject to the consideration applicable to the grant of licence, either renew or refuse to renew the licence.

(3) The renewal of licence shall be made by endorsement of renewal thereon by the licensing authority.

(4) The provisions of Rules 114 and 115 shall mutatis mutandis apply to renewal of licence also.

**Issue of duplicate
licence**

117 If at any time, an agent's licence is lost, destroyed or torn or otherwise defaced so as to be illegible, the agent shall forthwith apply to the licensing authority for the grant of a duplicate licence. The application shall be accompanied by a fee as specified under Rule 126. Upon receipt of such an application, the authority may ask the applicant to file an affidavit or declaration that the licence has actually been lost or destroyed and after satisfying itself that the same has been so lost or destroyed, issue a duplicate licence clearly stamped "duplicate" in red ink. Where a duplicate agent's licence has been granted on representation that the licence originally granted has been lost or destroyed and the original licence is subsequently found, the original licence shall be surrendered to the licensing authority.

**Conditions for
agent's licence**

118 An agent's licence shall be subject of the following conditions, namely—

- (i) that the licensee shall subject to the Provisions of Rule 120 provide places for loading and unloading of goods;
- (ii) that the licensee shall be responsible for proper arrangement for storage of goods collected for dispatch and delivery;
- (iii) that the licensee—
 - (a) shall be responsible for proper delivery of the goods to the consignee;
 - (b) shall be liable to indemnify the consignee for any loss or damage to goods while in his control or possession;
 - (c) shall not issue a goods transport receipt without having actually received the goods;
 - (d) shall not deliver the goods to the consignee without actually receiving from the consignee a

goods transport receipt or, if the receipt is lost or misplaced, an indemnity bond covering the value of goods;

- (iv) that the licensee shall insure the goods against any loss or damage while in his control or possession;
- (v) that the licensee shall maintain proper record of the vehicles under his control and of the collection, dispatch any delivery of goods which shall be open to inspection by the Regional Transport Authority or by any person duly authorized in this behalf by that authority and shall furnish to the licensing authority by 31st March every year a return in respect of the previous calendar year in Form SR – 40;
- (vi) that the licensee shall furnish the operator with correct figures of the freight receivable by them from the consignors or the consignees;
- (vii) that the licensee shall maintain proper accounts of the commission charged by him and cause the same audited by qualified auditor annually;
- (viii) that the licensee shall ensure that the goods vehicles under his control have valid permits for routes on which the vehicles have to ply;
- (ix) that the licensee shall maintain in good condition a weighing device capable of weighing at a time not less than 226 Kgs;
- (x) that the licensee shall attend his customers in the order in which they approach him :

Provided that customers in respect of such perishable goods as may be notified by the State Government in the official Gazette shall be given priority over other customers and shall be attended to in the order in which they approach the licensee;

- (xi) that the licensee shall assign the available traffic amongst the operators in the order in which they have approached him and shall maintain a register chronologically recording particulars of the available traffic and the waiting operators;
- (xii) that the licensee shall observe such other conditions as the licensing authority may specify in the licence.

Particulars to be mentioned in contract of agency

119 All contracts entered into by the licensee for the purpose of collecting, forwarding and distributing goods shall be in writing and shall contain the following particulars—

- (i) name and address of the consigner and the consignee;
- (ii) description and weight of the consignment;
- (iii) destination and its distance in kilometers from the starting station;
- (iv) freight per tonne per kilometer and for the whole

- consignment;
- (v) delivery instructions e.g., the date by the which and the place where the goods are to be delivered, to the consignee;
- (vi) terms of payment agreed upon;
- (vii) name of the owner and driver, the registration number of the vehicle and amount of the commission.

Premises to be used

120 (1) The Licensing Authority may in consultation with the local authority and the Incharge of the Police Station having jurisdiction over the area concerned either approve or refuse to approve any premises owned by or is in the possession of a licensee or an applicant for agents licence to be used for storage of goods and loading and unloading thereof having regard to the suitability of the site, sanitary conditions, storage capacity of the premises and the parking space available for goods vehicles etc.

(2) Any approval under sub-rule (1) shall be subject to the following conditions namely--

- (i) that the premises shall at all times be kept in a clean condition and goods state of repairs;
- (ii) that the premises shall be administered in a seemly and orderly manner;
- (iii) that the licensee shall take all possible precautions to ensure that no breach of any of the provisions of the Motor Vehicle Act, 1988 and the rules made thereunder is committed in respect of any vehicle entering or leaving the premises or in its parking.

(3) Where the licensing authority refuses to approve any premises under sub-rule (1), he shall record in writing his reasons for such refusal.

Suspension and Cancellation of a licence..

121. (1) Without prejudice to any other action which may be taken against a licensee, the licensing authority may by order in writing forfeit the whole or part of the security deposited under Rule 115 or cancel the agent's licence or suspend it for such period as it think fit if in its opinion any of the conditions under which the licence has been granted or under which any premises have been approved under Rule 120 has been contravened.

(2) Before making any order of for forfeiture of security or cancellation or suspension of the licence under this rule, the licensing authority shall give the licensee an opportunity of being heard and shall record reasons in writing for such forfeiture cancellation or suspension.

(3) Where a licence is liable to be cancelled or suspended under this rule and the licensing authority is of opinion that having regard to the circumstances of the case it would not be necessary or expedient so to cancel or suspend the licence, if the licensee agrees to pay a certain sum of money then notwithstanding anything contained in sub-rule (1), the licensing

authority may instead of cancelling or suspending the licence as the case may be, recover from the licensee the sum of money agreed upon.

(4) Where the security deposited under Rule 115 has been forfeited in whole or in part, the licensee shall within fifteen days of the date of the order deposit the amount so forfeited so as to make good the total amount of the security failing which the licence shall stand suspended till such time as the amount has been deposited.

(5) Notwithstanding anything contained in sub-rule (4), the licensing authority may, if he is satisfied that the licensee could not for reasonable cause deposit the amount within the period specified in the foregoing sub-rule, extend the period for depositing the amount.

Display of agents licence

122 (1) A collecting agent shall carry with him his agent's licence and shall produce it on demand to any officer of the Transport Department mentioned in sub-rule (1) of Rule 229 of these rules or any police officer in uniform not below the rank of a Sub-Inspector.

(2) A forwarding agent shall exhibit his agent's licence at a prominent place in the premises approved under Rule 120 and the licence shall be made available for inspection by the officer of the Transport Department mentioned in sub-rule (1) of Rule 229 these rules or any police officer in uniform not below the rank of Sub-Inspector.

(3) A collecting and forwarding agent shall carry with him his agent's licence and shall produce it on demand to any officer of the Transport Department mentioned in sub-rule (1) of Rule 229 or any police office in uniform not below the rank of Sub-Inspector and shall also cause a true copy of his agent's licence to be exhibited at a prominent place in the premises approved under Rule 120.

Appeals

123 (1) Any person aggrieved by an order made under sub-rule (3) of Rule 114, sub-rule (2) of Rule 116 sub-rule (3) of Rule 120 or sub-rule (1) of Rule 121 may appeal to the State Transport Appellate Tribunal constituted under Section 89 the Motor Vehicles Act, 1988 within 30 days from the date of receipt of the order passed by the licensing authority :

Provided that a memorandum of appeal shall be accompanied by a fee specified under Rule 126.

(2) The memorandum of appeal shall be filed in duplicate setting forth concisely the grounds of objection and shall be accompanied by a certificate copy of the order appealed against.

Levy of fee for supply of copies by transport authority

124 Copy of any order against which appeal may be filed under rule 123 or any document shall on an application by a party in that behalf be issued to him on payment of fee as specified under Rule 126 and the stamp duty payable under the Indian Stamp's Act,

Licensing and regulation of conduct of agents for sale of tickets for travel by public service vehicles, traveling agents or operator

1899 as amended in its application to the State of Uttarakhand?

125 (1) (a) Every owner of a public service vehicle to be let or plied for hire who has appointed on his behalf as the agent who has been engaged in the sale of tickets to passengers for travels by such vehicle; or

(b) Any travel agency operated by an individual or company who has its own vehicles or has hired them on lease at least for one year and who is engaged in providing the services relating the to road transport, air, rail, ship, passport, viza, place of stay and tour etc.

(c) Any tour operator individual or company who has its own vehicles or has hired them on lease at least for one year and who is engaged in providing the services relating to transport, place or stay, sightseeing, entertainment etc.

Shall intimate to the Regional Transport authority concerned his name and address.

(2) No person shall act as an agent for the owner of such public service vehicle and no traveling agent or tour operator shall act as such and no owner shall so employ any person unless he has obtained an agent's licence in Form SR-41 from the Regional Transport Authority concerned.

Explanation. – For the purpose of this sub-rule, persuading any person, soliciting or attempting to persuade any person to travel in a vehicle shall be deemed to be act of agent for the sale of tickets for travel thereby or shall be deemed to be act of travel agency or tour operator

(3) An agent's licence shall be valid for a period of three years from the date of issue or renewal and shall be effective only in region wherein it is issued or renewed.

(4) No person under the age of eighteen years shall hold an agent's licence.

(5) Application for an agent's licence shall be made in writing to the Regional Transport Authority of the region wherein the applicant resides, in Form SR-42 and shall be accompanied by two clear copies of a recent photograph of the applicant and the fee specified under Rule 126.

(6) The applicant at the time of grant of agents licence shall furnish a security of rupees five thousand in cash or in Government securities recognized by the licensing authority, for compliance with the conditions of the licence.

(7) The security deposit of the agent, unless forfeited shall be refunded at the expiry of licence or earlier. In the event of voluntary closing down the business before the expiry of the licence.

(8) Without prejudice to any other action that may be taken against the licensee, the licensing authority at its discretion

may by an order in writing forfeit either in full or in part the security deposit.

Provided that before forfeiting the security deposit, the licensing authority shall give the licensee an opportunity of being heard and shall record reasons in writing for such forfeiture.

(9) The fee for grant or renewal of or issue of a duplicate agent's licence shall be as specified under Rule 126.

(10) An application for the renewal of an agent's licence shall be made in writing accompanied by the fee as specified under Rule 126 and the licence, shall be addressed to the Regional Transport Authority, by which the agent's licence was issued.

(11) If at any time original licence is lost or destroyed, the duplicate may be issued after proper verification which shall be clearly marked in red ink "Duplicate". The fee for issue of a duplicate licence shall be as specified in rule-126.

(12)(i) Every agent shall carry with him his licence while on duty and shall produce it on demand by any officer authorized by the licensing authority.

(ii) In the case of licensee firm the licence shall be exhibited at a prominent place in the office and shall be made available for inspection on demand by any officer authorized by the licensing authority.

(13) Conditions for travel agent /tour operator licence :-

(i) The licensee shall not concern himself/herself either directly or indirectly with any vehicle that is not covered by a permit.

(ii) The licensee shall behave in a civil and orderly manner with passengers.

(iii) The licensee shall possess and maintain fully furnished office with adequate staff to attend the need of customers/passengers and in the case of travel agency/tour operator shall maintain records containing complete particulars regarding names and addresses of the tourists, the fare collected, the particulars of journeys, the particular of the contract carriage for the journey and shall furnish the details thereof to the licensing authority.

(iv) The licensing authority may vary the conditions of licence or attach new conditions to such licence any time.

(v) No licensee shall lend or transfer the licence to any person.

(vi) In the case of traveling agent or tour operator the licensee shall maintain an office under the charge of full time member who should be in a position to give accurate and upto date information regarding the transport. Accommodation facilities and general information about travel.

(vii) No agent or travel agent or tour operator to whom the

licence is granted shall advertise in any newspaper, book list, classified directory or other publication unless, such advertisement contains the licence number, the date of expiry of the licence and the particulars of the authority which granted the licence.

- (viii) The licensee shall maintain a complaint book which shall be produced at the time of renewal. The renewal shall be refused if there is any serious complaint.

(14) The Regional Transport Authority may, for reasons to be recorded in writing, decline to issue or renew an agent's licence or grant of licence on such conditions as he may consider fit to impose.

(15) (i) The Regional Transport Authority may, for reasons to be recorded in writing, suspend, cancel or revoke an agent's licence.

(ii) On an agent's licence being suspended, cancelled or revoked or its renewal having been refused, it shall be surrendered forthwith to the Regional Transport Authority which issued the licence.

(16) An agent shall, on demand by any officer of the Transport Department not below the rank of Assistant Regional Transport Officer produce his agent's licence for inspection.

(17) The Regional Transport Authority may by order specify the uniform to be worn by an agent.

(18) No person shall hold more than one agent's licence effective in the same region.

(19) The agent shall, while, on duty wear in a conspicuous place on his left side of chest a metal badge as prescribed in the Form SR-43 issued by the Regional Transport Authority on payment of a fee as specified under Rule 126 alongwith his name plate in black letter on white background in bold letters in English or Hindi. No agent shall lend or part with the badge to any other person and he shall surrender it to the Regional Transport Authority in the event of his licence being suspended, revoked or not renewed. If the badge is lost or destroyed a duplicate badge shall be issued by the authority which issued it on payment of fee as specified under the said rule.

(20) Any person aggrieved by an order made under sub rule (8), (14) and (15) may appeal to the State Transport Appellate Tribunal constituted under section 89 of the Act within thirty days from the date of the receipt of the order passed by the licensing authority.

Provided that a memorandum of appeal shall be accompanied by a fee specified under Rule 126.

Fee

126 The fees which shall be charged under the provisions of this chapter shall be as specified in the table below :

TABLE

Sl.	Purpose	Amount (in rupees)	Rule
1	2	3	4
(1)	For grant, renewal and countersigning of permits-		66,76,82,83
	A- Of permit other than temporary permit-		
	(i) for stage carriage	5,800	
	(ii) for goods carriage	5,800	
	(iii) for contract carriage other than motor cab and maxi cab-	7,200	
	(iv) for private service vehicle	3,600	
	(v) for maxi cab-		
	(a) for one region	1,800	
	(b) for whole of Uttarakhand	3,600	
	(vi) for motor cab-		
	(a) for one region	900	
	(b) for whole of Uttarakhand	1,800	
	(c) for three contiguous states including Uttarakhand	1,800	
	(d) for whole of India	3,000	
	B- Of temporary permit-		75,76,82
	(i) For first three days	360	
	(ii) After three days upto the end of the week	360	
	(iii) For every additional week	360	
(2)	Application fee for replacement of a vehicle under a permit	220	85
(3)	For Transfer of permit		88
	(i) for stage carriage	7,200	
	(ii) for contract carriage other than maxi cab and motor cab	7,200	
	(iii) for goods carriage	600	
	(iv) for maxi cab	240	
	(v) for motor cab	240	
	(vi) Provided that the fee for transfer of permit to the legal heirs of the permit holder in the event of his death shall be	Half of the fee specified in clause (I) to (V)	
(4)	For issue of a duplicate permit-	120	89
(5)	A- For appeal against the order of the State or Regional Transport Authority-		92
	(i) In respect of auto-rickshaws permit-	600	

	(ii) In respect of transport vehicle-	1200	
	B- For filling any miscellaneous application containing a prayer before the State Transport Appellate Tribunal	Rs. 10 in the form of court fee Stamp	92
(6)	For supply of copies-	Rs. 10 Per copy per document in the form of court fee stamp in addition to the Stamp duty payable.	92, 94
(7)	For inspection of files-	Rs. 10 per hour in addition to court fee payable.	92, 96
(8)	For entry of alteration of motor vehicle in the permit-	60	107
(9)	For grant or renewal of Agent's Licence-		114, 116, 117
	(i) For grant of Licence for principal establishment-	1200	
	(ii) For grant of Supplementary Licence of each additional establishment-	900	
	(iii) For renewal of Agents Licence if application is made within time-		
	(a) in respect of Licence for principal establishment-	1200	
	(b) in respect of Supplementary Licence for each additional establishment-	900	
	(iv) For renewal of Agent's Licence if application is not made within time-		
	(a) in respect of Licence for principal establishment-	1440	
	(b) in respect of supplementary Licence for each additional establishment-	960	
	(v) For issue of duplicate Agent's Licence -		
	(a) in respect of Licence for principal establishment-	120	
	(b) in respect of Supplementary Licence for each additional establishment-	90	
(10)	For appeal against the order of Licensing	240	123

	Authority-		
(11)	For copy of document	Rs. 2 per page in addition to the stamp duty payable.	124
(12)	(A) For application for grant or renewal of Agent's Licence for sale of tickets/Travel Agent/Tour Operator	120	125
	(B) For grant or renewal of Agent's Licence for sale of tickets for travel by public service vehicle or Travel Agent/Tour operator as the case may be-		125
	(i) for grant of Licence -	240	
	(ii) for renewal of Licence -	240	
	(iii) for issue of duplicate Licence -	60	
	(C) (i) for issue of a badge-	120	
	(ii) for issue of a duplicate badge-	240	

CHAPTER VI

SPECIAL PROVISIONS RELATING TO STATE TRANSPORT UNDERTAKINGS

Particulars to be contained in the proposal Forms of the Scheme

127 Every proposal regarding a scheme prepared under Section 99 shall, as far as possible, be published by the State Government in Form SR-44.

Manner of filling objections

128 (1) Objections under sub-section (1) of Section 100 shall be filled in the form of a memorandum, in triplicate, setting forth concisely the grounds of objections to the proposal.

(2) The memorandum of objections shall also be addressed to the Secretary, Transport Department, and Uttarakhand.

(3) The memorandum of objections shall also contain the following information:

- (a) full name and address of the objector on whom services of notices and orders under these rules are to made;
- (b) whether or not such person is a holder of a permit issued under the provisions of the Act;
- (c) the particulars of the route or routes or the area or areas specified in such permit or permits;
- (d) Whether the objector wants to be heard in support of his objection if so, whether he will appear in person or through his representative.

(4) An objector, if he so desires, may also submit evidence to support his objections in the form of affidavit along with the memorandum of the objection.

**Manner of
consideration
and disposal of
objections**

129 (1) The objections so received shall be considered and disposed of by such officer of the State Government as may be authorized in this behalf by the Governor under Clauses (1) of Article 154 of the Constitution or under the rules made by him in pursuance of Clause (3) of Article 166 of the Constitution.

(2) Such officer shall issue notices to the objectors who desire to be heard and the State Transport Undertaking calling upon them to appear before him in person or through a duly authorized agent or counsel and shall fix the date, time and place for hearing of the objections and the submission to the State Transport Undertaking.

- (3) The notice under sub-rule (2) shall be served by –
- (i) publishing at least ten days before the date fixed for hearing a general notice in not less than one newspaper in regional language circulating in the area or route proposed to be covered by such proposal, giving the date, time and place fixed for the hearing, and
 - (ii) sending notice by post under certificate of posting, to the objector at the address as shown in the memorandum of objections and to the State Transport Undertaking.

Provided that where a general notice has been published as aforesaid the service thereof, shall notwithstanding anything contained in Clause (ii) be deemed to have been duly effected on the objector and the State Transport Undertaking.

(4) No objector shall be entitled to be heard unless the objections are made in accordance with the provisions of these rules.

- (5)(a) such officer may, if sufficient cause is shown at any stage of the hearing grant time to the parties or to any of them and may from time to time adjourn the hearing.
- (b) in every case such officer shall fix the date for the further hearing of the objections and may make such order at it thinks fit with respect to the costs occasioned by adjournment.

Provided that such officer shall dispose off the objection within the period of six months from the date of issuance of notices under sub-rule (2).

(6) The cost of producing any evidence shall be borne by party producing the same.

(7) After the hearing of such parties as appear, such officer shall give a decision approving or modifying the proposal as he may deem proper.

**Publications of
the approved
scheme**

130 Subject to the provisions of the proviso to sub-section (3) of Section 100, the scheme as approved or modified by such officer, shall as far as possible be published in the official Gazette

in Form No. SR-45 and in not less than one newspaper in regional language circulating in the area or route proposed to be covered by such approved scheme

**Application for
issue of permit
on behalf of
State Transport
Undertaking**

131 (1) State Transport Undertaking or an officer duly authorised by it in this behalf may apply in Form SR-46 along with a fee of rupees two hundred, if the application is made before the State Transport Authority or rupees one hundred if the application is made before the Regional Transport Authority for stage carriage permit or a goods carrier permit or a contract carriage permit in respect of notified route or notified area in pursuance of an approved scheme.

(2) Upon receipt of an application under sub-rule (1), the State Transport Authority or the Regional Transport Authority, as the case may be, shall issue a permit to the State Transport Undertaking for the notified route or notified area.

(3) Every permit issued as aforesaid shall be in Form SR-47.

(4) In case any part of the permit is mutilated or lost, duplicate thereof shall be issued by the State Transport Authority or the Regional Transport Authority concerned, as the case may be on payment of fee of Rupees one hundred twenty for part 'A' or Rupees fifty for part 'B'

**Disposal of
articles found in
Transport
Vehicles**

132 (1) Where any article is found in any Transport Vehicle operated by the State Transport Undertaking and it is not claimed by the owner or consignee thereof in the case of any perishable article within twenty four hours and in the case of any non-perishable article within sixty days from the arrival of such vehicle at the bus station of destination, it may be sold by the State Transport Undertaking by public auction.

(2) In the case of sale of any non-perishable article, publicity of the public auction shall be made at least ten days before the date fixed for auction by a general notice in not less than one newspaper in regional language circulating in the area in which the said bus station of destination is situated. Such general notice shall also be pasted on the notice board of such bus station at least ten days before such auction.

(3) In the case of perishable article the State Transport Undertaking may dispose of the same at any time as the circumstances may require but before making sale of such article the date and time of public auction shall be announced on loudspeakers within the premises of the said bus station.

**Manner of
Service of order**

133 (1) The State Transport Authority or the Regional Transport Authority, as the case may be, shall cause a copy of every order of cancellation or modification of the terms of any permit, to be published in official gazette.

(2) The State Transport Authority or the Regional

Transport Authority, as the case may be, shall also cause to be served such order upon the permit-holder to whom it relates by sending a copy of the same by registered post or delivering it to the permit-holder in person. If such order cannot be served in the manner aforesaid it may be served by delivering the same to any adult member of his family residing with him or by affixing it on some conspicuous place at his residence or place of business or in such other manner as the State Transport Authority or the Regional Transport Authority, as the case may be, thinks fit.

**Issue of Certified
Copies of
Proceedings
Inspection**

134 (1) Certified copies of the proceedings before the officer referred to in sub-rule (1) of Rule 129 including documents filed and the statements recorded, if any, at the hearing shall be issued under the signature of a section officer of the Transport Department of the State Government.

(2) The charges for giving copies shall be as follows :-

(i) for ordinary copies Rupees two per page.

(ii) for urgent copies rupees five per page.

(3) The copying charges shall be payable in the form of non-judicial stamps.

(4) An urgent copy shall, as far as practicable, be supplied within forty-eight hours of the receipt of the applicant thereof,

(5) Inspection of the documents relating to the proceedings of the hearing of the objections filed under sub-section (1) of Section 100 of the Act shall be allowed on a payment of rupees ten which shall be payable in the form of court fee stamps.

(6) Inspection will be allowed only to the objector concerned or to his duly authorized agents also the State Transport Undertaking.

CHAPTER VII

CONSTRUCTION, EQUIPMENT AND MAINTENANCE OF MOTOR VEHICLES

General

135(1) Every public service vehicle, and all parts thereof including paint work and varnish doors, windows, seats, roofs, springs, wheels, cushions lining panels and all furniture's and apartments shall be maintained in a clean and sound condition, and the engine mechanism and all working parts in reliable working order.

(2) Every motor vehicle manufacturer or his authorized dealer or representative shall present an application in form S.R. 47A alongwith fees prescribed in sub rule (4) before the Transport Commissioner for approval of registration of Motor Vehicle in the State. Such vehicle shall be inspected by the competent authority or committee specified by the Transport Commissioner. The competent authority or the committee as the case may be shall consider the admissibility of the vehicle for operation on hill routes, its wheelbase, overhang, seats,

emergency exit, tax paid etc. and shall present its recommendation before the Transport Commissioner within a week from the date of inspection.

(3) On the basis of such recommendations the Transport Commissioner shall approve the registration of such motor vehicle in the State.

(4) Fees for inspection of the vehicle under sub rule (2) shall be-

for two wheeler	Rupees 2000.00
for light motor vehicle	Rupees 5000.00
for medium and heavy motor vehicle	Rupees 10000.00

Stability

136 (1) The stability of a double-decked public service vehicle shall be such that when loaded with weight of 60 kilograms per person placed in the correct relative positions to represent the driver and conductor (if carried) and a full complement of passengers on the upper deck only, if the surface on which the vehicle stands were tilted to either side to an angle of 28 degrees from the horizontal point at which overturning occurs would not be reached.

(2) The stability of a single-decked public service vehicle or single-decked trolley bus, other than a motor-cab, shall be such that under any condition of load, at an allowance of 65 kilograms passenger and his personal luggage, for which the vehicle is registered, if the surface on which the vehicle stands tilted to either side to an angle of 35 degrees from the horizontal point at which overturning occurs would not be reached.

(3) For the purpose of conducting test of stability the height of any stop, used to prevent a wheel of the vehicle from slipping sideways shall not be greater than two-third of the distance between the surface upon which the vehicle stands before it is tilted, and that part of the rim or that wheel which is then nearest to such surface when the wheel is loaded in accordance with the requirements of this rule.

Seating room

137 (1) In every public service vehicle other than a motor-cab and tourist vehicle, there shall be provided for each passenger reasonably comfortable cushioned seat of not less than 38 x 38 centimeters measured on straight lines along and a right angle to the front of each seat, and

- (i) when the seats are placed along the vehicle, the back of the seats on one side shall be at least 1.40 meters distance from the back of the seats on the other side;
- (ii) when the seats are placed across the vehicle and are facing in the same direction there shall be everywhere a clear space of not less than 70 centimeters between the back of the seats; and
- (iii) when seats are placed across the vehicle and are

facing each other, there shall be everywhere a clear space of not less than 1.30 meters between the back of facing seats.

(2) The back of all seats shall be to a height of 50 centimeters above seat level.

138 Notwithstanding anything contained in Rule 137 a registering authority may specify the conditions subject to which a limited number of standing passengers may be permitted to be carried in a vehicle.

Gangways

139 (1) In every compartment of every public service vehicle, other than a motor-cab, the entrance to which compartment is from the front or rear there shall be a gangway along the vehicle, and –

- (i) where seats are placed along the sides of the vehicle there shall be as gangway a clear space of not less than 61 centimeters measured between the front of the seats;
- (ii) where seats are placed across the vehicle there shall be as a gangway a clear space of not less than 31 centimeters between any part of adjoining seats or their supports; and
- (iii) where the vehicle has seats not across the full width of the body with one door either in the rear or in the near rear side and one seat along the full length of the side of the vehicle, there shall be as a gangway with a clear space of not less than 46 centimeters measured between the seats.

(2) where the vehicle has seats not across the full width of the body with separate doors to each seat, gangway from front to rear of the vehicle shall not be required.

Limit of seating capacity

140 Notwithstanding anything contained in these rules no public service vehicle, other than a motor-cab or a tourist vehicle, shall be registered for a number of passengers in excess of that number obtained by subtracting 90 kilograms, from the difference in kilograms between the gross vehicle weight and unladen weight of the vehicle and dividing the resulting figure by 150 in the case of a single decked vehicle and 130 in the case of a double decked or for such number of passengers that, when the vehicle is loaded in a normal manner the axle weight of any axle will exceed the registered axle weight for that axle.

First-aid box

141 Every public service vehicle other than a motor-cab in municipal and corporation area shall carry a fully equipped First-aid Box of design approved by the State Transport Authority along with instruction for the use of the First-aid materials issued by the said authority.

**Communication
with driver**

142 Every motor vehicle for the use of passengers, in which the driver's seat is separated from any passenger's compartment by a fixed partition which is not capable of being readily opened, shall be furnished with efficient means to enable the passengers in such compartment and the conductor, if any, to signal to the driver to stop the vehicle.

Internal Lighting

143 Every public service vehicle other than a motor-cab or a tourist vehicle having a permanent roof, shall be furnished with one or more electric lights adequate to give reasonable illumination through the passengers compartment or compartments including the bending, but such light or lights should be of such power or so screened as not to impair the forward vision of the driver.

**Electric lighting
compulsory**

144 No light other than an electric light shall be fitted to any public service vehicle.

**Spare wheel and
tools**

145 (1) Save as otherwise specified by the Regional Transport Authority in respect of municipal or cantonment areas, every public service vehicle shall at all times be equipped with not less than one spare wheel or rim fitted with a pneumatic tyre in good and sound condition ready, inflated and mounted, in such a way that it can be readily dismounted and fitted to the vehicle in the place of any one of the road wheels.

(2) Sub-rule (1) shall not apply to public service vehicle during the completion of any journey during which it has been necessary to bring the spare wheel or rim and tyre into use.

(3) Every public service vehicle shall at all times be furnished with efficient jack, air pump and other tools necessary to change a wheel or rim and tyre and with the equipment necessary to repair a puncture, one spare bulb for the head lamp, one for the tail lamp and one extra inner tube in serviceable condition for the tyres.

(4) Where the front wheels of a public service vehicle differ in size from the rear wheels two separate inflated tyres in good condition or rims or wheels shall be carried, one of the size of the front wheels and the other of the size of the rear wheels.

(5) Wherever, owing to the nature of the route, the Regional Transport Authority so directs, additional spare inflated tyres on wheels or rims shall be carried.

Fuel tanks

146 (1) No fuel tank shall be placed in any public service vehicle within sixty centimeters of any entrance or exit of a single-decked vehicle or lower deck of a double-decked vehicle.

(2) The fuel tank of every public service vehicle shall be so placed that no overflow there from shall fall upon any woodwork or accumulate where it can be readily ignited. The "off"

position of the means of operation shall be clearly marked on the outside of the vehicle. The filling points of all fuel tanks shall be outside the body of the vehicle, and the filter caps shall be so designed and constructed that they can be securely fixed in position.

Carburetors

147 In every public service vehicle any carburetor and apparatus associated therewith shall be so placed and shielded that no fuel leaking therefrom shall fall upon any part of fitting that is capable of igniting it or into any respectable where it might accumulate.

Excessive heat

148 Effective means shall be adopted for preventing the heat of the motor generator or exhaust pipe and its connections from injuriously affecting any part of the vehicle or causing discomfort to the passengers.

**Inflammable
fitting**

149 No celluloid or other highly inflammable material shall be used inside or outside any public service vehicle, except in electric batteries accumulators.

Electric Wires

150 All electric wires or leads shall be adequately insulated.

**Fire
Extinguishers**

151 Every public service vehicle other than a motor cab shall be equipped with one or more fire extinguishers of such types and capacity, as may be specified by the State Transport Authority and such fire extinguishers shall at all times be maintained in working condition.

Mudguards

152 Every motor vehicle except a tractor trailer shall unless adequate protection is afforded by the body of a motor vehicle be provided with mudguards or other similar fittings to catch so far as practicable mud or water thrown up by rotation of the wheels.

Head-room

153 Every public service vehicle other than a motor-cab, shall have the following internal height or head-room measured along the centre of the vehicle from the top of the floor boards or battens to the underside of the roof supports.

- (i) in the case of the single-decked vehicle not less than, 1.75 meters and not more than 2.00 meters;
or
- (ii) in the case of a double-decked vehicle, the registering authority concerned will decide the head-room.

Provided that the registering authority may vary the above measurements in respect of any public service vehicle plying solely in any special municipal or cantonment area and the environs thereof.

Driver's seat

154 (1) On every public service space shall be reserved for the driver's seat such as to allow him to have full and unimpeded control of the vehicle and in particular—

- (i) the part of the seat against which the driver's back rests shall not be less than 35 centimeters from the nearest point of the steering wheels;
- (ii) the width across the vehicle shall not be less than 70 centimeters and shall extend to the left of the centre of the steering column in no case less than 25 centimeters so than a line drawn parallel to the axis of the vehicle through the centre of any gear lever, break lever or other device to which the driver has to have frequent access lies not less than 6.5 centimeters inside width reserved for the driver's seat; and
- (iii) in the case of a public service vehicle, other than a motor-cab or a tourist vehicle the space reserved in accordance with Clause (ii) above shall at the left-hand and be enclosed with a hard wooden or other suitable partition to a height not less than 31 centimeters above the seat, and forward of the seat, above the floor of the vehicle.

Provided that any authority empowered in this behalf by the State Government may order relaxation of the provision of this sub-rule.

(2) Arm rests for the driver not more than 10 centimeters wide may be provided within the space specified in Clause (ii) of sub-rule (1).

(3) No public service vehicle shall be so constructed that any person may sit or any luggage may be carried on the right-hand side of the driver.

(4) Every public service vehicle shall be so constructed that, save for the front pillar of the body, the driver shall have a clear vision both to the front and through an angle of 90 degrees to his right-hand side. The front pillar of the body shall be so constructed as to obstruct the vision of the driver to the least possible extent.

Width of doors

155 Every entrance and exist of a public service vehicle other than a motor-cab or a tourist vehicle, shall be at least 55 centimeters in width and of sufficient height.

Grab-rail

156 A grab-rail shall be fitted to every entrance or exist, other than an emergency exit of a public service vehicles and other than a motor-cab or a tourist vehicle, to assist passengers in boarding or alighting from the vehicle

Steps

157 (a) In every public service vehicle, other than a motor-cab

or a tourist vehicle, the top of tread of the lowest step for any entrance or exit other than an emergency exit, shall not be more than 45 centimeters or less than 25 centimeters above the ground when the vehicle is empty. All steps shall be fitted with non-slip treads. Fixed steps shall not be less than 25 centimeters wide and shall in no case project laterally beyond the body of the vehicle unless they are not protected by the front wings (or otherwise) that they are not liable to injure pedestrians.

- (b) In the case of a double-decked vehicle -
 - (i) the risers of all steps leading from the lower to the upper deck shall be closed, and no unguarded aperture shall be left at the top landing board;
 - (ii) all steps leading from the lower to the upper deck shall be fitted with non-slip treads;
 - (iii) the horizontal distance from the nearest point of the riser of top step to the vertical line passing through the nearest point of the seat opposite to the top tread of the staircase excluding any garb rail which does not project more than 8 centimeters from the back of the seat, shall not be less than 65 centimeters.
 - (iv) the outer stringer of an outside staircase shall be so constructed or a band shall be so placed, as to act as a screen to persons ascending or descending and the height of the outer to guard rail shall not be less than 1.0 meter above the front of the tread of each step.

**Carriage of
luggage**

158 Every public service vehicle shall be provided with adequate means for the conveyance of a reasonable amount of luggage and with sufficient number of chains straps or other means of securing such luggage. No luggage shall be carried on the roof of the vehicle unless there has been affixed there, to guard rail of a type approved by the registering authority and a suitable waterproof covering is provided to protect the luggage in wet weather. The covering shall be securely fastened so as to prevent flapping.

Cushions

159 Where the seats of a public service vehicle are provided with fixed or movable cushions, the cushions shall be stuffed with suitable material and covered with leather or cloth of good quality or other suitable material capable of being kept in clean and sanitary condition.

**Body
dimensions and
guard rails**

160 (1) Every public service vehicle, other than a motor-cab or a tourist vehicle, shall be constructed that its body dimensions and guard rails conform to the following specifications :-

- (i) in the case of single-decked vehicle with an enclosed body—

- (a) the height of the body sides from the floor or the height to the sills of the windows, as the case may be shall not be less than 70 centimeters.
- (b) If the height of the sides of the body or the sills of the windows, as the case may be, above the highest part of any seat, is less than 45 centimeters provision is made by means of guard rails or otherwise to prevent the arms of seated passengers being thrust through and being injured by passing vehicles or the extent to which the side windows or venetians can be lowered is such that when lowered their top edge is not less than 45 centimeters above the highest part of any seat;
- (ii) in the case of a single-decked vehicle with open sides, guard rails shall be provided along the right hand side of the vehicle to prevent any person other than the driver from mounting or alighting from the vehicle from that side;
- (iii) in the case of a double-decked vehicle with an uncovered top deck, the top deck shall be provided with side and end rails the top of which shall be at least 90 centimeters above the deck boards or battens at the sides and 46 centimeters above the highest part of any seat, and the top front and back rail shall be at least 1.00 meter above the deck boards or battens and shall follow the chamber of the deck.

(2) for the purpose of this rule the seat back shall not be deemed to be a part of the seat.

**Protection of
passengers from
weather**

161 (1) Every public service vehicle shall be either constructed with a fixed and water-tight roof or equipped with a water-tight hood that may be raised or lowered as required.

(2) Save in the case of the uncovered top-deck of a double-decked vehicle, every public service vehicle shall have suitable windows, Venetians or screens capable at all times of protecting the passengers from the weather without preventing adequate ventilation of the vehicle. When the screens are made of fabrics the whole of them shall at all times be fastened securely to the vehicle.

(3) When glass windows or Venetians are used, they must be provided with effective means to prevent their rattling.

Floor boards

162 (1) The floor boards of every public service vehicle shall be strong and closely fitted so as to exclude as far as possible draughts and dust.

(2) The floor boards may be pierced for the purpose of

drainage but for no other purpose.

Painting of Motor Vehicles

163 (1) subject to Rule 111 and sub-rule (2) a motor vehicle of four wheel drive such as jeeps and command cars which originally belonged to the military shall be painted in any of the following color:

- (a) White,
- (b) Black,
- (c) Green.

(2) Every motor cab shall be painted in black colour with a yellow hood and no other motor car shall be painted in this colour combination.

Provided that this sub-rule shall not apply to Tourist Motor Cabs and motor cabs of foreign make of horse power twenty four and above.

Explanation.- For the purpose of this rule Tourist Motor Cab means a motor cab to which a contract carriage permit is issued by the State Transport Authority mainly for the conveyance, of foreign tourists.

(3) No motor vehicle other than a military motor vehicle shall be used, in any public place unless it is painted in any colour different from those usually used for military motor vehicle.

Sounds signals- Restrictions on use of

164 (1) No driver of a motor vehicle shall sound the horn or other device for giving audible warning with which the motor vehicle is equipped or shall cause or allow any other person to do so, needlessly or continuously or to an extent beyond that which is reasonably necessary to ensure safety.

(2) The District Magistrate may, by notification in one or more news-papers in the said city or district, as the case may be, and by erection at suitable places of mandatory sign no. M-18, as set forth in part A of the First Schedule to the Act, prohibit the use by drivers or motor vehicles of any horn, gong or other device for giving audible warning in any area within the city or district and during such hours as may be specified in the notification.

Provided that when the District Magistrate prohibits the use of any horn, gong or other device for giving audible warning during certain specified hours, he shall cause a suitable notice, in English and in the script of the city or district, setting forth the hours within which such use is so prohibited, to be affixed below the traffic sign.

Dangerous projections

165 (1) NO mascot or other similar fitting or device shall be carried by any motor vehicle registered under the Act, in any position where it is likely to strike any person with whom the vehicle may collide unless the mascot is unlikely to cause injury to any person by reason of any projection thereon.

(2) No motor vehicle shall be permitted to be used which is so constructed that any axle hub or hub-cab projects

laterally more than 10 centimeters beyond the rim of the wheel to which it is attached, unless the hub or hub-cap is adequately guarded either by the body or wing of the vehicle or a separate guard.

**Construction
and equipment
of Auto
Rickshaws**

166 (1) Notwithstanding anything contained in these rules every auto-rickshaw shall be constructed and equipped in accordance with the following provisions :

- (a) Every Auto-Rickshaw body on a scooter shall be built on the latest model vehicle or on such vehicle as has been registered not more than 4 years back.
- (b) Type of body and material –
 - (i) The body of every auto-rickshaw shall be either of a station wagon or a box type or haikney-carriage type as approved by the State Transport Authority soundly constructed for the satisfaction of the registering authority and shall be securely fastened to the frame of the vehicle. The material used in the construction shall be strong and of good quality.
 - (ii) The roof shall be so constructed as to provide protection to passengers from sun and rain and shall be either of metal sheeting or canvas or some other suitable material.
 - (iii) In every auto-rickshaw the right side should either be blocked by a fixed door up to waist level of the passenger in sitting position or provided with two metal rods one below the other leaving in between a gap of 15 centimeters so that the lower one should at the level of the hip of the passenger and that both the rods should be welded to the frame at both the ends.
- (c) **Overhang.-** The overhang of the body shall not exceed forty one per cent of the distance between the plane perpendicular to the exist of the auto-rickshaw which passes through the centre of the front wheel and the centre of the rear axle.
- (d) **Overall width.-** the overall width measured at right angels to the axis of the planes enclosing the extreme points shall be not more than 1.42 meters and not less than 1.36 meters.
- (e) **Overall height.-** The overall height measured from the surface on which auto-rickshaw stands shall not exceeds 1.83 meters, and there shall be at least 1.22 meters clear head space between floor board and the roof.
- (f) **Road clearance.-** The road clearance of every

- auto-rickshaw shall be not more than 20.5 centimeters and not less than 10.2 centimeters.
- (g) **Clearance of Floor Board.-** The floor board shall be not more than 56 centimeters above the surface on which the auto-rickshaw stands.
 - (h) **Light.-** Every auto-rickshaw shall be fitted with one head and two side white lights or two head lights on the body in the front in addition to the front lights and auto-rickshaw shall be fitted with rear lamp showing to the rear a red light visible from a distance of 152.40 meters and illuminating with white light the registration mark exhibited on the rear of the vehicle so as to render it legible from a distance of 15.24 meters and also 2 cat's eye reflectors on the rear mudguards so as to warn the vehicular traffic approaching from behind that there is an auto-rickshaw ahead. If no mudguards are used, cat's eye reflectors in the rear will be optional.
 - (i) **Driver's seat.-** The back of the driver's seat should have at least 10 centimeters of clearance from the front panel of the body. A windscreen shall be provided for the driver.
 - (j) **Seat.-**
 - (i) There shall be provided a single seat not more than 1.5 meters and not less than 91.5 centimeters in length. The depth of the seat shall not be less than 40.5 centimeters.
 - (ii) The back of the seat shall be slanting and closed to a height of at least 48 centimeters above the level of the seat;
 - (iii) The seats shall be provided with fixed or movable cushions. The cushions shall be covered with leather cloth of good quality or other material of such kind that they are capable of being kept in clean and sanitary condition.
 - (iv) The height of the seat from the floor shall be not less than 35.6 centimeters including cushions.
 - (k) **Leg Space.-** In three passengers auto-rickshaws, there shall be provided at least 37 centimeters leg space.
 - (l) **Horn.-** Every auto-rickshaw shall be fitted with a bulb horn.

Speed

167 No person shall drive an auto-rickshaw or cause or allow an auto-rickshaw having three seats excluding driver's seat to be driven in any public place at a speed exceeding 40 kilometers per hour.

**Inspection of
motor vehicles**

168 (1) Notwithstanding the renewal of registration of motor vehicles, other than the transport vehicle, if the registering authority has reason to believe that owing to the mechanical defects, any such vehicle is in such condition that its use in a public place constitutes danger to the public, or that it fails to comply with the requirements of Chapter VII of the Act or of the rules made thereunder, he may cause such vehicle to be inspected by an officer authorized by him and after giving the owner opportunity of making any representation as required under sub-section (1) of Section 53, suspend the certificate of registration of the vehicle under the said section till such time as the vehicle is produced for inspection duly repaired.

(2) A fee for every such inspection shall be as prescribed at serial "11" of Rule 81 of the Central Rules and the same shall accompany the application referred to in sub-section (8) of Section 41 of the Act.

(3) Such fee shall be payable in advance and shall not be refunded.

(4) "Green Card" shall be issued to the public service vehicles, engaged for the conveyance of passengers on religious tour on hill routes, after the verification of its certificate of fitness, route permit, tax deposit certificate, insurance certificate and driving license.

"Green Card" is a document in which the detail of aforesaid document shall be mentioned.

(5) Inspection of the vehicle shall be made in respect of the items specified in proviso of rule 62 of Central Motor Vehicles Rules, 1989 by senior motor vehicles inspector or motor vehicle inspector or any other inspector authorized to discharge such the functions before issuing the green card under sub rule (4). Instructions issued by the State Transport Authority and Regional Transport Authority shall also be taken into account in such inspection. After such inspection vehicles found fit shall be issued certificate of fitness for carriage of passengers on religious tour on hill routes. Such certificates of fitness shall be issued by the prescribed authority and its validity shall be two month.

(6) Fee for every such inspection shall be the same as prescribed in rule 81 of the Central Motor Vehicles Rules, 1989.

**Authorization of
Pollution
Checking Centre**

169 (1) An application for authorizing Pollution Checking Centre for issuing of 'pollution under control certificate' under sub-rule (7) rule 115 of Central Rules shall be made by authorized garages/workshop, petroleum company, petrol pump and

voluntary organization to work as such to the Transport Commissioner on form SR-48. The application shall contain the following :-

- (i) Security of Rupees twenty five thousand in the form of National Saving Certificate mortgaged in the name of Transport Commissioner.
- (ii) The prototype of the test instrument approved by an agency/institution mentioned in rule 126 of the Central Rules, its invoice, installation form and the list of other tools:
- (iii) In case of application by voluntary organization, registration certificate under Societies Registration Act, 1860, building map (blue print) of the proposed checking centre issued by an approved architect, evidence of address, proof of land ownership /rent agreement, electric connection;
- (iv) In case of partnership firm, copy of the partnership deed.
- (v) list of tools for checking repairing and improving the engine of the vehicle that emits the pollutant in excess of prescribed standard.
- (vi) Fee as prescribed under sub-rule (2) below;
- (2) Fee for issue and renewal of the authorization

certificate : -

- (a) For motor vehicles driven by petrol: Rs. 2000.00
- (b) For motor vehicles driven by diesel: Rs. 2000.00
- (c) For both categories of motor vehicles:Rs. 4000.00
- (3) On receipt of application the inspection of the

proposed Pollution Checking Centre and the test instruments and tools installed therein shall be done by an officer of the Transport Department not below the rank of Senior Motor Vehicles Inspector / Motor Vehicles Inspector. His inspection report shall be forwarded to the Transport Commissioner alongwith the recommendations of the concerned Assistant Regional Transport officer/Regional Transport Officer.

(4) The authorization certificate shall be issued in form SR-49 by Transport Commissioner or if authorized by him by the Additional Transport Commissioner under the following terms and conditions.

- (i) The agency shall install the type of instrument approved under sub rule (3) of rule 116 of the Central Rules for test of emission standard prescribed under rule 115 of the Central Rules. The instrument shall be upgraded/changed according to the amendment made in the Central Rules from time to time.
- (ii) The authorization certificate shall be valid for five years from the date of issue, or in case of voluntary organization upto the period of registration of the

society under the Societies Registration Act, 1860 or in case of approved garage/workshop, petroleum company, petrol pump till the validity of dealership whichever is earlier.

- (iii) The agency shall charge maximum fee of rupees forty from the vehicle owner for issue of "Pollution under control certificate".
- (iv) The format of the "Pollution under control certificate" shall be made available to the agency by the Transport Commissioner or the concerned Regional/Sub Regional Office on depositing rupees ten per format. The agency shall compulsorily issue "Pollution under control certificate" on such format. The information of the certificate thus issued shall be given to the concerned Assistant Regional Transport Officer, by the agency.
- (v) The authorized agency shall display the authorization certificate and the training certificate of its employee trained by the manufacturer at a prominent place.
- (vi) The authorized agency shall furnish to the concerned Regional/ Assistant Regional Transport Officer the monthly information of the vehicles tested at the centre on such format as may be prescribed by the Transport Commissioner.
- (vii) In case the authorized agency does not follow the prescribed conditions the security amount shall be forfeited and the authorization shall be cancelled.
- (viii) The Pollution Checking Centre established by the authorized testing agency may be inspected from time to time by an officer of the Transport Department not below the rank of Motor Vehicles Inspector.

(5) The authorized agency may establish such number of mobile checking centers at the specified area, place as empowered by the Transport Commissioner for issue of 'pollution under control' certificate. All conditions which apply on authorised agency shall apply on such mobile checking centers. The authorized agency shall install separate instrument at such mobile checking centers and shall have to pay separate fee for it.

(6) If the authorised agency closes business before the expiry of validity period the security shall be refunded to the owner/or representative on the written consent of all the partners.

Mirror

170 Every motor vehicle other than transport vehicle or a motor cycle having not more than two wheels and to which a side car is not attached, shall be fitted, either internally or externally and every transport vehicle shall be fitted externally with a mirror so placed that the driver shall be able to have a clear and distinct

vision of vehicles approaching from the rear.

Trailers prohibited with motor cycles and invalid carriages

171 (1) A motor cycle with not more than two wheels with or without side car shall not draw a trailer.

(2) No invalid carriage shall draw a trailer.

Prohibition of attachment of trailer to certain vehicles

172 (1) No motor vehicle shall be driven in any place with more than three trailers attached to it.

(2) The State Transport Authority may, by general or special resolution containing reasons therefore and subject to such conditions, as may be specified therein, prohibit or restrict the attachment of trailers or any particular type of trailers generally on any specified route or area, to any motor vehicle or class of motor vehicles.

(3) No motor vehicle, which exceeds 7.95 meters in length, shall draw a trailer: Provided that this rule shall not apply to any disabled motor vehicle being towed in consequence of disablement.

(4) No motor vehicle or train made of motor vehicle with one or more trailers attached shall be driven in any public place if such motor vehicle or train exceeds 22.85 meters in length.

(5) No trailer shall be attached to or drawn by any motor vehicle in any public place if the laden weight of the trailers exceeds the limits given below :

(i) Trailers fitted with pneumatic tyres on all wheels; 8,982 kilograms.

(ii) Trailers fitted with other than pneumatic tyres on all wheels, 3,982 kilograms.

Trailers fitted with tractors

173 No tractor shall draw on a public road, a trailer exceeding half a ton in weight unladen and fitted with solid steel wheels less than 60 centimeters in diameter.

Locally manufactured trailers – Specification and design of

174 (1) No trailer manufactured in India and intended to be used as a transport vehicle shall be registered unless its design has been approved by the Transport Commissioner in accordance with the provisions of the following sub-rules :

Provided that where the Transport Commissioner has specified standard designs for such trailers under sub-rule (4) it would not be necessary to obtain such approval, if the trailer has been manufactured according to any of these standard designs.

(2)(a) The application for the approval of the design of a trailer, not manufactured according to any of the standard designs laid down in sub-rule (4), shall be made to the Transport Commissioner in triplicate. The application shall be accompanied by a fee of rupees 5000 in cash (which shall not be

refundable) and three copies of the following documents, namely :-

- (i) full specification,
- (ii) drawing giving all dimensions and details; and
- (iii) set of design calculations of axles, springs, long bearers, cross-bearers.

Platform tank or anything that may be carried on the cross-bearers, two bars, turnable or any other scribing device for the front axle, in case of two axle trailers, braking arrangements, and any other items such as shock absorbers if included, chassis etc.

- (b) On receipt of the application the Transport Commissioner shall forward it, with the copies of documents enclosed thereto, to such authority as he may think proper for verification and recommendation and axle weights in respect of the trailer which are compatible with reasonable safety.
- (c) The authority referred to in Clause (b) shall then go through the design and calculations and if the design is found satisfactory by it, certify what would be in its opinion the maximum laden and axle weights of the trailer which are compatible with reasonable safety.
- (d) When design is found satisfactory by the authority, it shall return two copies of the approved design, specifications and calculations with its recommendations as to the maximum laden and axle weight, compatible with reasonable safety, to the Transport commissioner. The Transport Commissioner may then approve the design, and forward his proposal to the State Government for the issue of a notification under sub-section (1) of Section 58 of the Act.
- (e) The applicant on approval of his design shall, if he wants to manufacture the trailer for the trade, supply the Transport Commissioner with as many extra copies of the approved type of the design, specifications and calculations as may be required by him for sending them to different registering authorities for their record.

(3) The application for registration of a trailer not manufactured according to any of the standard designs published under sub-rule (4) shall be accompanied by an attested copy of the letter of Transport Commissioner by which its design has been approved by him under sub-rule (2).

(4) The Transport Commissioner may, by notification published in the Official Gazette, lay down standard design, specifications, and calculations in respect of all or any particular

type of trailer or trailers.

(5) The registering authority may refuse to register a trailer if its design has not been approved by the Transport Commissioner under sub-rule (2) or if, in his opinion, the trailer has not been constructed in accordance with the standard specifications, drawings and designs laid down in sub-rule (4), where registering authority refuses to register any trailer under this sub-rule he shall furnish the applicant with the reasons in writing for such refusal.

(6) Nothing in the foregoing sub-rule shall apply to a trailer, the design whereof has already been approved by a competent authority in any other state :

Provided that the concerning State provides similar facilities to the manufacturer of a design approved by the competent authority of the State of Uttarakhand and that the manufacturer of this authorised assembler shall send to the Transport Commissioner, in duplicate, the documents referred to in sub-rule (1) together with certificate of other evidence of approval of the design in such other State.

Attendants on trailers

175 (1) When a trailer is or trailers are being drawn by a motor vehicle, there shall be carried in the trailer or trailers or on the drawing motor vehicle, as the case may be, the following persons, not being less than twenty years of age and competent to discharge their duties, that is to say –

- (a) If the brakes of the trailer or trailers cannot be operated by the driver of the drawing motor vehicle or by some other person carried on that vehicle—
 - (i) one person on every trailer competent to apply the brake; and
 - (ii) one person placed at or near the rear of the last trailer in train in such a position as to be able to have a clear view of the road in rear of the trailer, to signal to the drivers of overtaking vehicles and to communicate with the driver of the drawing motor vehicle.
- (b) If the brakes of the trailer can be operated by the driver of the drawing motor vehicles or by some other person carried on that vehicle, such other person in addition to the driver shall be carried on that vehicle and one person on the last trailer in train in accordance with the provisions of sub-clause (ii) of clause (a);
- (c) If the trailer is or trailers are being drawn by a locomotive, notwithstanding that the brakes of the trailer can be operated by the driver or some other person on the locomotive not less than one person on each trailer and not less than two persons on the last trailer in train, one of whom shall be the person

required by, the provisions of sub-clause (ii) of clause (a).

- (2) This rule shall not apply –
- (a) to any trailer having not more than two wheels and not exceeding 770 kilogram in weight laden when used singly and not in a train with other trailers;
- (b) to the trailing half of an articulated vehicle;
- (c) to any trailer used solely for carrying water for the purposes of the drawing vehicle when used singly and not in a train with other trailers;
- (d) to any agricultural or road-making or a road repairing or road-cleaning implement drawn by a motor vehicle; or
- (e) to any trailer specially constructed or adapted for any purpose upon which an attendant cannot safely be carried;
- (f) to any close trailer specially constructed for any purpose and specifically exempted from any or all of the provisions of this rule by an order in writing made by the registering authority to the extent so exempted.

**Distinguishing
mark for trailers
and for vehicle
drawing them**

176 (1) No person shall drive, or offer or cause to be driven, in any public place any motor vehicle to which a trailer is or trailers are attached unless there is exhibited on the front of the vehicle drawing the trailer or train of trailers and also on the back of the trailer of the last trailer in a train, as the case may be, distinguishing marks in white on a black ground in the form set out in the diagram contained in the Third Schedule

(2) The marks shall be kept clean and unobscured and shall be so fixed to the trailer or the drawing vehicle that -

- (a) the letter on the mark is vertical and easily distinguishable from the rear of the trailer and from the front of the drawing vehicle;
- (b) the mark is either on the centre or to the right hand side of the back of the trailer and on the centre of the front of the drawing vehicle outside the driver's cab and above the wind screen; and
- (c) in case of trailer no part thereof is at a height exceeding 1.22 meters from the ground.

(3) This rule shall not apply to the cases referred to in clauses (a), (b), (c), (d) and (f) of sub-rule (2) of Rule 175.

**Goods carriage -
Drawing of
trailer or semi-
trailer by**

177 The holder of a goods carriage permit may use the vehicle for the drawing of any trailer or semi-trailer not owned by him, subject, to the condition that such goods carriage and the trailer or semi-trailer fulfills the requirement of these rules.

CHAPTER VIII

CONTROL OF TRAFFIC

Competition and exhibitions

178 No person shall either take part in or promote, organize, manage or bet in any public place any competition or display of motor vehicles without the previous sanction of the chairman of the Regional Transport Authority.

Designation of main roads

179 With reference to Clause (b) of sub-section (i) of Section 116 and subject to the general control of the State Transport Authority Regional Transport Authority shall have the power to designate any road within its jurisdiction as a main road.

Restrictions on the use and the speed of motor vehicles

180 (1) A Superintendent of Police within a municipal corporation, municipality, or Nagar panchayat and a Registering Authority in other area within their respective jurisdiction may make such orders as they think fit restricting the speed of or restricting or prohibiting the use of motor vehicles, generally or any particular class or classes of motor vehicles, in any area or on any road. Such orders shall be published by notification in the official Gazette and also by means of notice boards at or near the place or road to which they apply.

Provided that in regard to the hill roads, the Superintendent of Police or the Registering Authority shall exercise the power conferred by this rule subject to the general control of the Regional Transport Authority.

(2) Where the Registering Authority has by an order made under sub-rule (1) restricted the driving of motor vehicles on one way traffic basis by fixing gate timings for movement of the vehicles from either end on any hill road the District Magistrate concerned or such other person as may be authorised by the Registering Authority in this behalf on being satisfied that the driving of any particular motor vehicle or motor vehicles outside the aforesaid gate timing is essential in public interest and is not likely to endanger the public safety, may permit it to be driven outside such gate timings subject to such restrictions as he may impose in the interest of public safety including the restriction that the vehicle in question shall in no case be driven at a speed exceeding 20 kilometers per hour.

Traffic signs – Erection of

181 (1) The District Magistrate or the Registering Authority may, in any public place cause signboards or notice boards in such script as may be appropriate to be exhibited or marks to be made on the surface of the road, for the purpose of regulating motor vehicle traffic.

(2) The signs or notice boards, which may be erected under sub-rule (1) may include signs of the designs shown in the first Schedule of the Act.

(3) No person shall alter, deface, remove or otherwise interfere with any mark signs or notice made or erected by a competent authority under the provisions of this rule.

**Vehicle
abandoned on
the road**

182 (1) If any motor vehicle is allowed to stand in any place other than a duly specified parking place in such a way as to cause obstruction to traffic or danger to any person, any police officer in uniform not below the rank of a sub-inspector or any officer of the Transport Department mentioned in sub-rule (1) of Rule 229, may :-

- (i) forthwith cause the vehicle to be moved under its own power or otherwise cause the vehicle to be taken to the nearest place where the vehicle will not cause undue obstruction or danger;
- (ii) until it is moved to a position where it will not cause obstruction or danger, take all reasonable precautions to indicate the presence of the vehicle; and
- (iii) if the vehicle has been stationary in one place for a continuous period of twenty-four hours and adequate steps have not been taken for its repair or removal by the owner or his representative, remove the vehicle and its contents to the nearest, place of safe custody.

(2) If a motor vehicle has been stationary in a duly specified parking place for a period exceeding that fixed by competent authority in respect of the said place, or if no such period has been fixed for a period exceeding six hours, any police officer in uniform not below the rank of a sub-inspector or the officer of the Transport Department mentioned in sub-rule (1) of Rule 229 may remove the vehicle to the nearest place of safe custody.

(3) Notwithstanding any fine or penalty which may be imposed upon any person upon conviction for the contravention of the provisions of Section 122 or of any regulation made by a competent authority in relation to the use of duly specified parking place, the owner of the motor vehicle or his heir or assignee shall be liable to make good any expense incurred by any police officer not below the rank of sub-inspector or any officer of Transport Department mentioned in sub-rule (1) of Rule 229 in connection with the moving. Lighting, watching or removal of a vehicle or its contents in accordance with sub-rules (1) and (2); and any police officer or any person into whose custody the vehicle has been entrusted by any police officer in uniform not below the rank of a sub-inspector or any officer of the Transport Department mentioned in sub-rule (1) of Rule 229 shall be entitled to detain the vehicle until he has received payment accordingly and shall upon receiving such payment give a receipt to the person making the payment.

Weighing device

183 (1) A weighing device for the purpose of Section 114 may

**– Installation and
use of**

be—

- (i) Weigh-bridge installed and maintained at any place by or under the orders of the State Government or a local authority.
- (ii) weigh-bridge installed and maintained by any person and certified by the registering authority, to be a weighing device for the purpose of the Act and these rules; or
- (iii) a portable wheel-weigher of any kind approved by the State Government.

(2) The driver of any goods carriage shall, upon demand by any officer of the Transport Department mentioned in sub-rule (1) of Rule 229 or a registering authority, so drive and manipulate the vehicle as to place it or any wheel or wheels as the case may be upon any weigh-bridge or wheel-weighers in such a manner that the weight of the vehicle or the weight transmitted by any wheel or wheels may be exhibited by the weigh-bridge or wheel weigher.

(3) If the driver of a motor vehicle fails within a reasonable time to comply with requisition under sub-rule (2) a person authorised under Section 114 may cause any person, being the holder of driving licence authorizing him to drive such vehicles to drive and manipulate the vehicle.

(4) When the weight of axle-weight of a motor vehicle is determined by separate and independent determination of the weight transmitted by any wheel or wheels of the vehicle and axle-weight and the laden weight of the vehicle shall be deemed to be the sum of the weights transmitted by the wheels of any axle or by all the wheels of the vehicle, as the case may be.

(5) Upon weighment of a vehicle in accordance with the Section 114 and this rule, the person who has required the weighment or the person in –charge of the weighing device shall deliver to the driver or other person in-charge of the vehicle a statement in writing of the weight of the vehicle and of any axle, the weight of which is separately determined.

(6) The driver or the person in charge of, or owner of a vehicle which has been so weighed may challenge the accuracy of the weighing device, by a statement in writing delivered -

- (i) within one hour of the receipt of the statement referred to in sub-rule (5) to the person by whom the statement was delivered to him and followed by a deposit of rupees forty in the office of the Regional Transport Officer or Assistance Regional Transport Officer as the case may be, within three days of the date of weighment, failing which the statement challenging the accuracy of the machine shall not be maintainable; or
- (ii) within fourteen days of the service on him of notice of proceedings against him under Section 86 or

Section 113 to the authority or court issuing such notice.

(7) Upon receipt of statement challenging the accuracy of a weighing device under sub-rule (6), the person or authority or the court, by whom the statement is received after ensuring that the deposit of rupees forty has been made, shall apply to the District Magistrate for the weighing device to be tested by such person as the District Magistrate may appoint and the certificate of such person, as may be so appointed, regarding the accuracy of the weighing device shall be final.

(8) If, upon the testing of a weighing device as aforesaid the weighing device is certified to be inaccurate to an extent greater than any weight by which the gross vehicle weight or unladen weight or any axle weight of the vehicle is shown in the statement referred to in sub-rule (5) to have exceeded the gross vehicle weight or the registered unladen weight or the registered axle weight, as the case may be, no further proceedings shall be taken in respect of any gross vehicle weight or unladen weight or axle weight and if the device is certified to be inaccurate to the said extent in respect of every such gross vehicle weight, unladen weight, axle weight actually weighed, the deposit prescribed in sub-rule (6) shall be refunded.

(9) No person shall, by reason of having challenged the accuracy of any weighing device under sub-rule (6), be entitled to refuse to comply with any written order under Section 113.

Prohibition of mounting or taking hold of vehicle in motion

184 (1) No person shall mount or attempt to mount on, or dismount from, any motor vehicle, when the motor vehicle is in motion.

(2) No person shall take hold of and no driver of a motor vehicle shall cause or allow any person to take hold of any motor vehicle when in motion for the purpose of being towed or drawn upon some other wheeled vehicle or otherwise.

Footpath, cycle tracks and traffic segregation

185 Where any road or street is provided with footpath or tracks reserved for cycles or specified classes of other traffic, no person shall, save with the sanction of a police officer in uniform not below the rank of a sub-inspector or the registering authority drive any motor vehicle or cause or allow any motor vehicle to be driven on any such footpath or track.

Dangerous substances – Restrictions as a carriage of

186 (1) Except for the fuel and lubricants necessary for the use of the vehicle which will be carried in a manner as not to cause danger or accidental ignition, no explosive, highly inflammable or otherwise dangerous substance shall be carried on any public service vehicle unless it is so packed that even in the case of an accident to the vehicle it is unlikely to cause damage or injury to the vehicle or persons carried thereon.

(2) If, in the opinion of the officer of the Transport

Department mentioned in sub-rule (1) of Rule 229 or a police officer in uniform not below the rank of sub-inspector any public service vehicle is, at any time, loaded in contravention of this rule, he may order the driver or other person in charge of the motor vehicle to remove or repack the inflammable or dangerous substance.

**Sound signals
restriction on
use of**

187 The District Magistrate may by notification in one or more newspapers in the concerned city or district as the case may be, and by the erection at suitable places of traffic sign no. M-18 as set forth in the first schedule to the Act prohibit the use by drivers of motor vehicles of any horn or other device for giving audible warning in any area within the city or district and during such hours as may be specified in the notification.

Provided that when the District Magistrate prohibits the use of any horn, or other device for giving audible warning during certain specified hours, he shall cause a suitable notice in Hindi setting forth the hours within which such use is so prohibited to be affixed below the traffic sign.

**Erection or
placing of signs
or
advertisements
on roads
prohibited**

188 No person shall place or erect or cause or allow to be placed or erected on any road, any sign or advertisement which in the opinion of the Superintendent of Police is so similar in appearance to traffic sign as to be misleading.

Driving at night

189 Save in the case of hill roads which Transport Commissioner, may authorize as fit for use during night as well no person shall drive a motor vehicle on a hill road at night, unless authorised to do so by the registering authority or by the District Magistrate.

Provided that, in case it becomes necessary, owing to accident, illness or any similar emergency, to drive a motor vehicle at night on a hill road for the purpose of obtaining assistance or for any similar purpose, the driver shall, as soon as is reasonably possible, report to the nearest police station his name and number of the vehicle and the name of the owner, together with such other particulars as may be required of him by the officer incharge of the police station.

Provided further, that, if a motor vehicle breaks down on a hill road and driver is unable to complete his journey before nightfall, he shall draw the motor vehicle on the left side of the road for the necessary repairs and after such repair he may continue his journey at a speed not exceeding sixteen kilometers an hour and in such case he shall further report at the police station or police outpost at which he may arrive after nightfall his name and the number of his vehicle and his reason for traveling after nightfall.

Provided also, that in any case as mentioned in the second provision to the rule, if there is no police station or police outpost between the place at which the motor vehicle breaks down and the place at which it terminates its journey after repair the driver shall on arrival at his destination report to the nearest police station his name and the number of his vehicle and the reason for traveling after nightfall.

Provided lastly that, the registering authority may delegate to any Army Officer not below the rank of Brigadier, the power to issue a special pass to any commissioned military officer authorizing him when traveling on duty, to drive a light motor vehicle on hill roads by night in case of emergency.

Note. – The provisions of this rule will not apply to the hill roads of Kathgodam, Nainital – Brewery to Ranikhet.

Restriction on driving with gear disengaged

190 On any hill marked by traffic sign no. C-9 of the first Schedule to the Act, no person shall drive a transport vehicle with the engine free, that is to say, with gear lever in neutral, the clutch lever depressed or with any free wheel or other device in operation which free the engine from the wheels and prevents the engine from acting as a brake when the vehicle is traveling down an incline.

Wooden Chocks

191 (1) In order to prevent the vehicle from running backward on slopes or otherwise to render it immobile, the owner of every transport vehicle, other than a light motor vehicle, shall always keep his vehicle equipped with two wedge-shaped solid wooden chocks, each measuring 30.40 centimeters in length, 30.50 centimeters in breadth and 25.40 centimeters in height, with one of its sides having a slope making an angle of 45 degrees at the end. The plane surface of the sloped side of each chock shall be rendered concave so as to fit the outer circumference of the tyres normally fitted to the rear wheels of the vehicle.

(2) Notwithstanding anything contained in sub-rule (1), where such vehicle is fitted with single rear wheel; the breadth of each chock may be less than 30.50 centimeters but not less than 15.25 centimeters.

- (3) Each such chock shall have a hook and be kept –
- (i) in a bracket fitted on the outer skirt of the tail board of the vehicle;
 - (ii) where the vehicle has no tail board, in a metal carrier fitted between the frame side members, underneath the body nearest to the rear wheels on either side.

The tail board of the vehicle, and where the vehicle has no tail board, the wooden planks above the frame side members shall also have a hook in the centre.

- (4) Each such chock shall be linked with the tail board,

or where the vehicle has no tail board with the wooden planks above the frame side member, by means of metal chain or steel wire rope of sufficient length and strength fastened to the hook in the chock and to the hook to the tail board to the hook with the wooden planks, as the case may be.

(5) Notwithstanding anything contained in this rule the State Government may, by notification in the official Gazette, exempt from the provisions of this rule any goods vehicle or class of such vehicles which in its opinion is not likely to slip backwards on slopes.

Tyres	192 Notwithstanding anything contained in Rule 94 of the Central Rules, no person shall drive any motor vehicle on a hill road, unless all its wheels are fitted with pneumatic tyres, and in the case of vehicles of more than six metric tons weight when laden, with twin pneumatic tyres on the driving wheels.
Inspection of vehicles	193 If the, registering authority or any Magistrate, or any police officer not below the rank of a sub-inspector authorised by the registering authority in this behalf, is of opinion that a motor vehicle which is being driven upon a hill road does not in every respect conform to the provisions of these rules, he may stop the vehicle and inspect it and the driver or person in-charge of the vehicle shall, in such case, comply with any order which the registering authority, the Magistrate or the police officer so authorised may deem fit to give for the purpose of preventing danger or inconvenience to the public whether by removal of any defect in the motor vehicle or otherwise.
Proceeding of ascending vehicle	194 (1) No motor vehicle shall over-take another vehicle traveling in the same direction, except at a place where the road is clearly visible to the driver of the overtaking vehicle for at least 185 meters ahead. (2) When two motor vehicles approach each other from opposite directions at a bridge or culvert or narrow place on a hill road, the driver of the motor vehicle proceeding in the downward direction shall give way to a vehicle proceeding in the upward direction. When such approach takes place in a dip or level stretch of road, the vehicle, on the side of the road from which the hill slopes upward shall give way.
Endorsement of certain licences for hill roads	195 No person shall drive a public service vehicle or a goods vehicle on a hill road unless his licence to drive such public service vehicle or goods vehicle has been endorsed by a registering authority with a permission to drive upon hill roads situated within the jurisdiction of such registering authority or in the case of a public service vehicle hired by tourists, by the registering authority of the State with which reciprocal arrangements on the point have been agreed upon.

Trailers

196 No person shall drive a goods vehicle or heavy motor vehicle with a trailer attached on a hill road, without the special written permission of the registering authority.

Stands and halting places

197 (1) District Magistrates are authorised by the State Government to take action under Section 117 of the Act and may, in consultation with the local authority having jurisdiction in the area concerned, by the creation, of traffic signs of notices –

- (a) Specify places within the territorial area of Municipality or Cantonment Board or within such other limits as he may define where alone public service vehicles and/or goods carriages may stand indefinitely or for such period as may be specified or public service vehicle may stop for a longer time than is necessary for the taking up and setting down of passengers; or
- (b) Conditionally or unconditionally prohibit the use of any specified place, or any place of a specified nature or class as a stand or halting place;

Provided that no place which is privately owned shall be specified as a stand or halting place without the previous consent in writing of the owner thereof.

(2) When a place has been specified by traffic signs or notices, as being a stand or halting place for the purpose of this rule, then, notwithstanding that the land is in possession of any person the place shall, subject to the provisions of these rules, be deemed to be a public place within the meaning of the Act and the District Magistrate may enter into an agreement with or grant a licence to any person for the provision or maintenance of such place including the provision or maintenance of the buildings or works necessary thereto, subject to the termination of the agreement or licence forthwith upon the breach of any condition thereof and may otherwise make rules or give directions for the conduct of such place including the following rules or directions -

- (a) prescribing the fees to be paid by the owners of public service vehicle using the place and providing for the receipt and disposal of such fees;
- (b) specifying the public service vehicles or the class or classes of public service vehicles which shall use the place or which shall not use the place;
- (c) appointing a person to be the manager of the place and specifying the powers and duties of the manager;
- (d) requiring the owner of the land, or the local authority as the case may be to erect such shelters, lavatories, and latrines and to execute such other works as may be specified in the rules or in the direction and to maintain the same in a serviceable clean and sanitary condition;

(e) prohibiting the use of such place by specified persons or by other than specified persons.

(3) Nothing in sub-rule (2) shall require any person owning land, which has been appointed as a stand or halting place, to undertake any work or to incur expenditure in connection therewith without his consent and in the event of any such person declining to carry out such work or to incur such expenditure or failing to comply with any rule or direction made or given to him under this rule, the competent authority may prohibit the use of such a place for the purpose of this rule.

**Restriction of
Traveling
backwards**

198 No driver of a motor vehicle shall cause a motor vehicle to travel backwards, without first satisfying himself that he will not thereby cause danger or undue inconvenience to any person or in circumstances, save in the case of a road roller, for any greater distance or period of time that may be reasonably necessary in order to run the vehicle round.

**Use of lamps
when a vehicle is
at rest**

199 (1) If, within the limits of any municipality or cantonment, a motor vehicle is at rest within the hours during which lights are required, at the left-hand side of any road or street or elsewhere in any duly specified parking place, it shall not be necessary for the motor vehicle to exhibit any light save as may be required generally or specially by the District Magistrate.

(2) If outside the limits of any municipality or cantonment, if a motor vehicle is at rest within the hours during which lights are required in such a position as not to cause danger or undue inconvenience to other users of the road, it shall not be necessary for the motor vehicle to display any light.

**Dazzling light-
Restriction of**

200 (1) The driver of a motor vehicle shall at times when the lights of the motor vehicle are in use so manipulate them that danger or undue inconvenience is not caused to any person by dazzle.

(2) The District Magistrate may by the erection of suitable notices in English and in the local script prohibit the use, within such areas in such places as may be specified in the notification, of lamps giving a powerful or intense light.

(3) No search light or spot light or other movable light, other than the lights prescribed shall be used on any motor vehicle when such vehicle is passing through any town or village or is meeting other vehicular traffic.

**Visibility of
lamps and
registration
marks**

201 (1) No load or other thing shall be placed on any motor vehicle so as to any time mask or otherwise interrupt, vision of any lamp, registration mark or other mark required to be carried by or exhibited on any motor vehicle by or under the provisions of the Act, unless a duplicate of the lamp or mark so marked or otherwise obscured is exhibited the manner required by or under

the Act for exhibition of the mark or obscured lamp or mark.

(2) All registration and other marks required to be exhibited on a motor vehicle by or under the provisions of the Act shall at all times be maintained as far as may be reasonably possible in a clear and legible condition.

**Caution about
overtaking
vehicle etc**

202 In addition to the requirements of the driving regulations made by Central Government under Section 118—

- (a) no driver of a motor vehicle shall make any signal to the driver of a motor vehicle approaching from behind with the intention of signifying that such driver may overtake him, unless the road to his front is so unobstructed as to enable such other vehicle to pass him without danger;
- (b) every driver of a motor vehicle shall drive on the extreme left hand side of the road, when either owing to a hill or to a curve in the said road, or to any other cause, his vision to his front is limited to such a distance that on the appearance of another motor vehicle traveling in the opposite direction to himself there would be danger of collision; and
- (c) every driver of a motor vehicle shall slow down and drive slowly for so long as owing to dust raised by an approaching vehicle or to any other cause, his vision to his front is obscured or limited.

**Protective
headgear-
Wearing of**

203 (1) Every person while driving or riding a motor cycle, a scooter or moped shall wear a protective headgear conforming to the specification given in sub-rule (2) below :

- (2) Each protective headgear shall –
 - (i) be of specifications of Bureau of Indian standard,
 - (ii) be permanently and legibly labeled in such manner that level or levels can be read easily without removing padding or any other permanent material description such as—
 - (a) manufacturers name or identification;
 - (b) size;
 - (c) month and year of manufacture, and
 - (d) the mark of the Bureau of Indian Standards.
 - (iii) have minimum three adhesive type retroreflective red colour, strips of the size of 2 centimeters multiplied by 15 centimeters affixed horizontally on back of the headgear which will illuminate during the night :

Provided that sub-rule (1) of this rule shall not apply to –

- (a) every pillion rider of a motor cycle, scooter or a moped,
- (b) any person wearing a turban while driving a motor cycle, scooter or a moped in a public place.

Explanation.- For the purposes of this rule turban means

cloth 6 meters by 82 centimeters which any person while driving a motor cycle, scooter or a moped in a public place may tie as such around his head.

**Exemption to
Fire Brigade
vehicles
ambulances etc**

204 The State Government may, by notification exempt from all or any of the provisions of this chapter, the fire brigade vehicles, ambulances, and such other special classes or descriptions of vehicles as it may specify in the notification.

**Inspection of
vehicle involved
in an accident**

205 Assistant Regional Transport Officer, Regional Inspector or Assistant Regional Inspector of the Transport Department, may inspect the motor vehicle involved in an accident and for that purposes may enter at any reasonable time any premises where the vehicle may be and may remove the vehicle for examination.

CHAPTER IX

CLAIMS TRIBUNALS

**Applications for
compensation**

206 (1) Every application for payment of compensation made under Section 166 shall as far as possible be made in Form SR-50 if the compensation is claimed otherwise than under Section 163 A and in Form SR-51 if compensation is claimed under Section 163 A and be accompanied by a fee of rupees ten in the form of court fee stamps.

Provided that the compensation under Section 163-A shall be full and final settlement of the claim and claimant shall not be entitled to file any other application for claim under the Act.

(2) All applications, before the Claims Tribunal, other than those mentioned in sub-rule (1) shall be stamped with a court fee stamp of rupees five. A process fee of rupees ten shall be in the form of court fee stamps paid for each witness or party summoned.

(3) An application under this rule shall be presented before the Claims Tribunal by the applicant in person unless he is prevented by sufficient cause from appearing personally, in which case the application may either be sent to the Claim Tribunal by registered post or may be presented by his agent authorised in writing in this behalf.

**Examination of
an applicant**

207 On receipt of an application under Rule 206 the Claims Tribunal may, if the applicant is present personally, examine him on oath, and the substance of such a examination, if any, shall be reduced to writing and it shall form part of the record.

**Summary
dismissal of
application**

208 The Claims Tribunal may, after considering the application and the statement, if any, recorded under Rule 207 dismiss the application summarily if, for reason to be recorded, it is of the opinion that there are no sufficient grounds for proceeding therewith.

Notice to parties involved

209 If the application is not dismissed under Rule 208, the Claims Tribunal shall send to the owner of the motor vehicle involved in the accident and its insurer, a copy of the application together with a notice of the date on which it will hear the application, and shall call upon the parties to produce on that date any evidence which they may like to produce.

Appearance and oral examination of parties

210 (1) The owner of the motor vehicle and the insurer may, at or before the first hearing or within such further time as the Claims Tribunal may allow, file a written statement dealing with the claim raised in the application, and any such written statement shall form part of the record.

(2) Where the claim is contested, the Claims Tribunal shall, with a view to elucidating matters in controversy between the parties, examine orally such of the parties to the claim proceeding as it deems, fit and shall reduce the substance of the examination, if any to writing.

Framing of issues

211 After considering the application and the written statements and oral statements of the parties, the Claims Tribunal shall proceed to frame the issues on which the right decision of the claim appears to it to depend.

Summoning of witnesses

212 Where an application is presented by any party to the proceeding for summoning of witnesses, the Claims Tribunal shall on payment of the expenses involved, if any, issue summons for the appearance of such witnesses, unless it considers that their appearance is not necessary for a just decision of the case.

Determination of issues

213 After framing the issues the Claims Tribunal shall proceed to record evidence thereon which each party may like to produce.

Method of recording evidence

214 The Claims Tribunal shall, on examination of a party or a witness proceeds, make a brief memorandum of the substance of what is deposed and such memorandum shall be written and signed by the Claims Tribunal and shall form part of the record.

Provided that the evidence of any medical witness shall, as nearly as may be, taken down word for word.

Provided further that where the Claims Tribunal is unable to make a memorandum it shall cause the reason of such inability to be recorded and shall cause the memorandum to be made in writing from its dictation

Local Inspection

215 (1) The Claims Tribunal may, at any stage of an inquiry before it and after due notice to the parties, visit and inspect the site at which the accident occurred or any other place or thing which it is in its opinion, necessary to view for a proper decision of the case.

	(2) A party to proceeding or his representative may be present at the time of the local inspection by the Claims Tribunal. (3) As soon as may be after the local inspection the Claims Tribunal shall record memorandum of any relevant fact observed as such inspection, and such memorandum shall form part of the inquiry.
Inspection of the vehicle	216 The Claims Tribunal may if it thinks fit, require the motor vehicle involved in the accident to be produced by the owner thereof for inspection at particular time and place to be mentioned by it.
Power of examination	217 The Claims Tribunal may if it thinks necessary, examine any person likely to be able to give information relating to the injury, irrespective of the fact whether such person has been or is to be called as a witness or not.
Adjournment of hearing	218 The Claims Tribunal may for reasons to be recorded, on the application of a party or otherwise, adjourn the hearing from time to time. When adjournment is granted on application the Claims Tribunal may, make such order as it thinks fit with respect to the costs occasioned by the adjournment.
Appearance through legal practitioner	219 The Claims Tribunal may, in its discretion, allow any party to appear before it through a legal practitioner.
Co-opting of persons during inquiry	220 (1) The Claims Tribunal may, if it thinks fit, choose one or more persons possessing special knowledge of any matter relevant to the inquiry to assist it in holding the inquiry. (2) The remuneration, to be paid to the person or persons co-opted under sub-rule(1) shall in every case be determined by the Claims Tribunal.
Diary	221 The Claims Tribunal shall maintain a brief diary of the proceeding relating to an application.
Judgment and award of compensation	222 (1) The Claims Tribunal in passing orders, shall record concisely in judgment the findings on each of the issues framed and the reasons for such finding and make an award, specifying the amount of compensation to be paid by the insurer or in the case of a vehicle exempted under sub-section (2) or (3) of Section 146 by the owner thereof and shall also specify the person or persons to whom compensation shall be payable. (2) Where compensation is awarded to two or more persons, under sub-rule (1) the Claims Tribunal shall also specify the amount payable to each of them. (3) The Claims Tribunal may, while disposing of claims for compensation make such orders regarding costs and

expenses incurred in the proceeding as it thinks fit.

**Code of Civil
Procedure to
apply in certain
cases**

223 The following provisions of the First Schedule to the code of Civil Procedure, 1908 shall so far as may be apply to proceedings before the Claims Tribunal, namely, Rules 9 to 13 and 15 to 30 of order V, order IX, Rules 3 to 10 of order XIII, Rule 2 to 21 of order XVI, order XVII; and Rules 1 to 3 of order XXIII.

**Form and
number of
appeals against
the decision of
Claims Tribunal**

224 (1) An appeal against the award of Claims Tribunal shall be preferred in the form of a memorandum stating concisely the grounds on which the appeal is preferred.

(2) It shall be accompanied by a copy of the judgment and award appealed against.

CHAPTER X

MISCELLANEOUS

**Authorities to
recover penalty**

225 The penalties under sub-section (1) of Section 201 shall be recoverable by the following officer having jurisdiction over the area where the disabled vehicle is kept :-

- (i) officer of the Transport Department not below the rank of Assistant Transport Officer :
- (ii) an Executive Magistrate not below the rank of sub-divisional Magistrate ; and
- (iii) a police officer in uniform not below the rank of Deputy Superintendent of Police.

**Undercharge of
fees under
Chapter II, III, IV
and V of the Act
and Rules**

226 (1) If any undercharge in the levy of fees provided in the Motor Vehicle Act, 1988 and rules made thereunder is discovered at any time in respect of any person, the authority prescribed in Chapter II, III, IV and V of the Act or the rules made thereunder, shall issue a notice to the person concerned to pay up the deficiency.

(2) Such notice may be sent to the person by post or may be served upon him in person or upon any adult member of his family. If the notice cannot be served in the manner aforesaid, it may be served by affixing it in some conspicuous part of his place of residence or business or in such manner as the authority competent to recover such deficiency may think fit.

(3) If such person fails to pay up the deficiency within two weeks from the date of service of the said notice, the authority so prescribed shall forward to the Collector, a certificate under his signature specifying the amount of deficiency recoverable from such person and the Collector, on receipt of such certificate shall proceed to recover such deficiency as if it were arrears of land revenue.

Temporary

227 (1) Where the holder of permit submits the permit to the

authorization in lieu of certain documents

State or Regional Transport Authority for renewal or counter signature of the permit or for any other purpose or a police officer or any court or other competent authority takes temporary possession of a permit or the registration certificate of fitness or the Driving Licence or the Conductor's Licence hereinafter called in this rule "the document" from the holder thereof for any purpose, the State or Regional Transport Authority or the police officer or the Court or other competent authority, as the case may be, shall immediately, furnish to the holder a receipt for the document and a temporary authority in Form SR-35 to ply the vehicle during such period as may be specified in the said temporary authorization, and during the said period, the production of the temporary authorization on demand shall be deemed to be the production of the document.

Provided that the authority by which the temporary authorization was granted shall extend the period for which the temporary authorization is to remain valid until the document is returned but such extension shall not be beyond the period of validity of the document.

(2) Until the document referred to in sub-rule (1) is returned to the holder thereof, the vehicle concerned shall not be plied beyond the period as specified in the temporary authorization referred to in sub-rule (1) or, as the case may be, as extended under the proviso to that sub-rule.

(3) No fee shall be payable in respect of such temporary authorization.

Duties, powers and functions of the officers of the Transport Department

228 (1) All officer of the Transport Department shall be responsible to administer and enforce the provisions of the Act and the rules, regulations, or notifications made or issued thereunder and carry out such duties as have been assigned to them under these rules or such other duties as may be assigned to them.

(2) The officers of the Transport Department shall be responsible for the regulation and proper control of traffic and transport within their respective charge and inspection of stands, collecting, forwarding and or distributing agents, Drivers Training Schools and Authorised Testing Stations with a view to ensuring adequacy of the provisions of amenities for the public in general.

Officers of Transport Department – Power of

229 (1) The officer of the Transport Department specified in column 1 below, shall exercise the powers under the provisions of sections specified against them in column 2 :

Sl. NO.	Officer	Sections
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(1)	Transport Commissioner.	114 (1), 130 (2), 130 (3), 136, 203, 206, 207 and 213 (5)
(2)	Additional Transport Commissioner.	-do-
(3)	Deputy Transport Commissioner.	-do-
(4)	Secretary, State Transport Authority.	-do-
(5)	Assistant Transport Commissioner.	-do-
(6)	Regional Transport Officer	-do-
(7)	Assistant Regional Transport Officer	-do-
(8)	Transport Tax Officer-1	114 (1) and 130
(9)	Transport Tax Officer-2	114 (1) and 206
(10)	Officer specified by the Transport Commissioner who shall not be below the rank of Transport Tax Officer-2	114(1) 206

(2) An officer of the Transport Department specified in column 1 of sub-rule (1) shall carry with him an identity card issued by the Transport Commissioner in Form SR-52.

(3) The uniform to be worn by the various officer of the Transport Department mentioned in column 2 below shall be such as is mentioned against the post in column 3.

Sl. No.	Officer	Uniform
(1)	Assistant Regional Transport Officer (Enforcement)	(i) Khaki forage cap with monogram Uttarakhand Parivahan. (ii) Coat (open collar), bush-shirt or shirt with trousers of Police Pattern in Khaki; (iii) Tie and round weeven whistle cord of light Khaki colour; (iv) Shoulder badge with monogram Uttarakhand Parivahan. (v) Cross belt of police Pattern of dark brown leather with silver fittings; (vi) Three five pointed silver plated stars on shoulder strap; (vii) Brown shoes as in the case of Indian Army; (viii) Name badge with name and designation prominently exhibited on the front of the uniform.
(2)	Transport Tax Officer-2 or an official of Transport	(i) Khaki forage cap with monogram Uttarakhand Parivahan ; (ii) Khaki Coat (open collar), Khaki bush-shirt or Khaki shirt with trousers of Police Pattern in Khaki;

Department authorized by the Transport Commissioner for this purpose		(iii)	The round weeven whistle cord of light blue colour;
		(iv)	Cross belt of police Pattern of dark brown leather with silver fittings;
		(v)	Silver plated buttons;
		(vi)	Black shoes;
		(vii)	Two five pointed stars, measuring 25 mm in diameter. The star should be slightly frosted but without any design in the centre. Shoulder Badge with letters Uttarakhand Parivahan. In block letters will be worn at the base of shoulder strap. The stars and letters will be of white metal;
		(viii)	Name badge with name and designation prominently exhibited on the front of the uniform.
(3)	Senior Motor Vehicles Inspector	(i)	Khaki forage cap with monogram Uttarakhand Parivahan.
		(ii)	Khaki Coat (open collar), Khaki bush-shirt or Khaki shirt with trousers of Police Pattern in Khaki;
		(iii)	Tie and round weeven whistle cord of light Khaki colour;
		(iv)	Shoulder badge with monogram Uttarakhand Parivahan;
		(v)	Cross belt of police Pattern of dark brown leather with silver fittings;
		(vi)	Three five pointed yellow plated stars, on half red and half black parallel shoulder strap.
		(vii)	Brown shoes (as in the case of Indian Army);
		(viii)	Name badge with name and designation prominently exhibited on the front of the uniform.
(4)	Motor Vehicles Inspector	(i)	Khaki forage or beret cap with monogram Uttarakhand Parivahan;
		(ii)	Tie and round weeven whistle cord of light Khaki colour;
		(iii)	Khaki Coat (open collar), Khaki bush-shirt or Khaki shirt with trousers of Police Pattern in Khaki;
		(iv)	Shoulder badge with monogram Uttarakhand Parivahan;
		(v)	Cross belt of police Pattern of dark brown leather with silver fittings;
		(vi)	Two five pointed yellow plated stars, on half red and half black parallel shoulder strap.
		(vii)	Brown shoes (as in the case of Indian Army);
		(viii)	Name badge with name and designation prominently exhibited on the front of the uniform

Power of the State Government to give directions

230 The State Government may, from time to time, in public interest by notified order, give to a transport authority referred to in Section 68, such directions or guidelines consistent with the Act, as it considers necessary and in performance of its functions,

the authority shall comply with such directions or guidelines.

**Repealing and
saving**

231 On the on which this come into force, The Uttar Pradesh Motor Vehicles Rules, 1998 as applicable to state of the Uttarakhand shall stand repealed on the date of of these rules:

PROVIDED that the repeal shall not affect-

- a) The previous operation of the rules so repealed or anything duly done or suffered thereunder; or
- b) any right, privilege, obligation or liability acquired, accrued or incurred under the said rules; or
- c) any penalty, forfeiture or punishment incurred in respect of any offence committed against the rules; so repealed; or
- d) any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, forfeiture or punishment as aforesaid.

And any such investigation, legal proceeding or remedy may be instituted, continued or enforced and such penalty, forfeiture or punishment may be imposed as if the rules had not been repealed.

FIRST SCHEDULE

[See Rule 41 (6)]

Letters allotted to the registering authority to be used in assigning the temporary registration mark:

Name of District	Letters allotted
Almora	UKA
Nainital	UKD
Bageshwar	UKB
Pithoragarh	UKE
Chamoli	UKK
Rudraprayag	UKM
Champawat	UKC
Tehri Garhwal	UKI
Dehradun	UKG
Uttarkashi	UKJ
Garhwal	UKL
Udham Singh Nager	UKF
Haridwar	UKH
Reshikesh	UKR
Kotdwar	UKH

SECOND SCHEDULE

[See RULE 52 (2)]

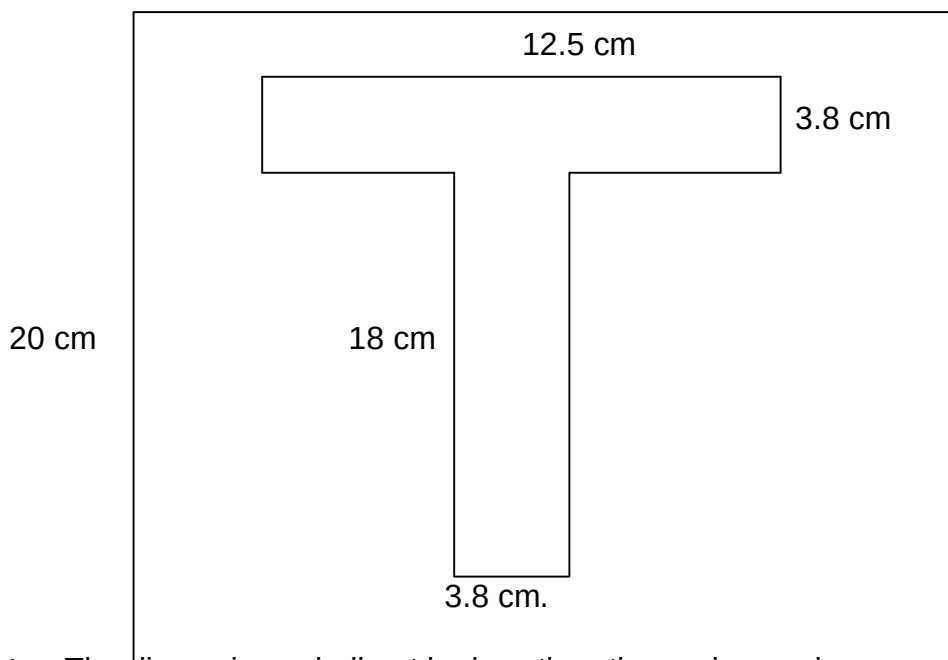
Sl.No.	Attractive Registration Numbers
1	0001 and 0786
2	0002 to 0009
3	0010, 0011, 0022, 0033, 0044, 0055, 0066, 0077, 0088, 0099
4	0100, 0101, 0111, 0123, 0200, 0202, 0222, 0234, 0300, 0303, 0333, 0345, 0400, 0404, 0444, 0456, 0500, 0505, 0555, 0567, 0600, 0606, 0666, 0678, 0700, 0707, 0777, 0789, 0800, 0808, 0888, 0900, 0909, 0999, 1000, 1010, 1111, 1212, 1234, 1313, 1414, 1515, 1616, 1717, 1818, 1919, 2000, 2020, 2121, 2222, 2323, 2345, 2424, 2525, 2626, 2727, 2828, 2929, 3000, 3030, 3131, 3232, 3333, 3434, 3456, 3535, 3636, 3737, 3838, 3939, 4000, 4040, 4141, 4242, 4343, 4444, 4545, 4567, 4646, 4747, 4848, 4949, 5000, 5050, 5151, 5252, 5353, 5454, 5555, 5656, 5678, 5757, 5858, 5959, 6000, 6060, 6161, 6262, 6363, 6464, 6565, 6666, 6767, 6789, 6868, 6969, 7000, 7070, 7171, 7272, 7373, 7474, 7575, 7676, 7777, 7878, 7979, 8000, 8080, 8181, 8282, 8383, 8484, 8585, 8686, 8787, 8888, 8989, 9000, 9090, 9191, 9292, 9393, 9494, 9595, 9696, 9797, 9898, 9999
5	Any other desired number except above

THIRD SCHEDULE

[See Rule 176(1)]

Distinguishing mark for the trailer and the vehicle drawing it:

18.2 cm



Note : The dimensions shall not be less than those shown above.

FORM SR-1
[See Rule 8(1)]

Intimation of loss or destruction of licence and application for duplicate

To,

The licensing Authority.

.....

I.....of (permanent address).....

..... and
(present address)..... (father's name)

..... Hereby report that driving licence
no.issued by the Licensing Authority.....
..... on or about the.....
day.....

1. Has been lost/destroyed in the following circumstances –

To be filled in.....

2. I hereby apply for a duplicate licence

3. I have paid the prescribed fee Rs.vide receipt No. dated
.....

4. I attach three clear copies of a recent photograph of myself.*

Date.....

Signature or thumb-impression of applicant

(For use in the office of licensing authority)
PART-1

(1) Duplicate of driving Licence No. First granted on
..... has been issued by me this day of
.....

(2) Application refused vide letter no. datedaddress
..... to the applicant giving
reason.

Date

Signature and seal of the
Licensing Authority

Strike out alternative not required.

PART-II

(Parts II, III and IV will be printed on a separate sheet to Part-I and will be used
if the application is made (to an authority other than the original Licensing Authority)

Forwarded to the Licensing Authority. for verification and
completion of Part-III.

Date.....

Signature and seal of the
Licensing Authority

PART III

Returned to the Licensing Authority The photograph and signature/ thumb-impression have been compared with my records.

No such licence appears to have been issued by this office.

Or

I am not satisfied that the applicant was the holder of the licence described.

Or

I am satisfied that the applicant was the holder of a licence issued by this office as follows:

- (1) Date of birth
- (2) Educational qualification
- (3) Blood group with RH factor
- (4) No.
- (5) Date of issue
- (6) Last renewed by the Licensing Authority
- (7) Date of expiry
- *(8) Classes of vehicles
- (8) The licence
- (a) Entitled the holder to drive a Transport Vehicle w.e.f.

Or

- (b) Carried the following endorsement

Date.....

Signature and seal of the
Licensing Authority

* Here fill in (a), (b), (c), etc. as specified in Section 10(2) of the Act.

PART IV

Returned to the licensing Authority for record

A duplicate licence has been issued by me on the day of*and a copy of the photograph affixed thereto is attached.

I have in my letter no.dated declined to issue the duplicate licence applied for. A copy of that letter is attached.

Date

Signature and seal of the
Licensing Authority

* Strike out alternative not required.

Transport Vehicle Driver's Badge

Diameter of the badge to be 7 cms.

Name of the district from where authorisation is issued

Transport Vehicle Driver No.

FORM SR-3

[See Rule 18(I) (XXXVI)]

Record to be kept on goods carriages

Name and address of permit holder

Registration No. of the Vehicle

Name of the Consignor

Name of the Consignee

Date of origin

Point of origin

Point of destination

Nature & No of goods carriage	Weight in Kilo gram	Total Freight Charges Rs.	Freight charges paid Rs.

Name and address of the Driver

No. of Driving Licence and its validity

Signature of the consignordated

Signature of the Consignee
Signature of the Carrier

FORM SR-4

[See Rule 22(2)]

**Form of intimation to Licensing Authority when acting as a conductor without
conductor's Licence.**

PART-A

(To be filled in by the applicant)

To,

The Licensing Authority

.....

I,son of

Permanent resident of and
presently residing at intend to act
as a conductor of the stage carriage bearing registration No.
..... running onroute for a
period ofDays from.....to
.....

I further declare that

(a) My age, as on today, is

(b) I have not been previously disqualified from holding a conductor's
licence;

*(c) I have not held conductor's licence issued by any licensing authority
before;

(d) I do not suffer from any disease or disability; and

(e) Reason for not being in possession of a conductor's licence is
.....

(f) I have acted on previous occasions as a conductor without a licence for
the period from to on the service run by
..... on route or area
..... and have informed the licensing authority, vide
letter dated (Copy enclosed).

Date

Signature of applicant

* Strike out alternative not required.

PART - B

(To be filled in by the permit holder)

Reasons for temporarily employing the above applicant as Conductor:

.....
.....
.....

(Place)

Date :

Signature of the permit holder with
Permit number, vehicle number and
Registration and the name of route.

PART-C

(To be filled in by the Licensing Authority and return to the applicant)

Shri son of
presently residing at is
temporarily permitted to act as a conductor of stage carriage No. from
..... to */ is not permitted to temporarily act as a
conductor.

Date

Signature and seal of the
Licensing Authority

FORM SR-5

[See Rule 23(1)]

Government of Uttarakhand Conductor's Licence

No.

Name Sri son of of,
(present address)
(permanent address) born on
.....

Photograph

Duplicate
Signature
of applicant
extracted from
Form 5

Is licensee as a conductor and has been issued this licence as a
conductor's licence on
.....

This licence is valid from to

Date

Signature and seal of the
Licensing Authority

Renewals

	Date of Renewal	Date of expiry	Signature and seal of the Licensing Authority
1.			
2.			
3.			
4.			

Endorsements

Date	particulars of the orders of disqualification in brief	Reasons for order of disqualification in brief	Signature and seal of the endorsing authority
1.			
2.			
3.			
4.			

FORM SR-6

[See Rule 23(4)]

Form of application for conductor's Licence.

1. Name of applicant
2. Name of father
3. Present address
4. Permanent Address
5. Date of birth (proof
to be furnished)

6. Educational qualification (proof to be furnished)
7. I have not previously held a conductor's licence/previously held a conductor's licence No. Valid up to Issued by the Licensing Authority.....
8. I was disqualified for holding a conductor's licence for reason mentioned hereunder
9. I am not disqualified for holding a conductor's licence
10. I enclose three copies of a recent photograph of myself, as required by the rules.
11. I enclose medical fitness certificate dated issued by
12. I hereby declare that the above statements are true.
13. I have paid prescribed fee Rs. vide receipt, dated

Dated

Signature of applicant

Duplicate Signature
of applicant

FORM SR-7
[See Rule 23(6)]

Medical Certificate in respect of an application for obtaining Conductor's Licence

PART A

(To be filled in by the applicant)

1. Name of applicant
2. Father's name
3. Present address
4. Age
5. Identification marks

6. (a)
7. (b)
8. Is the applicant, to the best of your judgment, subject to epilepsy, vertigo or any mental ailment likely to affect his efficiency?
.....
9. Does the applicant suffer from any heart or lung disorder which might interfere with the performance of his duties as a conductor?
.....
10. Does he show any evidence of being addicted to the excessive use of alcohol, tobacco or drug?
11. Is he in your opinion generally fit as regards :
 (i) bodily health
 (ii) eye sight
 (iii) mental ability and
 (iv) hearing ability
12. Signature of the person examined.

I certify that the person examined has affixed his signature or thumb-impression hereto in my presence and that to the best of my knowledge and belief the above statements are true and that the attached photograph is reasonably correct likeness of the person described.



Name of registered medical
Practitioner.....
Registration No.
Signature
Designation

(Regd. Medical Practitioner)

(Registered medical practitioner shall also sign on the photograph in a manner that part of his signature is on the form).

FORM SR-8

[See Rule 25(1)]

Form of an application for renewal of a Conductor's Licence

I, hereby apply for renewal of the Conductor's licence No. under the Uttarakhand Motor Vehicles Rules, 2011, which is due to expire/ has expired onand was issued to me on thedate of by the licensing Authority

I, hereby declare that I am not subject to any disease or disability that is likely to hamper me in the performance of my duties, as a Conductor of stage carriage, I enclose medical fitness certificate, dated issued by

I also declare that I have not been challaned or convicted under the Motor Vehicles Act, 1988 during the last three years nor my licence been suspended or

cancelled by any competent authority, (in case of convictions or challans the same be mentioned in respect of previous three years)

Dated:

Signature of the applicant

* Strike out the alternative not required.

FORM SR-9
[See Rule 25(2)]

Intimation of renewal of conductor's Licence

From,

The Licensing Authority

To,

The Licensing Authority

Conductor's Licence No. dated the Issued by you in favour of.....

Name..... Name of father Permanent addresshas been renewed by me for a period of three years with effect from

Dated :

Signature and seal
of licensing authority

FORM SR-10
[See Rule 28(1)]

Intimation of loss or destruction of Conductor's licence and application for duplicate

PART-A

(To be filled in by applicant)

To,

The Licensing Authority

I, son of permanent resident of and presently residing at do hereby report that Conductor's Licence No. issued to me by the Licensing Authority, on the day of has been *lost/destroyed in the following circumstances :

(To be filled in

2. I hold a Conductor's Badge No. issued by the Licensing Authority
3. I hereby apply for a duplicate Conductor's Licence and tender rupees by Cash/Challan No. of Treasury.
4. I attach three clear copies of a recent photograph of myself.
5. I further declare that my Conductor's licence is not impounded by any authority, the licence has not been suspended or revoked by any authority and that the licence has not ceased to be valid by efflux of time.
6. I hereby declare that there have been *following/*no endorsement since the date of last renewal/ grant*

Serial No.	Date of endorsement	Particulars the order's of endorsement	Reasons for the orders of endorsement	Name of the authority making endorsement
1.	2.	3.	4.	5.
1.				
2.				

Dated

Signature applicant

*Strike out alternative not required

(for use in the office of licensing authority)

PART-B

Duplicate of conductor's licence no.....first granted on.....has been issued by me thisday of

*Strike out alternative not required

Application refused in letter no.....datedto the applicant giving reasons.

Dated.....

Signature and seal of
Licensing Authority

PART-C

(Part C, D and E will be printed on a separate sheet to part-A and B and will be used, if the application is made to an authority other than the original licensing authority).

Forwarded to the Licensing Authority for verification and completion of Part-D

Dated.....

Signature and seal of
Licensing authority

PART-D

Returned to the Licensing Authority

The photograph and signature* have been compared with my records. No such conductor's licence appears to have been issued by this office*.

*I am not satisfied that the applicant was the holder of the Conductor's licence described

*I am satisfied that the applicant was the holder of a badge and Conductor's licence issued by this office as follows:

- *(1) Badge No.
- (2) Conductor's Licence No.
- (3) Date of issue
- (4) Ist renewed upto by the Licensing Authority

Date.....

Signature and seal of
Licensing Authority

*Strike out alternative not required

PART - E

Returned to the Licensing Authority for record.

A Duplicate has been issued by me on the day of and a copy of photograph affixed thereto is attached.

*I have in my letter No. dated declined to issue the duplicate conductor's licence applied for and I attach a copy of that letter.

Date.....

Signature and seal of

*Strike out alternative not required

FORM SR-11
[See Rule 32(1)]

Stage carriage Conductor's Badge

District of the Licensing Authority State Carriage Conductor No.....
--

Badge shall be in a rectangular shape of 5 x 4 cms.

FORM SR-12
[See Rule 40(1)]

Application for Certificate of Fitness Grant/ Renewal

PART – A

(To be filled in by the applicant)

To,

The Registering Authority

.....

Authorised Testing Station

I hereby apply for the issue/renewal of certificate of fitness as required by section 56 of the Motor Vehicles Act, 1988 of the Vehicle described below :

Registration Mark of Vehicle

Name of owner

Place where the vehicle is ordinarily kept

Name of manufacturer of vehicle

Manufacturer's model, or if not knowledge wheel base

Type of vehicle

Chassis number

Engine number

Particulars of any previous certificate of fitness granted in respect of vehicle
.....

Authority by which granted/renewed

Date when certificate of fitness ceased to be valid

Reasons for cessation of validity

I enclose herewith tax clearance certificate required under rule 73 of the Central
rules.

Dated:

Signature or thumb
Impression of applicant

PART-B

(To be filled in by the inspecting officer)

Inspection report of Transport Vehicle No.

Regional/sub-Regional Office

Place of inspection

Date

Serial No.

Name and address of the registered owner

Registration number of the vehicle

Type of body

Name of manufacturer of vehicle

Year of manufacture

Wheel base

Chassis No.

Engine No.

Horse Power

Unladen weight of the vehicle

Gross vehicle weight

Number and size of Tyre

Front axle

Rear axle

Another axle.

Tandem axle.....

1. Body of the vehicle

- (a) General condition of the body
- (b) Paint work.....
- (c) Upholstery.....
- (d) Length of the vehicle.....
- (e) Width of the vehicle.....
- (f) Height of the vehicle Cms
(Measured from ground)
- (g) Head room Cms
- (h) GangwayCms
- (i) Distance between back of two seatsCms
- (j) Width of seatCms
- (k) Depth of seat.....Cms
- (l) Overhang.....Cms
- (m) Distance between driver's seat and steeringCms
- (n) Steps distance from ground to the top of the lowest step
.....Cms
- (o) Door width.....Cms.
- (p) Grab rail

2. Front axle and steering :

- (a) Steering lock
- (b) Wheel free movement
- (c) Steering connection
- (d) Steering turning circle and back lash
- (e) King pin and bushed
- (f) Front wheel bearings
- (g) Front wheel alignment

3. Transmission :

- (a) Clutch
- (b) Gear box
- (c) Universal joint
- (d) Propeller shaft
- (e) Differential

4. Engine :

- (a) Fuel system
- (b) Exhaust system
- (c) Ignition system
- (d) Smoke emission density

5. Lamps and electric system:

- (a) Head light.....

- (b) Side light.....
- (c) Back light.....
- (d) Stop light.....
- (e) Signal indicator.....
- (f) Dipper
- (g) Internal lightening system.....
- (h) Horn.....
- 6. Silencer.....
- 7. Brakes :
 - (a) Foot.....
 - (b) Hand.....
 - (c) Booster system.....
- 8. Condition of springing system.....
- 9. Compulsory equipment:
 - (a) Bulb horn.....
 - (b) Wind sheeled wiper.....
 - (c) Rear view mirror
 - (d) Speedometer.....
 - (e) Tools.....
 - (f) Spare wheel.....
 - (g) First aid box.....
 - (h) Tarpaulin.....
 - (i) Reflector.....
- 10. Condition of Tyres.....
- 11. Condition of chassis frame.....
- 12. Cleanliness.....
- 13. Any other observation or defects

*Recommended refused of fitness because of above mentioned defects.....

*Recommended grant of fitness for period of.....

Name and signature of
Inspector
Authorised Testing Station

FORM-C
(to be filled in by office)

Vehicle no.....
 Permit No.....valid up to.....
 Insurance policy.....
 Name of Insurance company.....
 Insurance valid up to.....

Road Tax paid up to
Additional tax paid up to.....
Inspection fee Rs.....realized vide receipt no.....
dated.....
Fitness certificate in respect of the vehicle is refused*refused/issued from
.....to.....next date of inspection of vehicles.....
Dated.....

Name and signature of
Registering authority/
Authorised testing station

*Strike out whichever is not applicable

FORM-D

(To be filled in by the inspecting officer and handed over to the owner)

Registration mark of the vehicle.....
Make and Model.....
Type of vehicle.....
Certificate of fitness.....
Issued by.....
Last renewed on.....
By.....
Date of inspection.....
Name and address of owner.....

The vehicle described above fails in my opinion to comply with the provisions of the Motor vehicles Act.,1988 and the rules made there under because of the following defects.....

I have therefore, impounded the certificate of fitness. The vehicle may be producer for examination at: -

1.(Here enter the place)
2.(Here enter the date)

or before theday of.....the vehicle may be driver to
.....for the repairs and thereafter to.....

It shall not be driven at a speed in excess ofkms per hour
and no passenger and goods shall be carried.

Fitness is granted.....

Date.....

Signature and seal
of the authority

FORM-SR13

[See Rule 40 (3)]

**Application for the date of inspection when the same is not endorsed on form
SR-12**

PART-A

(To be filled in by the applicant)

To the Registering Authority.....

I hereby apply for the date of inspection required under section 56 of Motor Vehicles Act, 1988 of the Vehicles described blow:

1. Registration Mark of the vehicle.
2. Date when certificate of fitness ceased to be valid
3. Name of the fitness certificate issuing authority

Date :

Name and signature
of the Applicant

PART-B

(To be filled in by the Registering Authority and handed over to the owner)

Registration Mark of the Vehicle

Name and address of the owner

Whereas the certificate of fitness is to expire on of the above mentioned vehicle. It may be produced for inspection on (Date, time and place shall be mentioned.)

Date :

Signature and Designation of
The Registering Authority

FORM SR-14

[See Rule 40 (6)]

**Temporary authorization for use of vehicle when the certificate of fitness has
expired.**

The certificate of fitness*.....registration mark.....
.....last renewed byon..... has
expired on

I hereby authorize the use of the vehicle until the day of
..... provided that it is forthwith removed with all reasonable dispatch
to the area of the authority by whom the certificate of fitness is due to be renewed :

Provided also that, while being used under this authorisation, the vehicle shall
not

** (a) carry more than Person excluding the driver;

** (b) carry any goods :

** (c) be driven at a speed in excess of kilometers per hour.

Place:

Dated:

Signature and seal of
Registering Authority

* Here enter brief description of vehicle

**Strike out if not required.

To,

The Registering Authority

.....

I have today authorised temporarily the use of
motor vehicle No. for its removal to The
authorisation issued is valid up to

Place:

Dated:

Signature and seal of
Registering Authority

FORM SR-15

[See Rule 40(7)]

Temporary authorization for removal of a damaged vehicle

Registration mark of vehicle

Make and model

Type of vehicle

Certificate of fitness

Number

Issued by

Last renewed on

by

Date of inspection

Name and address of owner

.....

(1) on (2) or at (1) on (2)

Name, Signature and
Seal of Authority

- 124 -

I am satisfied that the above mentioned vehicle has ceased to comply with the requirements of :

(A) Motor Vehicles Act, 1988 and rules framed thereunder

.....
.....

(mention facts)

I have, therefore, impounded the certificate of fitness. The vehicle may be produced for re-examination at (1) on (2) or at (1) on (2)

On or before the day ofthe vehicle may be driven tofor repairs and thereafter to it shall not be driven at a speed in excess kilometers per hour and (3) passenger and goods may be carried.

The certificate of registration and any permit granted in respect of this vehicle shall also be deemed to be suspended until a new certificate of fitness has been obtained.

Place

Date:

Signature and seal of the authority

(1) Here enter time and place

(2) Here enter date.

(3) Here enter the word "No" unless for and special reasons some load is to be allowed.

FORM SR-17

[See Rule 42(2)]

Form of application for Temporary Registration of a Motor Vehicle

To,

The Registering/Prescribed Authority

.....

1. Full name of the person to be registered as registered owner Son/Wife/ Daughter of
2. Permanent address of the applicant (evidence to be produced)
3. Place where vehicle shall be permanently registered
4. Name and address of the dealer or manufacturer from whom the vehicle was purchased (sale certificate and certificate of road worthiness issued by the manufactures to be enclosed).....

5. Class of vehicle –
(If Motor Cycle, whether with or without gear)
6. The motor vehicle is :
(a) A new vehicle
(b) Ex-army vehicle
(c) Imported vehicle
7. Type of vehicle
8. Type of body
9. Maker's name
10. Month and year of manufacturer
11. Horse power
12. Cubic capacity
13. Maker's classification or if not known, wheel base
.....
14. Chassis number (Affix Pencil
print)
15. Engine number
16. Seating capacity
(Including Driver)
17. Fuel used in the Engine
18. Unladen weight
19. Gross vehicle weight (a) as
certified by the manufacturer (b) to be
registered
20. Colour/colours of body, if any
21. Purpose of temporary registration
22. I have paid the prescribed fee of rupees (Fee
shall be as prescribed in Rule 81 of Central Rules in respect of
registration of vehicle applied for)
I have declared that the vehicle has not been registered in any State in
India.

(Signature of the owner)

FORM SR-18

[See Rule 42(3)]

Temporary Registration Certificate

Temporary Registration mark

Name and address of owner with Father/Husband's Name.....
.....

1. Chassis No. of vehicle.
2. Maker's Name
3. Engine No.

4. Type of body
5. Seating capacity
6. Colour
7. Purpose of Temporary Registration.....
.....
8. This vehicle is held by the owner under hire purchase agreement/ lease/hypothecation with (full name and address of the person with whom such agreement has been entered into by the owner)

Under the provisions of the Motor Vehicles Act, 1988, the vehicle described above has been temporarily registered by me and the registration is valid until the date of

Signature or thumb-impression
Of the owner

Dated:

Signature and seal of
Registering Authority

FORM SR-19
[See Rule 54(2)]

**Monthly return of motor vehicles stolen and motor vehicles Recovered
throughout
Uttarakhand during the calendar month of.....**

	Name of District police station		Particulars of vehicle stolen/ recovered						Date of F.I.R. about theft	If recovered date & place of recovery	Follow-up action taken (in brief)
Serial No.	District	Police Station	Registration No.	Chassis No.	Engine No.	Class/Category	Maker's Name	Owner's Name & Address			
1	2	3	4	5	6	7	8	9	10	11	12

Signature and Seal
of the Competent
Authority

- Note: (a) If the stolen vehicle in Columns 4 and 10 was not recovered during the month under report, then a cross(X) may be made against it in Column 11.
- (b) If the recovered vehicle indicated in Column 4 and 11 was not stolen during the month under report, then a cross (X) may be made against it in Column 10.

FORM SR-20
[See Rule 65(1)]

Application for permit in respect of a Stage Carriage

To,

The State/Regional Transport Authority

.....

In accordance with the provisions of sections 69,70 and 80 of the Motor Vehicles Act, 1988, I/We hereby apply for the grant of permit under section 66 of the said act in respect of a Stage Carriage */ Service of Stage Carriage, as hereunder set out :

1. Full name
2. Status of the applicant (whether individual, company or partnership firm, Co-operative Society etc.)
.....
3. Name of the Father/Husband, in the case of an individual, and in the case of a firm or company, the name of the managing partner or the managing director, as the case may be
.....
4. Full address :
(i) Permanent
(ii) Present

(to be supported by attested copy of ration card, electricity bill etc. or any other valid documentary proof to the satisfaction of the transport authority in the case of an individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed)

.....

5. The route/area for which the permit is desired
6. (a) Type of vehicle and registration number, if any
.....
(b) Minimum and maximum number of trips to be provided
.....

Or

in the case of service of Stage Carriage

- (i) The maximum number of vehicles which will ply at any one time under the terms of the permit in the area or on any route and the maximum number of daily trips
 - (ii) The minimum number of the vehicle which will ply at any one time under the terms of the permit And the minimum number of daily trips
 - (iii) The type or types of the vehicles to be used on the service and the approximate seating capacity are vehicles of not less than seats vehicles of not less than and not more than seats vehicles of not less than and more than seats.
- 7. Particulars of time-table(s) proposed is/are appended
 - 8. The standard rate of fare proposed to be charged is per passenger per kilometer.
 - 9. Number of vehicle to be kept in reserve to maintain the service regularly as also to provide for special occasions
 - 10. Particulars of arrangements made for housing, repair and maintenance of vehicles
 - 11. Particulars of arrangements made for comfort and convenience of passengers and for the storage and safe custody of luggage.....
 - 12. Particulars of any valid Stage Carriage or Contract Carriage permit held by the applicant in respect of
 - (a) This vehicle
 - (b) Any other vehicle
 - 13. Whether any of their permits stated above has been subject to an order of suspension or cancellation in last four years, if so give details.
 - 14. Whether all the taxes in respect of the vehicle covered by permits stated above have been paid up-to-date. If so enclose no dues certificate of the concerned taxation officer. If not give details of the arrears (to be supported by the certificate of concerned Taxation Officer).
 - 15. I/We have paid the prescribed application fee of Rs..... In the shape of non-judicial stamps.

16. I/We are in the possession of the vehicle/vehicles, certificate(s) registration and insurance which are being enclosed.
17. I/We have not yet obtained possession of the vehicle and I/we understand that the permit will not be issued until I/We have produced the certificate of registration.
18. I/We hereby declare that above statements are true and agree that they inter alia shall be conditions of the permit issued to me.

Dated:

Signature or thumb
Impression of the
Applicant (s)

Note – Strike out whichever is not applicable

To be filled in the Office of the Transport Authority

1. Date of Receipt
2. Date of application
3. Granted/granted in modified form/ rejected on
4. Number of permit issued
5. Serial number of permit/ permits issued

(Name)
Secretary,
.....Transport Authority

To be filled in by the office and returned to the applicant

Received from Sri..... S/o Sri R/o
..... an application for permit in respect
of Stage Carriage for service of Stage Carriage the route/ area
on and entered at serial No. of the register maintained under
rule 62 of the Uttarakhand Motor Vehicles Rules, 2011.

Date :.....

Secretary,
.....Transport Authority

FORM SR-21
[See Rule 65(2)]

Application for permit in respect of a contract carriage

To,

The State/Regional Transport Authority:
.....

In accordance with the provisions of section 69, 73, and 80 of the Motor Vehicles Act, 1988, I/We, the undersigned hereby apply for permit under section 66 of the said Act in respect of a contract carriage as hereunder set out :

1. Full name
2. Name of the Father/Husband, in the case of an individual and in the case of a firm or company, the name of the managing partner or the managing director as the case may be
.....
3. Status of the applicant, (whether individual, company or partnership firm, Co-operative Society etc.)
.....
4. Full address :
(i) Permanent
(ii) Present

(To be supported by attested copy of ration card, electricity bill or any other valid documentary proof to the satisfaction of the transport authority in the case of an individual and in the case of company or firm certified copy of the memorandum of association or copy of the partnership deed)
.....

5. Area or routes for which permit is desired.
6. The type of the vehicle, its model and registration mark.
.....
7. Registered seating capacity
8. Particulars of service to be performed by the contract carriage (not necessary in the case of motor cab), and the manner in which it is claimed that public convenience will be served.....
.....
9. Whether fitted with taxi-meter (in the case of motor cab only)
.....

10. Particulars of any valid stage carriage or contract carriage permit (or similar authorisation) held by the applicant:

(a) This vehicle:

Permit No.	Issued by	Area	Period of Validity
------------	-----------	------	--------------------

(b) Any other vehicle (as above)

11. Particulars of any permit held by the applicant in respect of the use of any transport vehicle in any state during the last four years which has been the subject of any order of suspension or cancellation, if so give details
12. Whether all the taxes in respect of the vehicles covered by permits stated above have been paid up-to-date, if so enclose no dues certificate of the concerned Taxation Officer, if not so give details of the arrears (to be supported by the certificate of concerned Taxation Officer)
13. Details of arrangements made for comfort and convenience of hirers and for the storage and safe custody of the luggage
14. I/We are in the possession of the vehicle and enclose herewith certificates of registration and insurance in respect of the vehicle
15. I/We have paid the prescribed application fee of Rs. in the shape of non-judicial stamps
16. I/We have not yet obtained possession of the vehicle and I/We understand that the permit will not be issued until I/We have produce the certificate of registration
17. I/We hereby, declare that above statements are true and agree that they inter alia shall be conditions of the permits issued to me/us

Dated:.....

Signature or thumb
Impression of the applicant(s)

*Strike out whichever is not applicable

To be filled in by the office of the Transport Authority

1. Date of receipt
2. Date of application
3. Date of

Circulation to members

.....

Consideration at meeting

.....

Decision by Chairman

.....

4. Granted

.....

Granted in modified form

.....

Rejected

5. Number of permit

Secretary,
Transport Authority

FORM SR-22

[See Rule 65(3)]

Application for permit in respect of a goods carriage

To,

The Stage/Regional Transport Authority:

.....

In accordance with the provisions of sections 69, 77, and 80 of the Motor Vehicles Act, 1988, I/we, the undersigned, hereby apply for, permit under section 66 of the that act in respect of a goods carriage as hereunder set out :

1. Full name
2. Status of the applicant whether individual, company or partnership firm,
co-operative society etc.
3. Name of the Father or Husband (in the case of an individual and in the
case of a firm or company, the name of the managing partner or the

managing director as the case may be)

4. Full address –
(a) Permanent (b)
Present
(to be supported by attested copy of ration card, electricity bill or any other valid documentary proof to the satisfaction of the Transport Authority in the case of individual and in the case of a company or firm certified copy of the memorandum of association or copy of the partnership deed).
5. Area or route for which permit is desired
6. Nature of goods to be carried
(Specific mention to be made whether the applicant intends to carry dangerous and hazardous goods)
7. Type and capacity of vehicles including trailers and alternative trailers of articulated vehicle

Number of vehicle		Type	Gross vehicle weight	
1		2	3	
Unladen weigh		Registration marks	Overall length	Overall width
4		5	6	7

8. Name, address and licence number of forwarding and collecting agency whereto the vehicle to be attached
9. Particulars of any valid goods carriage permit (for similar authorisation held by the applicant)
10. Particulars of any permit held by the applicant which has been the subject to any order of suspension or cancellation during the preceding four years.
11. Standard rate of freight proposed to be charged for carriage of goods Paisa per quintal per kilometer.
12. I/We have paid the prescribed application fee of Rs... in the shape of non-judicial stamp.
13. I/we enclose the certificate(s) of registration of the vehicle(s)
14. I/We hereby declare that the above statements are true and agree that they inter alia shall be conditions of any permit issued to me/us

Date :

Signature or Thumb-impression
of the applicant(s)

To be filled in by the office of the Transport Authority

1. Date of receipt

2. Date of application
3. Granted
Granted in modified form on
Rejected
4. Number of permit issued

Secretary,
Transport Authority
.....

FORM SR 23
[See Rule 65(4)]

Application for Private Service Vehicle Permit

To,

The Transport Authority

.....

In accordance with the provision of section 69, 76 of the Motor Vehicles Act, 1988. I/we the undersigned, hereby apply for a private service vehicle permit under the provisions of section 66 of the Act, as hereunder set out –

1. Full Name
2. Name of Father/Husband
(in the case of an individual)
3. Address –
(a) Permanent
- (b) Present
4. The area or route for which the permit is desired
5. The purpose for which permit is desired
6. The manner in which the purpose of carrying persons, otherwise than for hire or reward or in connection with the trade or business carried on by applicant, will be served by the vehicle
7. Types and seating capacity of the vehicle :

Registration mark of vehicle	Type	Seating capacity	Gross vehicle weight
1	2	3	4

NOTE – If the vehicle is not in the possession of the applicant, it will suffice if the figures in columns (3) and (4) are correct, within ten per cent above or below, subject to any limitation of weight in force. The certificate of registration must be presented to the Transport

Authority so that the registration marks may be entered in the permit before the permit is issued.

8. The nature of the applicant's trade or business
9. Place of business (with Postal address)
10. Specification of the persons to be carried to and from the place of business
11. Evidence of financial stability of the applicant (e.g., particulars of the Income Tax and the Trade Tax return, for the immediately preceding year, furnished to the appropriate authorities)
12. I/We, desire a permit valid for year, months and have paid the prescribed application fee of Rupees in the shape of non-judicial Stamp.
13. I/We, hereby, declare that the above statements are true and agree that they inter alia shall be conditions of the permit issued to me/us.

Place :

Date :

Signature (s) or thumb impression (s)
Of applicant (s)

To be filled in the office of the Transport Authority

1. Date of receipt
2. Date of circulation to members/consideration* at meeting/* decision by Chairman
3. Granted*/Granted* in modified form/* Rejected on the day of
4. Number of permit

Date :

Secretary,
Transport Authority
.....

FORM SR 24
[See Rule 65(5)]

Application in respect of Temporary Permit

To,

The State/Regional Transport Authority
.....

In accordance with the provision of section 69 and 87 of the Motor Vehicles Act, 1988. I/we the undersigned, hereby apply for a temporary permit under section 66 of that Act as hereunder set out:

1. Full Name
2. Name of Father/Husband (in the case of an individual)
3. Address –

- (a) Permanent
- (b) Present
4. Nature of permit Stage
Carriage/Contract Carriage/ Goods Carriage
5. Purpose for which permit is required
6. Route/Area
7. Period of duration of permit from to (Both
days inclusive)
8. Justification of temporary need
9. Registration mark of the vehicle
10. Type and laden weight/seating capacity of the vehicle for which the
permit is required
11. I have paid the prescribed application fee of Rs.....
12. I enclose no dues certificate of the concerned Taxation Officer in respect
of the vehicle for which permit is required
13. I/We hereby declare that above statements are true and agree that they
inter alia shall be conditions of permit issued to me/us.
.....

Dated

Signature/thumb impression of the applicant

To be filled in by the office of the Transport Authority

1. Date of receipt
2. Granted/Granted in modified form/rejected on the day of
.....
3. Permit number issued

Secretary,
Transport Authority
.....

FORM SR 25
[See Rule 65(6)]

Application for a special Permit

To,

The Transport Authority
.....

As my/our vehicle has been engaged by persons whose particulars are given below to visit the place mentioned hereunder, I/We, hereby, apply in accordance with the provisions of sub-section (8) of section 88 of the Motor Vehicles Act, 1988, for grant of permit under section 66 of that Act:

1. Name of the Registered owner

2. Father's/Husband name (in the case of individual)
3. Full address :
(a) Permanent
(b) Present
4. Registration mark of the vehicle
5. Purpose for which permit is required
6. Period of duration of permit from to
7. Type and seating capacity of the vehicle or vehicles for which permit is required
8. Routes through which the journey shall take place
9. Particulars of the ordinary permit of the vehicle proposed to be engaged.....No. Route.....validity.....
10. I/We have paid the prescribed application fee Rs.in the shape of non-judicial stamps
11. I/We have enclosed following bank drafts in lieu of the taxes of the concerned States Drafts/drafts drawn through State Bank of India :

Sl. No.	Name of State	Amount	Nature of Tax
1.	2.	3.	4.
B.D. Number & date		Authority whom remitted	
5.		6.	

12. I/We declare that there shall be two drives on the vehicle.
13. I/We declare that above statements are correct and that they inter alia shall be conditions of permit granted to me/us.
14. Particulars of the persons:

Sl. No.	Full name	Father/Husband name
1	2	3
Age		Place of residence
4		5

Date :

Signature/Thumb-impression
of the applicant(s)

FORM SR-26
[See Rule 66(1)(i)]

Permit in respect of stage carriage

..... Transport Authority

.....

Permit No.

1. Name of the holder
2. Father's/Husband's name (in the case of an individual)
3. Address :
 - (a) Permanent
 - (b) Present
4.
 - (i) Registration Mark of the vehicle
 - (ii) Model
 - (iii) Chassis Number
 - (iv) Engine Number
 - (v) Name of the financier, if any, with whom the vehicle is under hire purchase agreement.....
5. Number of passenger's seat with standing allowed, if any,
6. Route/Area for which permit is valid
7. Period of validity from to
8. Rate of fare approved.....paise per passenger per kilometer
9. Particulars of approved time table
10. Number of daily single trips allowed
11. Goods, in addition to passengers and their personal luggage may be carried subject to the condition mentioned hereunder
12. Fare table shall be exhibited in the vehicle.
13. Time Table shall be exhibited on the vehicle and at the bus stand.
14. Tickets shall be issued to passengers.
15. Monthly return shall be submitted to the transport authority in the manner prescribed by the State Government from time to time.
16. This permit shall be subject to the conditions laid down under section 84 of the Motor Vehicles Act, 1988.
17. Other conditions :
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the Uttaranchal Motor Vehicles Taxation Reforms Act, 2003 and the rules made thereunder or have been suspended or cancelled;
 - (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid

and if tax is not duly paid within the period specified in Uttranchal Motor Vehicles Taxation Reforms Act, 2003, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax.

- (3) That save as provided in sub-section (2) of section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (6) That only such advertising matters as are directly related to the permit holders business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, wind screen and dash-board of the vehicle: Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material descriptions painted, inscribed or fixed in or over the vehicle.
- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

18. Any other conditions.

19. Under Rule 76 of the Uttarakhand Motor Vehicles Rules, 2011 the permit is also valid in the Regions and subject of the conditions setout below :

Region	Route(s)/Area	Conditions
--------	---------------	------------

--	--	--

Date :

Secretary,
Transport Authority
.....

RENEWAL

This permit is hereby renewed upto..... w.e.f.
..... subject to the following further conditions:

- (1)
- (2)
- (3)
- (4)

It is effective also in the following State/Regions, subject to any conditions attached to the previous counter signature.

- (1)
- (2)
- (3)

Date:

Secretary,
Transport Authority
.....

COUNTER SIGNATURE

No.

.....Transport Authority

Countersigned for Route/Area subject to the following variation of conditions:-

- (1)
- (2)
- (3)
- (4)

Date :

Secretary,
Transport Authority
.....

RENEWAL OF COUNTERSIGNATURE

The countersignature is hereby renewed upto

Date :

Secretary,
Transport Authority
.....

FORM SR-27
[See Rule 66(1)(ii)]

Permit in respect of contract carriages

..... Transport Authority,

.....

Permit No.

1. Name of the holder
2. Father's/Husband's name (in the case of an individual)
3. Address: (a)
 Permanent (b)
 Present
4. (i) Registration Mark of the vehicle (ii)
 Model (iii)
 Chassis Number (iv)
 Engine Number (v)
 Class of vehicle.....
 Motor cab Maxi cab Omnibus Bus
 (vi) The vehicle is under hire-purchase agreement with
5. Route/Area for which the permit is valid
6. Date of expiry of the permit
7. Rate of fare per kilometer
8. This permit shall be subject to the conditions laid down in section 84 of the Motor Vehicles Act, 1988.....
9. The records to be maintained and the date on which returns are to be submitted to the Transport Authority
10. Other conditions :
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the Uttranchal Motor Vehicles Taxation Reforms Act, 2003. and the rules made thereunder or have been suspended or cancelled;
 - (2) That the vehicle covered by such permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the Uttranchal Motor Vehicles Taxation Reforms Act, 2003, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax.
 - (3) That save as provided in sub-section (2) of section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
 - (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;

- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (6) That only such advertising matters as are directly related to the permit holders business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, wind screen and dash-board of the vehicle; Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material description painted, inscribed or fixed in or over the vehicle.
- (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

11. Any other conditions

.....

.....

.....

12. The permit is valid also in the regions and subject to the conditions setout below :-

Region	Route(s)/Area	Conditions
1	2	3

Date :

Secretary,
Transport Authority
.....

RENEWAL

This permit is hereby renewed up to the..... day of
..... subject to the following further conditions:

- (1)
- (2)
- (3)

It is effective also in the following State/Regions, subject to any conditions attached to the previous counter signature.

Date :

Secretary,
Transport Authority
.....

COUNTER SIGNATURE

.....Transport Authority

.....

No.

Countersigned for Route/Area

subject to the following variation of conditions :-

- (1)
- (2)
- (3)

Date :

Secretary,
Transport Authority
.....

RENEWAL OF COUNTERSIGNATURE

The above countersignature is hereby renewed upto

Date :

Secretary,
Transport Authority
.....

FORM SR-28

[See Rule 66(1)(iii)]

Goods Carriage Permit

..... Transport Authority

Permit No.

- 1. Name of the holder
- 2. Father's/Husband name (in the case of an individual)
- 3. Address : (a)
Permanent (b)
Temporary
- 4. (i) Registration Mark of the vehicle (ii)
Model (iii)
Chassis Number (iv)
Engine Number
- 5. Route/Area of which permit is valid
- 6. Date of expiry of the permit

7. Load capacity of the vehicle –
 - (i) Gross vehicle weight (ii)
 - Unladen weight (iii)
 - Pay load
8. Nature of goods to be carried
9. Record to be maintained and the date on which returns are to be submitted to the Transport Authority
10. The permit shall be subject to the conditions laid down in section 84 of Motor Vehicles Act, 1988.
11. No goods shall be collected from nor shall be delivered to a collecting forwarding and distributing agent who engages in this business without obtaining valid licence for the purpose.
12. Other conditions :-
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the Uttranchal Motor Vehicles Taxation Reforms Act, 2003 and the rules made thereunder or have been suspended or cancelled;
 - (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the Uttranchal Motor Vehicles Taxation Reforms Act, 2003 or the Rules made thereunder as the case may be, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax.
 - (3) That save as provided in sub-section (2) of section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
 - (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
 - (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
 - (6) That only such advertising matters as are directly related to the permit holders business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle; Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material descriptions painted, inscribed or fixed in or over the vehicle.
 - (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such manner that it is readily available for inspection at any time by any authorised person.
13. Any other conditions
 - (1)
 - (2)
 - (3)

(4)
(5)

Date :

Secretary,
Transport Authority
.....

RENEWAL

This permit is hereby renewed upto subject to the following
further conditions :

.....

Date :

Secretary,
Transport Authority
.....

COUNTER SIGNATURE

Countersigned for Route/Area.....subject to the

.....
.....

Date:

Secretary,
Transport Authority
.....

FORM SR-29

[See Rule 66(1)(iv)]

Private Service Vehicle Permit

..... Transport Authority

Permit No.

1. Name of holder
2. Father's/Husband name (in the
case of an individual)
3. Address:
(i) Permanent..... (ii)
Present
4. Place and nature of
business (with
postal address)
5. Area or route(s) for which permit is valid
6. Type and seating capacity of the vehicle :

Registration mark of the vehicles	Type	Seating capacity	Gross vehicle weight	Chassis no. of the vehicle
1	2	3	4	5

7. Nature and maximum number of persons to be carried to and from the place of business
8. Date of expiry of the permit
9. Conditions :
 - (a) The vehicle shall be used only in the area on the route or routes specified in the permit ;
 - (b) No fare shall be realized from any person carried in the vehicle nor shall the expenses or any part of expenses incurred or likely to be incurred on the operation and maintenance of the vehicle be recovered from such person in any manner, whatsoever;
 - (c) The holder of the permit shall legibly display the words "PRIVATE SERVICE VEHICLE", not less than 10 cms. high, in black on white ground on a board or place affixed to the front of the vehicle at the level of the roof;
 - (d) The maximum number of persons that may be carried in the vehicle covered by the permit shall not exceed and the maximum weight of luggage that may be carried in the vehicle shall not exceed.....quintals;
 - (e) Standards of comforts, cleanliness and maintenance of the vehicles as specified for public service vehicles in the Motor Vehicles Act, 1988 or rules made thereunder shall be maintained in the vehicle;
 - (f) No advertising matter shall ordinarily be displayed on the vehicle. However, the holder of the permit may, with the written permission of and in the manner prescribed by the Transport Authority by which the permit is issued display such advertising matters on the vehicle as are directly related to his business in furtherance of which the permit is obtained;
 - (g) No Television set or video or radio or any instrument like taperecorder shall be fixed on dash board of the vehicle not shall be placed at or near it not it shall be kept within the seight of the driver.
 - (h) The holder of the permit shall cause it to be carried on a glazed frame or other suitable container carried in or affixed to the interior of the vehicle in such a way as to maintain it in a clean and legible conditions, readily available for inspection at any time by any authorised person;
 - (i) The holder of the permit shall furnish to the Transport Authority by which the permit is issued, such periodical returns, statistics and other information as the State Government may, from time to time specify;
 - (j) The holder of the permit shall also abide by –
 - (i) the conditions prescribed under section 84 of the Motor Vehicles Act, 1988 and other provisions of the Act, in so far as they apply to the holder of the permit,
 - (iii) any other condition or conditions that may be specified by the State Transport Authority or the Regional Transport Authority;
 - (k) The Transport Authority by which the permit is issued may, after giving notice of not less than one month vary the conditions of the permit or attach thereto any further conditions.
10. Any other conditions :
 - (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and

token relating to it are or have been surrendered in accordance with the provisions of the Uttaranchal Motor Vehicles Taxation Reforms Act, 2003 and the rules made thereunder or have been suspended or cancelled;

- (2) That the vehicle covered by such a permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the Uttaranchal Motor Vehicles Taxation Reforms Act, 2003, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax.
- (3) That save as provided in sub-section (2) of section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
- (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
- (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
- (6) That only such advertising matters as are directly related to the permit holders business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle may, be displayed on the vehicle save on any part of the bonnet, front screen, wind screen and dash-board of the vehicle;

Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material descriptions painted, inscribed or fixed in or over the vehicle.

7. That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.
11. The permit is valid also in the regions and subject to the conditions set out below :

Region	Area/Route	Conditions
1	2	3

Date :

Secretary,
Transport Authority
.....

RENEWAL

Renewed up to

Subject to.....

Date :

Secretary,
Transport Authority

.....

COUNTER SIGNATURE

Permit No.

Countersigned for the area subject to the following conditions:

.....

Date :

Secretary,
Transport Authority

.....

RENEWAL OF COUNTERSIGNATURE

The above countersignature is hereby renewed upto subject to the following conditions :

.....

Date :

Secretary,
Transport Authority

.....

FORM SR-30

[See Rule 66(1)(v)]

Temporary Permit

..... Transport Authority,

Permit No.

1. Name of the holder
2. Father's/Husband's Name (in the case of an individual)
3. Address :
 - (a) Permanent (b)
 - Present
4. Type of vehicle-Stage Carriage/Goods Carriage/Contract Carriage.
5.
 - (i) Registration mark
 - (ii) Chassis No.
 - (iii) Seating capacity
 - (iv) Laden weight
6. Route/Area for which the permit valid
7. Purpose of Journey
8. Nature of goods if to be carried
9. Date of expiry
10. Number and description of the permit already held.....
11. Route/Area for which the permit already held is valid

12. Amount of additional Tax paid under Uttranchal Motor Vehicles Taxation Reforms Act, 2003 vide receipt
13. This permit is granted subject to the condition that it shall be surrendered to the authority granting permit within twenty-four hours of its expiry.
14. Any other conditions :
- (1) That the vehicle covered by such a permit shall in no case be used in any public place during the period in which the registration certificate and token relating to it are or have been surrendered in accordance with the provision of the Uttranchal Motor Vehicles Taxation Reforms Act, 2003 and the rules made thereunder or have been suspended or cancelled;
 - (2) That the vehicle covered by such permit shall in no case be used in any public place unless the taxes levied by the State Government and payable in respect thereof have been duly paid and if tax is not duly paid within the period specified in the Uttranchal Motor Vehicles Taxation Reforms Act, 2003, it shall be presumed that the holder of permit has intentionally evaded the payment of such tax.
 - (3) That save as provided in sub-section (2) of section 82 the permit shall not be transferred to any other person except with the permission of the Transport Authority which granted the permit;
 - (4) That the vehicle shall be used in the area or on the route or routes specified in the permit;
 - (5) That the maximum number of persons or maximum weight of luggage that may be carried in the vehicle covered by the permit shall not exceed as given in the certificate of registration;
 - (6) That only such advertising matters as are directly related to the permit holders business in furtherance of which the permit is obtained and which does not in any way change the identity of the vehicle, may be displayed on the vehicle save on any part of the bonnet, front screen, wind screen and dash-board of the vehicle;
Provided that no advertising matter shall cover or be at a distance of less than 20 centimeters of any material descriptions painted, inscribed or fixed in or over the vehicle.
 - (7) That the holder of the permit shall cause the permit to be carried in the vehicle in such a manner that it is readily available for inspection at any time by any authorised person.

Date :

Secretary,
Transport Authority
.....

FORM SR-31
[See Rule 66(1)(vi)]

Special Permit under Section 88(8)

..... Transport Authority
..... Special Permit No.

Certified that the vehicle bearing:

- (i) Registration mark
(ii) Chassis No.
(iii) Engine No. and
owned by S/O
..... R/O
..... and covered by
regular permit no. Issued by the
state/Regional Transport Authority has been engaged as
a contract carriage by the persons whose particulars are given below
.....

Sl. No.	Full Name	Father/Husband Name	Age	Place of Residence
1	2	3	4	5

The above named person will be visiting the following places through the routes indicated against them –

.....
.....The
permit is valid up to

Certified that in respect of the vehicle mentioned above all taxes and fees payable in this State upto the date of expiry of this permit have been paid.

This permit is valid for the places mentioned above without countersignature by any other State/Regional Transport Authority.

Date :

Secretary,
Transport Authority
.....

FORM SR-32
[See Rule 85(1)]

Application for replacement of a vehicle covered by a permit

To,

The Transport Authority
.....

In accordance with the provision of section 83 of the Motor Vehicles Act, 1988, I/We the undersigned apply for permission to replace the vehicle whose particulars are

given in column (2) below for vehicle No.
 covered by permit numberRoute/ Area
 described in column 1. below:

Old Vehicle	Vehicles to be replaced
1.	2.

- | | |
|----------------------------|----------------------------|
| 1. Registration Mark | 1. Registration Mark |
| 2. Model | 2. Model not below |
| 3. Seating Capacity | 3. Seating Capacity |

2. *I/We herewith enclose the certificate of Registration and insurance of the vehicle proposed to be replaced.

"Vehicle is not yet in our possession but we understand that we shall have to produce the Registration certificate of the vehicle proposed to be replaced within time allowed for replacement, otherwise the permit will stand cancelled unless further time is allowed.

3. Reasons for seeking replacement
4. Details of the use of vehicle replaced.
5. All taxes due in respect of the vehicle sought to be replaced has been paid upto date (Certificate attached).
6. I/We have paid the prescribed fee Vide receipt No dated
7. I/We declare that all statements given above are true.

Date:

Signature/Thumb-impression
of the applicants(s)

* Strike out the alternative which is not applicable.

FORM SR-33
[See Rule 88(1)]

Application for Transfer of Permit

To,

The Transport Authority

In accordance with sub-rule (1) of rule 88 of the Uttarakhand Motor Vehicles Rules, 2011 I/We apply for transfer of the permit, the details whereof are as under:

1. Number of permit
2. Route/Area
3. Period of validity

4. Name of permit holder
5. Name of the transferee
6. Address of the transferee :
 - (a) Permanent (b)
 - Present
7. Reason for the transfer
8. I declare that no consideration has been received by for the transfer of the above mentioned permit.

Date:

Signature/Thumb-impression
of the transferee

(II)

DECLARATION BY THE TRANSFEREE

I/We hereby declare that –

- (1) No consideration has been paid by me/us for transfer of the permit.
- (2) I/We shall abide by the conditions attached to the permit under transfer.
- (3) I/We shall produce the certificates of registration and insurance of the vehicle as and when directed by the Transport Authority.

Date:

Signature/Thumb-impression
Of the Transferee

(To be filled in by the Transport Authority)

1. Date of receipt
2. Date of submission before Regional Transport Authority /State Transport Authority
3. Transfer refused/allowed on
4. Transfer recorded on

Date :

Secretary,
Transport Authority
.....

FORM SR-34 [See Rule 99(1)] Complaint Book

(To be kept on stage carriage in triplicate)

To,
Manager, Stage Carriage Service,
.....

Name of complainant.....
Father's name
Address
Ticket No.....
Vehicle No.
Complaint.....

Date:

Signature/Thumb-impression
Of the Complainants

FORM SR-35
[See Rule 110(1)]

Temporary Authorization in lieu of permit

Receipt for –

- (1) Registration Certificate
(2) Road Permit
(3) Insurance Certificate
(4) Conductor's Licence
Registration mark of the vehicle.....
Stage Carriage/Goods Carriage/Engine No.....
Chassis No.
Registration Laden Waite. Seating Capacity ...--
Name of the owner
Permit No.....
Date of expiry
Route
Fitness up to
Tax paid up to
Insurance certificate up to
Name of the Driver/Conductor
Driving Licence/Conductor's licence no.....
Valid upto
Conditions of the permit
Other conditions, if any

Date

Signature of the Officer
With his Office Stamp.

The above authorisation is valid upto

Signature of the Officer,

FORM SR-36
[See Rule 114(1)]

**Application for licence to work as agent in the business of collecting forwarding
and distributing goods carried by goods carriages**

To,

Regional Transport Authority,
..... Region.

1. Full name
2. Name of Father/Husband (in the case of individual)
3. Address—
 - (a) Permanent
 - (b) Present
4. Educational qualification or experience of transport business management.....
5.
 - (a) Place where the applicant proposes to engage as an agent for principal establishment
 - (b) Place/Places where he proposes to establish his sub-agencies/ branch offices
6. Nature and extent of financial resources of the applicant
7. Particular of goods carriages either owned by the applicant or under his control
 - (a) Total No.....
 - (b) Make
 - (c) Model or years of manufacture.....
 - (d) Registered laden weight
 - (e) Registration marks.....
8. Additional particulars to be supplied where the application is for a licence as forwarding agent or collecting and forwarding agent
 - (a) Particulars of the site and its location
 - (b) Description of the premises (nature of buildings, extent of the site etc.)
 - (c) Facilities, if any, provided by the applicant for parking the goods carriages
 - (d) Facilities provided by him for loading and unloading goods
 - (e) Particulars of weighing device provided at the above-mentioned places
9. I am/We are fully conversant with the conditions of goods carriages permits and the provisions of the Motor Vehicles Act, 1988 and the Rules made thereunder so far as they relate to the restrictions regarding the routes, weights, loading and unloading of goods and the duties and functions of agents.

I/We hereby declare that the best of my/our knowledge and belief the particulars given above are true.

Place and date.....

Signature of applicant

FORM SR-37
[See Rule 114(4)]

Agents Licence

Licence No. Issued on 20..... by which
Name Son/daughter/wife of Address
..... is licenced to engage as
Agent for collecting forwarding, or distributing goods carried by goods vehicle plying
for hire.

At
(Principal place)

He is also licenced to engage as Agent at the following places:-

- | | |
|-----|------|
| (1) | (6) |
| (2) | (7) |
| (3) | (8) |
| (4) | (9) |
| (5) | (10) |

(if there are more places, attach a separate sheet). The licence is valid from
..... to

So long as this Agent's licence is valid and renewed from time to time for the
premises approved and which are maintained as per provisions of sub-rule (1) of rule
120 the holder is authorised to engage himself for carrying on the business as Agent
for collecting forwarding or distributing goods by goods vehicle for hire.

This licence shall be subject to the following conditions:

- (i) The licence shall, subject to the provisions of Rule 120 provide adequate space for the parking of vehicles for the purpose of loading and unloading goods.
- (ii) The licensee shall be responsible for proper arrangement for storage of goods awaiting delivery or dispatch or both.
- (iii) The licensee shall -
 - (a) take all necessary steps for proper delivery of the goods to the consignee;
 - (b) be liable to indemnify the consignee for any loss or damage to goods while in his possession by taking out adequate insurance cover. where available at the cost of the consignor or consignee;
 - (c) issued to the consignor/consignee a note only after receipt of goods for dispatch stating therein the weight, nature of goods destination, approximate distance over which the goods are to be carried, the freight charge, the service charge, if any, such as for local transport insurance while in his custody and labour charge for loading and unloading provided that the service charge shall

be reasonable and proof of its reasonableness established, if required by the licensing authority;

- (d) not deliver the goods to the consignee without receiving the consignee's note or any such note issued by the office which received the goods for dispatch or if the note is lost or misplaced an indemnity bond covering the value of goods;
 - (e) issue a copy of every note issued to the consignor or consignee to the driver of the goods, vehicle transporting the goods and shall not allow any consignment to be loaded without handing over a copy of the note in respect thereof to the driver;
 - (f) maintain proper record of collection, dispatch or delivery as the case may be of goods the registration mark of the vehicle in which goods are carried for transport and make the same available for inspection by the licensing authority or by any person duly authorised by it in this behalf;
 - (g) maintain proper account of the commission charged by him from every operator of goods vehicles engaged by him;
 - (h) maintain a weighing device in good condition and capable of weighing at a time not less than 250 kgs;
 - (i) not refuse to accept goods for transport without valid reasons; and
 - (j) Comply with the provision of Rule 118.
- (iv) The licensing authority may order the forfeiture in whole or in part of the security furnished by the licensee under sub-rule (1) of Rule 115.

Provided that no such forfeiture shall be made unless the licensee is given an opportunity of being heard.

- (v) In the event of forfeiture of a security deposit or part thereof by the licensing authority the licence shall cease to be valid if the licensee fails to make payment to bring the security furnished by him to its original value within the receipt of the order of forfeiture.

Dated

Signature of the Licensing Authority

RENEWALS

1. Renewed on from to

Signature of the Licensing Authority

Renewed on from to

Signature of the Licensing Authority

*Strike out whichever is not applicable.

FORM SR-38
[See Rule 114(4)]

Agent's Supplementary Licence

Principal Licence No.
Supplementary Issued on
Licence No.
Name
Son/daughter/wife of
Address

.....
is licenced to engage as Agent for collecting forwarding or distributing goods carried
by goods vehicle plying for hire at (full address)
..... and which place is
maintained as per provisions of sub-rule (1) of Rule 120.

The licence is valid from to

This licence is subject to the following conditions:

- (i) The Licencee shall subject to the provisions of Rule 120 provide adequate space for the parking of vehicles for the purpose of loading and unloading goods.
- (ii) The licensee shall be responsible for proper arrangement for storage of goods awaiting delivery or dispatch, or both.
- (iii) The licensee shall -
 - (a) take all necessary steps for proper delivery of the goods to the consignee;
 - (b) be liable to indemnify the consignee for any loss or damage to goods while in his possession by taking out adequate insurance cover, where available at the cost of the consignor or consignee;
 - (c) issued to the consignor/consignee a note only after receipt of goods for dispatch stating therein the weight, nature of goods destination, approximate distance over which the goods are to be carried, the freight charge, the service charge, if any, such as for local transport insurance while in his custody and labour charge for loading and unloading provided that the service charges shall be reasonable and proof of its reasonableness established, if required by the licensing authority;
 - (d) not deliver the goods to the consignee without receiving the consignee's note or any such note issued by the office which received the goods for dispatch or if the note is lost or misplaced an indemnity bond covering the value of goods;
 - (e) issue a copy of every note issued to the consignor or consignee to the driver of the goods vehicle transporting the goods and shall not allow any consignment to be loaded without handing over a copy of the note in respect thereof to the driver;
 - (f) maintain proper record of collection, dispatch or delivery as the case may be of goods the registration mark of the vehicle in which goods are carried for transport and make the same available for

- inspection by the licensing authority or by any person duly authorised by it in this behalf;
- (g) maintain proper account of the commission charged by him to every operator of goods vehicle engaged by him;
- (h) maintain a weighing device in good condition and capable of weighing at a time not less than 250 kgs;
- (i) not refuse to accept goods for transport without valid reasons; and
- (j) comply with the provisions of Rule 118.
- (iv) The licensing authority may order's the forfeiture in whole or in part of the security furnished by the licensee under sub-rule (1) of Rule 115.

Provided that no such forfeiture shall be made unless the licensee is given an opportunity of being heard.

- (v) In the event of forfeiture of a security deposit or part thereof by the licensing authority the licence shall cease to be valid if the licensee fails to make payment to bring the security furnished by him to its original value within fifteen days of the receipt of the order of forfeiture.

Dated

Signature of the Licensing Authority

RENEWALS

1. Renewed on from to

Signature of the Licensing Authority

Renewed on from to

Signature of the Licensing Authority

*Strike out whichever is not applicable.

FORM SR-39

[See Rule 116(1)]

Application for the renewal of Agent's licence engaged in the business of collecting forwarding and distributing goods carried by goods carriages.

To,

Regional Transport Authority,

.....

I/We hereby apply for the renewal of my/our licence which is attached, and particulars of which are as follows:

(a) Licence No.

- (b) Date of issue
- (c) Kind of the licence
- (d) Name of the licence..... (in block letters)
- (e) Address –
 (a) Permanent (b)
 Present

If the licence is not attached with the application reasons why it is not being attached

If the application for renewal is not made 30 days before the date of expiry of the licence, reasons for the delay

The prescribed fee of Rs. has been deposited vide receipt no dated

I hereby declare that there is no such change in the circumstances in which the licence was issued to me/us as disqualified me/us from continuing to hold this licence.

Place and date

Signature of the applicant/applicants

FORM SR-40
 [See Rule 118(v)]

Annual return for the period
 (From 1st April 20__ to 31st March 20__)

To,

The Secretary,
 Regional Transport Authority.

1. Licence No.
2. Date of its grant or last renewal
3. Total number of goods carriage owned by the agent
4. Total number of goods carriage under control of the agent
5. Number of goods carriages which are actually used during the year
 (a) For
 more than six months in the year (b) For more
 than 9 months in the year (c) For more than 10
 months in the year
6. Tonnage of goods collected, delivered and forwarded.
Note: In case the space given above under Item No. 6 is not sufficient, attach a separate sheet.
7. Total tones of the goods collected, forwarded and delivered by the agent

8. Minimum and maximum distances for which the goods were forwarded
 from the forwarding point to the delivery point

	Distance	Total Tonnes
(a)	Distance not exceeding 80 kilometers,	
(b)	Distance exceeding 80 kilometers but not exceeding 160 kilometers	
(c)	Distance exceeding 160 kilometers but not exceeding 240 kilometers	
(d)	Distance exceeding 240 kilometers but not exceeding 320 kilometers	
(e)	Distance exceeding 320 kilometers but not exceeding 400 kilometers	
(f)	Distance exceeding 400 kilometers but not exceeding 480 kilometers	
(g)	Distance exceeding 480 kilometers.	
9.	In respect of the entry made in item no. 8(g) above specify the nature of the goods (e.f. fruits, glass, household effects, corn, coal etc.)	
10.	Total length of journeys performed by the goods vehicles mentioned in item nos. (3) and (4) above in kilometers	
11.	Maximum time taken in delivering a consignment from the date of its booking—	

Time	Tonnes of the consignment	Distance from the forwarding point to the delivery point
1	2	3

12. Claims received and settled –

Number of claims pending from previous year	Number of claims received during the year	Compensation claimed during the year	Number of claims settled during the year	Compensation paid during the year	Number of claims pending at the end of year
1	2	3	4	5	6

Freight and commission –

Total freight realized in respect of the vehicle mentioned at item no. (3) above	Total freight realized in respect of the vehicles mentioned at item no. (4) above	Total freight realized and paid to other operators	Total of commission realized
1	2	3	4

13. Total amount of the premium paid to the insurance companies for insurance of the goods
14. Total amount realized from the insurance companies in respect for loss or damage of goods

Dated

Signature of the agent

FORM SR- 41

[See Rule 125(2)]

Agents licence for sale of tickets for travel by public Service Vehicle/Travel Agent/Tour operator

Agents licence no.....

1. Name
2. Father's name
3. Present address
4. Permanent address
5. Licenced to work as an agent for sale of tickets/Travel Agent/Tour operator
.....
..... (name of service) at/ on
.....(Place and route) and has been
issued agent's badge No This licence is issued
on and is valid up to
.....

Secretary,
Regional Transport Authority

RENEWALS

Renewed from to

Secretary,
Regional Transport Authority

FORM SR-42

[See Rule 125(v)]

Application for an agents licence for sale of tickets for travel by Public Service Vehicles/Travel Agent/Tour operator

To,

The Regional Transport Authority
..... region,

In accordance with the provisions of sub-section (1) of section 93 of the Motor Vehicles Act, 1988, I, the under signed hereby apply for a licence to work as an agent for sale of tickets to the passengers of public service Vehicles/Travel Agent/Tour operator in the State of Uttrakhand.

1. Name (full)

2. Father's/Husband's name
3. Age
4. Present address
5. Permanent address
6. Educational Qualifications

7. I have not previously held an agent's licence

I have previously held an agent's licence No.

Issued by and that it was not suspended/cancelled/ renewed.

8. I hereby declared that I am not less 18 years of age and that the above statements are true. I attach two copies of recent photograph of myself.

Dated

Signature of applicant

FORM SR-43
[See Rule 125(13)]

Agent's Badge

Badge to be r

Name
Licence No.
Agent for sale of ticket
Place

FORM SR-44
[See Rule (127)]

Whereas the State Government is of opinion that for the purpose of providing an efficient, adequate, economical and properly co-ordinated road transport service, it is necessary in the public interest that road transport services in relation to the area or route or portion thereof mentioned in clause (b) of the annexed proposal should be run and operated upon by the Uttarakhand Transport Corporation to the exclusion, complete or partial, of other persons or otherwise.

Now, therefore, in exercise of the powers under Section 99 of the Motor Vehicles Act, 1988 (Act 59 of 1988) the State Government has prepared a scheme hereto annexed in respect of the Road Transport Services and publishes the same with a view to inviting objections in respect thereof.

Any person may, within thirty days of the date of publication of the proposed scheme in the official gazette, file objections, if any before the hearing authority in accordance with the procedure laid down in Rule 128 of the Uttarakhand Motor Vehicle Rule, 2011.

**PROPOSAL REGARDING SCHEME FOR
ROAD TRANSPORT SERVICE**

- (a) The Uttarakhand Road Transport Corporation shall commence to operate road transport services from and onward
- (b) The Road Transport Service by the Uttarakhand Transport Corporation shall be provided on (route/area/portion..... of the route) of..... region.
- (c) The nature and extent of the road transport service to be provided on the area/route or the portion thereof mentioned in clause (b) above shall be as follows :
.....
- (d) The provision of transport services otherwise than under the scheme is prohibited/ restricted to ;
- (e) No person, other than the Uttarakhand Transport Corporation shall be permitted to provide road transport services on the route or the portion thereof specified in clause (b), above;
- (f) Road transport services will subject to the provisions made in the subsequent clauses to provided by the Uttarakhand Transport Corporation exclusively or in conjunction with;
- (g) The transport vehicles which may be used in the area/route/ portion thereof mentioned in clause (b) above shall be of the type and their carrying capacity shall be
- (h) The permit/No./Nos. which has/have been granted to under Chapter V of the Act shall be cancelled/ modified to the extent thatA permit which has been left over from being specified in this clause shall be cancelled.
- (i) The number of transport vehicles of private operators at present plying on the area/route/portion thereof mentioned in clause (b) above shall be reduced to.
- (j) The following convenience and amenities shall be provided to the passengers :

I herein give consequential or incidental matter necessary or expedient for the purpose of the scheme.

Secretary to the Government of
Uttarakhand Transport Department

FORM SR-45

[See Rule 130]

NOTIFICATION

Whereas the State Government had in pursuance of Section 99 of the Motor Vehicles Act, 1988 (Act No. 59 of 1988) published a proposal regarding Road Transport Service of Uttarakhand Transport Undertaking in the official Gazette under Notification No. dated

And whereas the objections received thereto have been duly considered and parties heard/ and whereas the period allowed for filing objections has expired and no objection has been filed.

Now, therefore, in exercise of the powers conferred by sub-section (3) of Section 100 of the aforesaid Act the State Government hereby publishes the Scheme duly approved/modified as follows:

Road Transport Service Scheme
of Uttarakhand Transport Undertaking

By order
Secretary, Transport Department Government of Uttarakhand

FORM SR-46
[See Rule 131(1)]

Form of application under sub-section (1) of Section 103 for stage carriage permit, or a goods carriage permit or a contract carriage permit.

To,

The Regional Transport Authority,
..... Region/State Transport Authority

1. Area/route or portion thereof in respect of which permit/permits is/are sought
2. Scheme in pursuance of which the permit/permits is/are sought (mention the Notification No. and date together with date of publication of the scheme in the Official Gazette).
3. Type of permit sought that is to say stage carriage permit, goods carriage permit or contract carriage permit.
4. Details of vehicles proposed to be used.
5. Seating capacity and payload of the said vehicle.

It is hereby declared that the particulars mentioned above are correct.

Date

Signature and Designation

FORM SR-47
[See Rule 131(3)]

Permit in respect of State Transport Undertaking Vehicles

PART 'A'

Permit no

- (1) Name and designation of the authority to whom the permit has been issued
- (2) Date of issue
- (3) No. of vehicle

Registration No. of individual vehicle	Seating capacity/payload	Particulars of notified route or area covered by this permit and the details of permit and registration number
1	2	3

Designation and official seal
of the Issuing Authority

PART – ‘B’
(To be kept with the vehicle)

Permit No.

1. Name and designations of the Authority to whom the permit has been issued
2. Date of issue
3. Route of area covered by this permit

Designation and official seal of the Issuing Authority

Form SR- 47A
(See Rule 135 (2))
Application for approved of Registration

To,

Transport Commissioner,
Uttarakhand.

Sir,

I hereby apply on behalf of Motor Vehicle Manufacturer Company or its representative for grant of approval for registration in Uttarakhand of new basic/variant model vehicle-----manufactured by -----masseurs-----

1. Name, address and status of the applicant-
(Manufacture Company/representative)
2. Name of the vehicle manufacturer company-

3. Make and model of the vehicle-
4. Category of the vehicle-
5. Mass emission standards-
6. Name of prototype test agency-
(Details of the compliance certificate)
(Copy of the certificate attached)
7. Conformity of production-
8. Broshwer of the vehicle-
(Copy Attached)
9. Technical specifications of the vehicle-
 - (1) Engine-
 - (2) Bore & strokes-
 - (3) Number of calendars-
 - (4) Displacement-
 - (5) Compression ratio-
 - (6) Number of gears-
 - (7) Clutch-
 - (8) Fuel-
 - (9) Fuel Tank-
 - (10) Wheel base-
 - Width-
 - Length-
 - Height-
 - Ground clearance-
 - (11) Vehicle- Gross Vehicle Weight-
Unladen Weight
 - (12) Number of seats-
 - (13) If Vehicle is imported the details there of-
 - (14) Other details if any-

Signature of the
Authorized signatory of Vehicle
Manufacturer Company
Dated-

FORM SR-48
[See Rule 169(1)]
Application for authorisation of Pollution Checking Centre

To,
Transport Commissioner,
Uttarakhand.

Sir,

I hereby apply for authorisation to work as authorised Pollution Checking Centre for issue of Pollution under control certificate and sub-rule (7) of rule 115 of the central rules.

1. Name of the organisation.....
2. Name of the owner (s).....
3. Class of organisation.....
(Authorised garage / workshop/Petrol Pump / Petroleum company / voluntary organisation)
4. Map (blue print) of the building.....
5. Proof of hand ownership/rent agreement.....
6. In case of partnership firm copy of the partnership deed.....
(If it is partnership firm name and address of each partner alongwith a photo copy of partnership deed shall be given)
7. Date of establishment of the organisation.....
8. Authorisation is desired for checking of which type of vehicles.....
(say petrol or diesel or both)
9. Electric Connection.....
10. Details of the fee deposited-
(i) amount.....
(ii) receipt number and date.....
11. The invoice of the availableinstrument prototype of which is approved by the competent agency and the list of available tools.....
12. List of the tools for checking and repairing of engine of the vehicles.
13. Proof the recognition of the organisation.
14. Specified area (only for authorisation of mobile centre)

Your

Name and signature of
the applicant.

Declaration

I/we owner of.....organisation here by declare that the information given in my/our application are true and in support of each fact attested copies are enclosed. Nothing has been hidden by me/us. I/we have carefully studied the directions relating to pollution under control as given in Central Rules and the terms and conditions, procedure and rules for authorisation of pollution checking centre. I/we voluntarily recognize and accept all the conditions and I/we shall always follow the decision and directions given by the Transport Commissioner.

Signature(s)
Owner(s) of organization

FORM SR-49

[(See Rule 169-(4)]

Authorization certificate for working as authorised agency under sub rule (7) of rule 115 of Central Rules.

Ms.....is hereby authorised for issue of Pollution Control Certificate under sub rule (7) of the Central Rules.

for and on behalf of
State Government

Transport Commissioner
Or Officer nominated by them

FORM SR-50

[See Rule 206(1)]

Application for Compensation
(Otherwise than under Section 163A)

To,
The Motor Accident Claims Tribunal

.....

I,..... son/daughter/widow of residing at..... having been injured and/or suffered damage to property in a motor vehicle accident hereby apply for the grant of compensation for the injury sustained and or damage suffered. Necessary particulars in respect of the injury damage to property vehicle etc. are given below:

I,..... son/daughter/wife/widow of residing at hereby apply as a legal representative/agent, for the grant of compensation on account of death of/injury sustained and/or damage suffered by Sri/Kumari/ Srimatison/daughter/wife/widow of Sri/Srimati who died/was injured and/or damage suffered in a Motor Vehicle accident. Necessary particulars of the person dead/injured/and/or suffering damage to property and the vehicles involved in the accident etc. are hereunder :-

1. Name with Father/Husband's name of the person died/injured and/or suffered damage to property.

2. Full address of the person dead/injured and or suffering damage to property.
3. Age of the person injured/dead.
4. Occupation of the person injured/dead.
5. Name and address of the employer of the deceased, if any.
6. Monthly income of the person injured/dead.
7. Name and age of each of the dependants of the deceased/ injured indicating relationship with him, and also monthly average income of the deceased/injured and the source of such income.
8. Details of the property damaged and the extent of damage caused.
9. Does the person in respect of whom compensation is claimed pay income tax? (to be supported by documentary evidence)
10. Place, date and time of the accident.
11. Name and address of police station in whose jurisdiction the accident took place or FIR was registered.
12. Was the person in respect of whom compensation is claimed, travelling by the vehicle involved in the accident? If so, give the name of the place of starting of journey and destination.
13. Nature of injuries sustained.
14. Name and address of the Medical Officer/Practitioner, if any, who attended on the injured/dead.
15. Period of treatment and expenditure, if any, incurred thereon (to be supported by documentary evidence.)
16. Registration number and type of the vehicle involved in accident.
17. Name and address of the owner of the vehicle.
18. Name and address of the insurer of the vehicle.
19. Has any claim been lodged with the owner/insurer, if so, with what result.
20. Relationship with the deceased
21. Title to the property of the deceased.
22. Amount of compensation claimed.
23. Any other information that may be necessary or helpful in the disposal of the claim.

I solemnly declare that the particulars given above are true and correct to the best of my knowledge.

Signature or thumb-impression of the applicant

FORM SR-51

[See Rule 206(1)]

(Application for compensation under Section 163-A)

The Motor Accident Claims Tribunal

.....

I, son/daughter/widow of residing at having been injured and/or suffered damage to property in a motor vehicle accident hereby apply for the grant on compensation for

the injury sustained and or damage suffered. Necessary particulars in respect of the injury damage to property, vehicles etc are given below:

I, son/daughter/widow of residing at hereby apply as legal representative/ agent, for the grant of compensation on account of death of/injury sustained and/or damage suffered by Sri/Kumari/Srimati son/ daughter/wife/widow of Sri/Srimati who died/was injured and/or damage suffered in a motor vehicle accident. Necessary particulars of the person dead/injured and/or suffering damage to property and the vehicles involved in the accident etc. are hereunder :

1. Name with Father's/Husband's name of the person died/injured and or suffered damage to property.
2. Full address of the person dead/injured and or suffering damage to property.
3. Age of the person injured/dead.
4. Occupation of the person injured/dead.
5. Name and address of the employer of the deceased, if any.
6. Monthly income of the income of the person injured/dead.
7. Name and age of each of the dependants of the deceased/ injured indicating relationship with him, and also monthly average income of the deceased/injured and the source of such income.
8. Details of the property damaged and caused.
9. Does the person in respect of whom compensation is claimed pay income-tax? (to be supported by documentary evidences).
10. Place, date and time of the accident.
11. Name and address of police station in whose jurisdiction the accident took place or F.I.R. was registered.
12. Was the person in respect of whom compensation is claimed travelling by the vehicle involved in the accident? If so, give the name of the place of starting of journey and destination.
13. Nature of injuries sustained.
14. Name and address of the Medical Officer/Practitioner, if any, who attended on the injured/dead.
15. Period of treatment and expenditure, if any, incurred thereon (to be supported by documentary evidence).
16. Registration number and the type of the vehicle involved in accident.
17. Name and address of the owner of the vehicle.
18. Name and address of the insurer of the vehicle.
19. Has any claim been lodged with the owner/insurer; if so, with what result.
20. Relationship with the deceased.
21. Title to the property of the deceased.
22. Amount of compensation claimed.
23. Any other information that may be necessary or helpful in the disposal of the claim.

I have not file any other application for compensation.

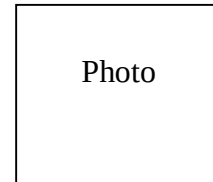
I, therefore, request that the amount of compensation in respect of the aforesaid accident may be determined in accordance with the Second Schedule of the Motor Vehicles Act, 1988 and the owner/insurer may be directed to make payment of the compensation, so determined, to me, which shall be full and final compensation in respect of the aforesaid accident. I shall not file any other claim in respect thereof under Section 140 and under Section 163-A of the Motor Vehicles Act, 1988.

I, solemnly declare that the particulars given above are true and correct to the best of my knowledge.

Signature of Thumb Impression
of the Applicant.

FORM SR-52
[See Rule 229(2)]

Transport Department Identity Card



Name :

Designation :

Age at the time of issue of this card

Specimen Signature of the holder

Signature, name and designation
of the Issuing Officer.

By Order,

S. Ramaswamy
Principal Secretary.